SD No: 62/05

STATEMENT OF

CHANGES

IN IMMIGRATION RULES



Laid before Tynwald on 17th May 2007 under section 3(2) of the Immigration Act 1971 (an Act of Parliament as extended to the Isle of Man by the Immigration (Isle of Man) Order 1991 (SI 1991 no. 2630) and the Immigration (Isle of Man) Order 1997 (SI 1997 no. 275)

(As amended by SD 692/05,442/06, 547/06, 781/06, 871/06, 124/07, 303/07, 02/08 and 500/08 and GC 35/09 and 32/09)

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INTRODUCTION

1 **The Lieutenant Governor has made changes in the rules as to the practice to be followed in the administration of the Immigration Acts as extended to the Isle of Man for regulating the entry into and the stay of persons in the Isle of Man and contained in the statement laid before Tynwald on 17th May 2005 (SD 62/05). This statement contains the Rules as amended by SD 692/05,442/06, 547/06, 781/06, 871/06, 124/07 and 303/07 and replaces the provisions of S.D. 373/94 (as amended)**

2. Immigration Officers, Entry Clearance Officers and all staff of the Immigration Office will carry out their duties without regard to the race, colour or religion of persons seeking to enter or remain in the Isle of Man and in compliance with the provisions of the Human Rights Act 2001 (an Act of Tynwald).

3. In these Rules words importing the masculine gender include the feminine, unless the contrary intention appears.

3A In these Rules any reference to an Act of Parliament, or a provision of an Act of Parliament, which extends to the Isle of Man is a reference to that Act or provision as it has effect in the Isle of Man.

IMPLEMENTATION AND TRANSITIONAL PROVISIONS

4. These Rules come into effect on 25th April 2005 and will apply to all decisions taken on or after that date save that any application made before 25th April 2005 for entry clearance, leave to enter or remain or variation of leave to enter or remain shall be decided under the provisions of S.D. 373/94, as amended, as if these Rules had not been made.

APPLICATION

5. Save where expressly indicated, these Rules do not apply to those persons who are entitled to enter or remain in the Isle of Man by virtue of the provisions of the EEA Regulations. But any person who is not entitled to rely on the provisions of those Regulations is covered by these Rules.

5A. When exercising its functions under these rules the Department of Trade and Industry shall act in accordance with any instructions issued by the Lieutenant Governor as to the practice to be followed in the issuing of work permits under these rules.

5B. Persons not restricted under these Rules from taking employment must establish from the Department of Trade and Industry whether they require a permit under the Control of Employment Act 1975 as amended. (An Act of Tynwald).

INTERPRETATION

6. In these Rules the following interpretations apply:

An "**Academic Visitor**" is a person who is from an overseas academic institution or who is highly qualified within his own field of expertise seeking leave to enter the Isle of Man to carry out research and associated activities for his own purposes.

"Accession State national" means a national of the Czech Republic, the Republic of Cyprus, the Republic of Estonia, the Republic of Latvia, the Republic of Lithuania, the Republic of Hungary, the Republic of Malta, the Republic of Poland, the Republic of Slovenia or the Slovak Republic.

"adoption" unless the contrary intention appears, includes a de facto adoption in accordance with the requirements of paragraph 309A of these Rules, and "adopted" and "adoptive parent" should be construed accordingly.

An "**Amateur**" is a person who engages in a sport or creative activity solely for personal enjoyment and who is not seeking to derive a living from the activity.

"a bona fide private education institution" is a private education institution which:

a) maintains satisfactory records of enrolment and attendance of students, and supplies these to the Isle of Man Immigration Office when requested,

b) provides courses which involve a minimum of 15 hours organised daytime study per week,

c) ensures a suitably qualified tutor is present during the hours of study to offer teaching and instruction to the students,

d) offers courses leading to qualifications recognised by the appropriate accreditation bodies,

e) employs suitably qualified staff to provide teaching, guidance and support to the students, and

f) provides adequate accommodation, facilities, staffing levels and equipment to support the numbers of students enrolled at the institution.

g) [NOT USED]

"Business person" *means a migrant granted leave under paragraphs 200 to 208 of the Rules as they applied before 1 December 2009;*

A **"Business Visitor**" is a person granted leave to enter or remain in the Isle of Man under paragraphs 46G-46L, 75A-F or 75G-M of these Rules.

"civil partner" means a civil partnership which exists under or by virtue of the Civil Partnership Act 2004 (an Act of Parliament) (and any reference to a civil partner is to be read accordingly).

"Control of Employment Act*" means the Control of Employment Act 1975 (of Tynwald)*[1]

"**degree level study**" means a course which leads to a recognised United Kingdom degree at bachelor's level or above, or an equivalent qualification at level 6 or above of the revised National Qualifications Framework, or levels 9 or above of the Scottish Credit and Qualifications Framework.

[1] 1975 c.

"EEA national" *has the meaning given in regulation 3(1) of the EEA Regulations*

"*the* ***EEA Regulations"*** *means the Immigration (European Economic Area) Regulations 2009*[2]*;*

"employment", unless the contrary intention appears, includes paid and unpaid employment, paid and unpaid work placements undertaken as part of a course or period of study, self employment and engaging in business or any professional activity.

An "**Entertainer Visitor**" is a person granted leave to enter or remain in the Isle of Man under paragraphs 46S-46X of these Rules.

"family member" in relation to an EEA national means –

(a) that national's spouse;

(b) a descendant of that national or his spouse who is under 21 years of age or is their dependant; and

(c) a dependent relative in the ascending line of the EEA national or his spouse.

"**the Hague Convention"** means the Convention on Protection of Children and Co-operation in Respect of Intercountry Adoption, concluded at The Hague on 29th May 1993

"the Human Rights Convention" means the Convention for the Protection of Human Rights and Fundamental Freedoms, agreed by the Council of Europe at Rome on 4th November 1950 as it has effect for the time being in relation to the Isle of Man.

"the Immigration Acts" mean the Immigration Act 1971 and the Immigration Act 1988 as they have effect in the Isle of Man

"Immigration employment document" means a work permit or other document which relates to employment and is issued for the purpose of these Rules or in connection with leave to enter or remain in the Isle of Man.

"Immigration Officer" includes a Customs Officer acting as an Immigration Officer.

"intention to live permanently with the other" means an intention to live together, evidenced by a clear commitment from both parties that they will live together permanently in the Isle of Man immediately following the outcome of the application in question or as soon as circumstances permit thereafter, and "intends to live permanently with the other" shall be construed accordingly;

"Investor" *means a migrant granted leave under paragraphs 224 to 229 of the Rules as they applied before 1 December 2009;*

"Medical Inspector" means a General Practitioner appointed by the Department of Health and Social Security.

[2] SD

"Multiple Entry work permit employment" is work permit employment where the person concerned does not intend to spend a continuous period in the Isle of Man in work permit employment.

"Non-visa nationals" are persons who are not so specified in the United Kingdom Immigration Rules as amended from time to time.

"a parent" includes

(a) the stepfather of a child whose father is dead (and the reference to stepfather includes a relationship arising through civil partnership);

(b) the stepmother of a child whose mother is dead (and the reference to stepmother includes a relationship arising through civil partnership);

(c) the father as well as the mother of an illegitimate child where he is proved to be the father;

(d) an adoptive parent, where a child was adopted in accordance with a decision taken by the competent administrative authority or court in a country whose adoption orders are recognised by the Isle of Man or where a child is the subject of a de facto adoption in accordance with the requirements of paragraph 309A of these Rules (except that an adopted child or child who is the subject of a de facto adoption may not make an application for leave to enter or remain in order to accompany, join or remain with an adoptive parent under paragraphs 297 to 303); and

(e) in the case of a child born in the Isle of Man who is not a British citizen, a person to whom there has been a genuine transfer of parental responsibility on the ground of the original parent(s)' inability to care for the child.

A **"Permissible Activity"** means a business activity of a type listed in United Kingdom Border Agency guidance specifying the activities that a business person may undertake during a short-term business visit to the United Kingdom. This UKBA guidance will be followed to decide whether an activity is permissible in the Isle of Man.

"present and settled" means that the person concerned is settled in the Isle of Man, and, at the time that an application under these Rules is made, is physically present here or is coming here with or to join the applicant and intends to make the Isle of Man their home with the applicant if the application is successful;

"public funds" means:

(a) housing provided under the Housing Acts 1955 to 1990 (Acts of Tynwald) by

(i) the Department of Local Government and Environment;

(ii) a Local Authority

(iii) a housing association; or

(iv) any combination of any of them;

(b) attendance allowance, severe disablement allowance, carer's allowance and disability living allowance under Part III of the Social Security Contributions and Benefits Act 1992 (as it has effect in the Isle of Man);

(c) child benefit under Part IX of the Social Security Contributions and Benefits Act 1992 (as it has effect in the Isle of Man);

(d) income support, family income supplement and disability working allowance under Part VII of the Social Security Contributions and Benefits Act 1992 (as it has effect in the Isle of Man);

(e) payments in respect of maternity expenses under Part VIII of the Social Security Contributions and Benefits Act 1992 (as it has effect in the Isle of Man);

(f) winter bonus under Part XA of the Social Security Contributions and Benefits Act 1992 (as it has effect in the Isle of Man);

(g) income-based jobseeker's allowance under the Jobseekers Act 1995 (as it has effect in the Isle of Man).

"**the Refugee Convention"** means the Convention relating to the Status of refugees done at Geneva on 28th July 1951 and its Protocol.

"Secretary of State" *means the Secretary of State for the Home Department in the United Kingdom;*

"settled in the Isle of Man" means that the person concerned:

(a) is free from any restriction on the period for which he may remain save that a person entitled to an exemption under Section 8 of the Immigration Act 1971 (otherwise than as a member of the home forces) is not to be regarded as settled in the Isle of Man except in so far as Section 8(5A) so provides; and

(b) is either:

(i) ordinarily resident in the Isle of Man without having entered or remained in breach of the immigration laws; or

(ii) despite having entered or remained in breach of the immigration laws, has subsequently entered lawfully or has been granted leave to remain and is ordinarily resident.

A "**Series of events**" is two or more linked events, such as a tour, or rounds of a competition, which do not add up to a league or a season.

A "**Special Visitor**" is a person granted leave for a short-term visit in the following circumstances:

(a) A person granted leave to enter or remain in the Isle of Man as a visitor for private medical treatment under paragraphs 51 – 56 of these Rules,

(b) A person granted leave to enter or remain in the Isle of Man for the purpose of marriage under paragraphs 56D – 56F of these Rules,

(c) A person granted leave to enter or remain in the Isle of Man as a Parent of a child at school under paragraphs 56A – 56C of these Rules, or

(d) A person granted leave to enter or remain in the Isle of Man as a Child Visitor under paragraphs 46A – 46F of these Rules.

(e) [NOT USED]

(f) [NOT USED]

(g) [NOT USED]

"specified documents" *means documents specified by the Lieutenant Governor in the Points-based System Policy Guidance as being specified documents for the route under which the applicant is applying;*

"sponsor" means the person in relation to whom an applicant is seeking leave to enter or remain as their spouse, fiancé, civil partner, proposed civil partner, unmarried partner or same-sex partner or dependent relative, as the case may be, under paragraphs 277 to 295O or 317 to 319;

A "**Sports Visitor**" is a person granted leave to enter or remain in the Isle of Man under paragraphs 46M-46R of these Rules.

Under Part 6A of these Rules, "**Highly Skilled Migrant**" means a migrant granted leave under paragraphs 135A to 135G of the Rules in force before (date of commencement of these Rule changes).

Under Part 6A of these Rules, "**Highly Skilled Migrant Programme Approval Letter**" means a letter, issued by the Isle of Man Department of Trade and Industry, confirming that the applicant meets the criteria specified by the Council of Ministers for entry to or stay in the Isle of Man under the Highly Skilled Migrant Programme.

"Tier 1 (General) Migrant" *means a migrant who is granted leave under paragraphs 245B to 245F;*

"***Tier 1 (Entrepreneur) Migrant"*** *means a migrant who is granted leave under paragraphs 245H to 245N;*

"Tier 1 (Investor) Migrant" *means a migrant who is granted leave under paragraphs 245O to 245U;*

"Tier 1 Migrant" *means a migrant who is granted leave as a Tier 1 (General) Migrant, a Tier 1 (Entrepreneur) Migrant or a Tier 1 (Investor) Migrant;*

"United Kingdom passport" bears the meaning it has in the Immigration Act 1971.

"a UK Bachelors degree" means –
(a) A programme of study or research which leads to the award, by or on behalf of a university, college or other body which is authorised by Royal Charter or by or under an Act

of Parliament to grant degrees, of a qualification designated by the awarding institution to be of Bachelors degree level; or

(b) A programme of study or research, which leads to a recognised award for the purposes of section 214(2)(c) of the Education Reform Act 1988, of a qualification designated by the awarding institution to be of Bachelors degree level.

"visa nationals" are the persons specified in Appendix 1 to these Rules who need a visa for the Isle of Man.

"work permit" means a work permit issued by the Department of Trade and Industry under the provisions of the Overseas Labour Scheme as the scheme has effect in the Isle of Man.

"**Work Permit Holder**" means a migrant who is granted leave under paragraphs 128 to 133 of these Rules.

"Working holidaymaker" *means a migrant granted leave under paragraphs 95 to 97 of the Rules in force before 1 December 2009;*

*"**Writer, composer or artist**" means a migrant granted leave under paragraphs 232 to 237 of the Rules in force before 1 December 2009.*

In paragraph 320(7B) and paragraph 320(11) of these Rules:

"Deception" means making false representations or submitting false documents (whether or not material to the application), or failing to disclose material facts.

"Illegal Entrant" has the same definition as in section 33(1) of the Immigration Act 1971.

"Overstayed" or "Overstaying" means the applicant has stayed in the Isle of Man beyond the time limit attached to his leave, or beyond the period that his leave was extended under sections 3C or 3D of the Immigration Act 1971.

6AA. In these Rules any reference to an Act of Parliament, or a provision of an Act of Parliament, which extends to the Isle of Man is a reference to that Act or provision as it has effect in the Isle of Man.

6A. For the purpose of these Rules, a person is not to be regarded as having (or potentially having) recourse to public funds merely because he is (or will be) reliant in whole or in part on public funds provided to his sponsor, unless, as a result of his presence in the Isle of Man, the sponsor is (or would be) entitled to increased or additional public funds.

6B. [NOT USED]

PART 1: GENERAL PROVISIONS REGARDING LEAVE TO ENTER OR REMAIN IN THE ISLE OF MAN

Leave to enter the Isle of Man

7. A person who is neither a British citizen nor a Commonwealth citizen with the right of abode nor a person who is entitled to enter or remain in the Isle of Man by virtue of the provisions of the EEA Regulations requires leave to enter the Isle of Man.

8. Under Sections 3 and 4 of the Immigration Act 1971 an Immigration Officer when admitting to the Isle of Man a person subject to immigration control under that Act may give leave to enter for a limited period and, if he does, may impose all or any of the following conditions:

(i) a condition restricting or prohibiting employment or occupation in the Isle of Man;

(ii) a condition requiring the person to maintain and accommodate himself, and any dependants of his, without recourse to public funds; and

(iii) a condition requiring the person to register with the police.

He may also require him to report to the Director of Public Health. Under Section 24 of the 1971 Act it is an offence knowingly to remain beyond the time limit or to fail to comply with such a condition or requirement.

9. The time limit and any conditions attached will be made known to the person concerned either:

(i) by written notice given to him or endorsed by the Immigration Officer in his passport or travel document; or

(ii) in any other manner permitted by the Immigration (Leave to Enter and Remain) Order 2008.'[(c)]

Exercise of the power to refuse leave to enter the Isle of Man

10. The power to refuse leave to enter the Isle of Man or to cancel leave to enter or remain which is already in force is not to be exercised by an Immigration Officer acting on his own. The authority of a Chief Immigration Officer or of an Immigration Inspector must always be obtained.

Suspension of leave to enter or remain in the Isle of Man

10A. Where a person has arrived in the Isle of Man with leave to enter or remain which is in force but which was given to him before his arrival he may be examined by an Immigration Officer under paragraph 2A of Schedule 2 to the Immigration Act 1971. An Immigration Officer examining a person under paragraph 2A may suspend that person's leave to enter or remain in the Isle of Man until the examination is completed.

Cancellation of leave to enter or remain in the Isle of Man

10B. Where a person arrives in the Isle of Man with leave to enter or remain in the Isle of Man which is already in force, an Immigration Officer may cancel that leave.

Requirement for persons arriving in the Isle of Man to produce evidence of identity and nationality

11. A person must, on arrival in the Isle of Man produce on request by the Immigration Officer:

(i) a valid passport or other document satisfactorily establishing his identity and nationality; and

(ii) such information as may be required to establish whether he requires leave to enter the Isle of Man and, if so, whether and on what terms leave to enter should be given.

Requirement for a person not requiring leave to enter the Isle of Man to prove that he has the right of abode

12. A person claiming to be a British citizen must prove that he has the right of abode in the Isle of Man by producing:

(i) a United Kingdom passport describing him as a British citizen or as a citizen of the United Kingdom and Colonies having the right of abode in the United Kingdom; or

(ii) a certificate of entitlement duly issued by or on behalf of the Government of the Isle of Man or United Kingdom certifying that he has the right of abode.

13. A person claiming to be a Commonwealth citizen with the right of abode in the United Kingdom must prove that he has the right of abode by producing a certificate of entitlement duly issued to him by or on behalf of the Government of the Isle of Man or United Kingdom certifying that he has the right of abode.

14. A Commonwealth citizen who has been given limited leave to enter the Isle of Man may later claim to have the right of abode. The time limit on his stay may be removed if he is able to establish a claim to the right of abode, for example, by showing that:

(i) immediately before the commencement of the British Nationality Act 1981 he was a Commonwealth citizen born to or legally adopted by a parent who at the time of the birth had citizenship of the United Kingdom and Colonies by his birth in the Isle of Man, United Kingdom or Channel Islands; and

(ii) he had not ceased to be a Commonwealth citizen in the meanwhile.

Common Travel Area

15. The Isle of Man, the United Kingdom, the Channel Islands and the Republic of Ireland collectively form a common travel area. A person who has been examined for the purpose of immigration control at the point at which he entered the area does not normally require leave to enter any other part of it. However certain persons subject to the

Immigration (Control of Entry through the Republic of Ireland) Order 1972 (as amended) who enter the Isle of Man through the Republic of Ireland do require leave to enter. This includes:

(i) those who merely passed through the Republic of Ireland;

(ii) persons requiring visas;

(iii) persons who entered the Republic of Ireland unlawfully;

(iv) persons who are subject to directions given by the Lieutenant Governor for their exclusion from the Isle of Man, by the Lieutenant Governors of the Channel Islands for their exclusion from any of the Channel Islands or by the Secretary of State for their exclusion from the United Kingdom, on the ground that their exclusion is conducive to the public good;

(v) persons who entered the Republic from the Isle of Man, United Kingdom or Channel Islands after entering there unlawfully or overstaying their leave.

15A. An extension of stay in the Isle of Man is to be refused, and existing limited leave to enter or remain may be curtailed, where the Lieutenant Governor has reason to believe, or is satisfied that, either:

(a) the person is seeking an extension to his stay or a variation of the conditions attached to his leave to enter or remain, for the purpose of exploiting to his own benefit any difference that might exist between the immigration laws of the Isle of Man and any other territory in the Common Travel Area; or

(b) the person has entered the Isle of Man from another territory in the Common Travel Area and has limited leave to enter or remain granted by the authorities in another territory of the Common Travel Area, (such leave being valid in the Isle of Man by virtue of Schedule 4 of the Immigration Act 1971 as extended)

but does not meet the requirements of the Isle of Man Immigration Rules which apply to his purpose in being in the Isle of Man;

provided that the Lieutenant Governor is satisfied that such refusal or curtailment would be in the general interests of the Isle of Man.

Admission of certain British passport holders

16. A person in any of the following categories may be admitted freely to the Isle of Man on production of a United Kingdom passport issued in the Isle of Man, United Kingdom and Channel Islands or the Republic of Ireland prior to 1 January 1973, unless his passport has been endorsed to show that he was subject to immigration control:

(i) A British Dependent Territories citizen;

(ii) A British National (Overseas);

(iii) A British Overseas citizen;

(iv) A British protected person;

(v) A British subject by virtue of Section 30 (a) of the British Nationality Act 1981 (who, immediately before commencement of the 1981 Act would have been a British subject not possessing citizenship of the United Kingdom and Colonies or the citizenship of any other Commonwealth country or territory).

17. British Overseas citizens who hold United Kingdom passports wherever issued, and who satisfy the Immigration Officer that they have, since 1 March 1968, been given indefinite leave to enter or remain in the Isle of Man may be given indefinite leave to enter.

Returning Residents

18. A person seeking leave to enter the Isle of Man as a returning resident may be admitted for settlement provided the Immigration Officer is satisfied that the person concerned:

(i) had indefinite leave to enter or remain in the Isle of Man when he last left; and

(ii) has not been away from the Isle of Man for more than 2 years; and

(iii) did not receive assistance from public funds towards the cost of leaving the Isle of Man; and

(iv) now seeks admission for the purpose of settlement.

19. A person who does not benefit from the preceding paragraph by reason only of having been away from the Isle of Man too long may nevertheless be admitted as a returning resident if, for example, he has lived here for most of his life.

19A. Where a person who has indefinite leave to enter or remain in the Isle of Man accompanies, on a tour of duty abroad, a spouse, civil partner, unmarried partner or same-sex partner, who is a member of HM Forces serving overseas, or a permanent member of HM Diplomatic Service, or a comparable United Kingdom based staff member of the British Council, or a staff member of the Department for International Development who is a British Citizen or is settled in the Isle of Man, sub-paragraphs (ii) and (iii) of paragraph 18 shall not apply.

20. The leave of a person whose stay in the Isle of Man is subject to a time limit lapses on his going to a country or territory outside the common travel area. In other cases, leave lapses on the holder remaining outside the Isle of Man for a continuous period of more than two years. A person whose leave has lapsed and who returns after a temporary absence abroad within the period of this earlier leave has no claim to admission as a returning resident. His application to re-enter the Isle of Man should be considered in the light of all the relevant circumstances. The same time limit and any conditions attached will normally be re-imposed if he meets the requirements of these Rules, unless he is seeking admission in a different capacity from the one which he was last given leave to enter or remain.

20A. Leave to enter or remain in the Isle of Man will usually lapse on the holder going to a country or territory outside the common travel area. However, under article 13 of the Immigration (Leave to Enter and Remain) Order 2008 such leave will not lapse where it was

given for a period exceeding six months or where it was conferred by means of an entry clearance (other than a visit visa).

Holders of restricted travel documents and passports

21. The leave to enter or remain in the Isle of Man of a holder of a passport or travel document whose permission to enter another country has to be exercised before a given date may be restricted so as to terminate at least 2 months before that date.

22. If his passport or travel document is endorsed with a restriction on the period for which he may remain outside his country of normal residence, his leave to enter or remain in the Isle of Man may be limited so as not to extend beyond the period of authorised absence.

23. The holder of a travel document issued by the Home Office should not be given leave to enter or remain for a period extending beyond the validity of that document. This paragraph and paragraphs 21-22 do not apply to a person who is eligible for admission for settlement or to a spouse or civil partner who is eligible for admission under paragraph 282 or to a person who qualifies for the removal of the time on his stay.

Leave to enter granted on arrival in the Isle of Man

23A. "A person who is not a visa national and who is seeking leave to enter on arrival in the Isle of Man for a period not exceeding 6 months for a purpose for which prior entry clearance is not required under these Rules may be granted such leave, for a period not exceeding 6 months.

This paragraph does not apply where the person is a British National (Overseas), a British overseas territories citizen, a British Overseas citizen, a British protected person, or a person who under the British Nationality Act 1981 is a British subject".

23B. A person who is a British National (Overseas), a British overseas territories citizen, a British Overseas citizen, a British protected person, or a person who under the British Nationality Act 1981 is a British subject, and who is seeking leave to enter on arrival in the Isle of Man for a purpose for which prior entry clearance is not required under these Rules may be granted such leave, irrespective of the period of time for which he seeks entry, for a period not exceeding 6 months.

Entry Clearance

24. The following shall produce to the Immigration Officer a valid passport or other identity document endorsed with a Isle of Man entry clearance issued to him for the purpose for which he seeks entry:

(i) a visa national;

(ii) any other person (other than British Nationals (Overseas), a British overseas territories citizen, a British Overseas citizen, a British protected person or a person who under the British Nationality Act 1981 is a British subject) who is seeking entry for a period exceeding six months or is seeking entry for a purpose for which prior entry clearance is required under these Rules.

Such a person will be refused leave to enter if he has no such current entry clearance. Any other person who wishes to ascertain in advance whether he is eligible for admission to the Isle of Man may apply for the issue of an entry clearance.

25. Entry clearance takes the form of a visa (for visa nationals) or an entry certificate (for non visa nationals). These documents are to be taken as evidence of the holder's eligibility for entry into the Isle of Man, and accordingly accepted as "entry clearances" within the meaning of the Immigration Act 1971.

25A. An entry clearance which satisfies the requirements set out in article 3 of the Immigration (Leave to Enter and Remain) Order 2008 will have effect as leave to enter the Isle of Man. The requirements are that the entry clearance must specify the purpose for which the holder wishes to enter the Isle of Man and should be endorsed with the conditions to which it is subject or with a statement that it has effect as indefinite leave to enter the Isle of Man. The holder of such an entry clearance will not require leave to enter on arrival in the Isle of Man and, for the purposes of these Rules, will be treated as a person who has arrived in the Isle of Man with leave to enter the Isle of Man which is in force but which was given to him before his arrival.

26. An application for entry clearance will be considered in accordance with the provisions in these Rules governing to the grant or refusal of leave to enter. Where appropriate, the term "Entry Clearance Officer" should be substituted for "Immigration Officer".

27. An application for entry clearance is to be decided in the light of the circumstances existing at the time of the decision except that an applicant will not be refused an entry clearance where entry is sought in one of the categories contained in paragraphs 296-316 solely on account of his attaining the age of 18 years between receipt of his application and the date of the decision on it.

28. An applicant for an entry clearance must be outside the Isle of Man, United Kingdom and Channel Islands at the time of the application. An applicant for an entry clearance who is seeking entry as a visitor must apply to a post designated by the Secretary of State to accept applications for entry clearance for that purpose and from that category of applicant. Subject to paragraph 28A any other application must be made to the post in the country or territory where the applicant is living which has been designated by the Secretary of State to accept applications for entry clearance for that purpose and from that category of applicant. Where there is no such post the applicant must apply to the appropriate designated post outside the country or territory where he or she is living.

28A a) [NOT USED]

b) An application for entry clearance as a Tier 5 (Youth Mobility Scheme) Temporary Migrant may also be made at the post in the country or territory where the applicant is situated at the time of the application, provided that:

(i) the post has been designated by the Secretary of State to accept applications for entry clearance for that purpose and from that category of applicant, and

(ii) the applicant is able to demonstrate to the Entry Clearance Officer that he or she has authority to be living in that country or territory in accordance with its immigration laws and that when he or she was given authority to live in that country or territory he or she was given authority to live in that country or territory for a period of more than 6 months. Those

applicants who are known to the authorities of that country or territory but who have not been given permission to live in that country or territory will not be eligible to make an application.

29. For the purposes of paragraph 28, "post" means a British Diplomatic Mission, British Consular post or the office of any person outside the Isle of Man, United Kingdom and Channel Islands who has been authorised by the Secretary of State to accept applications for entry clearance. A list of designated posts is published by the United Kingdom's Foreign and Commonwealth Office.

30. An application for an entry clearance is not made until any fee required to be paid under the Consular Fees Act 1980 (including any Regulations or Orders made under that Act) has been paid.

30A. An entry clearance may be revoked if the Entry Clearance Officer is satisfied that:

(i) whether or not to the holder's knowledge, false representations were employed or material facts were not disclosed, either in writing or orally, for the purpose of obtaining the entry clearance; or

(ii) a change of circumstances since the entry clearance was issued has removed the basis of the holder's claim to be admitted to the Isle of Man, except where the change of circumstances amounts solely to his exceeding the age for entry in one of the categories contained in paragraphs 296-316 of these Rules since the issue of the entry clearance; or

(iii) the holder's exclusion from the Isle of Man would be conducive to the public good.

30B. An entry clearance shall cease to have effect where the entry clearance has effect as leave to enter and an Immigration Officer cancels that leave in accordance with paragraph 2A(8) of Schedule 2 to the Immigration Act 1971.

30C. An Immigration Officer may cancel an entry clearance which is capable of having effect as leave to enter if the holder arrives in the Isle of Man before the day on which the entry clearance becomes effective or if the holder seeks to enter the Isle of Man for a purpose other than the purpose specified in the entry clearance.'

Variation of leave to enter or remain in the Isle of Man

31. Under Section 3(3) of the Immigration Act 1971 a limited leave to enter or remain in the Isle of Man may be varied by extending or restricting its duration, by adding, varying or revoking conditions or by removing the time limit (whereupon any condition attached to the leave ceases to apply). When leave to enter or remain is varied an entry is to be made in the applicant's passport or travel document (and his registration certificate where appropriate) or the decision may be made known in writing in some other appropriate way.

31A. Where a person has arrived in the Isle of Man with leave to enter or remain in the Isle of Man which is in force but was given to him before his arrival, he may apply, on arrival at the port of entry in the Isle of Man, for variation of that leave. An Immigration Officer acting on behalf of the Lieutenant Governor may vary the leave at the port of entry but is not obliged to consider an application for variation made at the port of entry. If an Immigration Officer acting on behalf of the Lieutenant Governor has declined to consider an

application for variation of leave at a port of entry but the leave has not been cancelled under paragraph 2A(8) of Schedule 2 to the Immigration Act 1971, the person seeking variation should apply to the Isle of Man Immigration Office under paragraph 32.

32. After admission to the Isle of Man any application for an extension of the time limit on or variation of conditions attached to of a person's stay in the Isle of Man must be made to the Immigration Office before the applicant's current leave to enter or remain expires.

33. Where the application is in respect of employment for which a work permit or a permit for training or work experience is required or is in respect of the spouse, civil partner or child of a person who is making such an application, the application should also be made to the Immigration Office.

33A. Where a person having left the common travel area, has leave to enter or remain in the Isle of Man which remains in force under article 13 of the Immigration (Leave to Enter and Remain) Order 2008., his leave may be varied (including any condition to which it is subject) in such form and manner as permitted for the giving of leave to enter. However, the Lieutenant Governor is not obliged to consider an application for variation of leave to enter or remain from a person outside the Isle of Man.

Knowledge of language and life in the United Kingdom and Islands

33B. A person has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands for the purpose of an application for indefinite leave to remain under these rules if—

(a) he has attended a course which used teaching materials derived from the document entitled "Citizenship Materials for ESOL Learners" (ISBN 1-84478-5424) and he has thereby attained a relevant accredited qualification; or

(b) he has passed the test known as the "Life in the UK Test" administered by an educational institution or other person approved for this purpose by the Lieutenant Governor; or

(c) in the case of a person who is the spouse or civil partner or unmarried or same sex partner of:

i) a permanent member of HM Diplomatic Service; or

ii) a comparable UK-based staff member of the British Council on a tour of duty abroad; or

iii) a staff member of the Department for International Development who is a British citizen or is settled in the UK,

a person designated by the Secretary of State certifies in writing that he has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands for this purpose.

33C. In these rules, a "relevant accredited qualification" is—

(a) an ESOL "Skills for Life" qualification in speaking and listening at Entry Level approved by the Qualifications and Curriculum Authority; or

(b) two ESOL units at Access Level under the Scottish Credit and Qualifications Framework approved by the Scottish Qualifications Authority.

33D. If in the special circumstances of any particular case the Lieutenant Governor thinks fit, he may waive the need to fulfil the requirement to have sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands if he considers that, because of the applicant's physical or mental condition, it would be unreasonable to expect him to fulfil that requirement.

33E. [DELETED}

33F. [DELETED]

Specified forms and procedures for applications or claims in connection with immigration

34. An application form is specified when:

(i) it is posted on the website of the Chief Secretary's Office of the Isle of Man Government,

(ii) it is marked on the form that it is a specified form for the purpose of the immigration rules,

(iii) it comes into force on the date specified on the form and/or in any accompanying announcement.

34A. Where an application form is specified, the application or claim must also comply with the following requirements:

(i) the application or claim must be made using the specified form,

(ii) any specified fee in connection with the application or claim must be paid in accordance with the method specified in the application form, separate payment form and/or related guidance notes, as applicable,

(iii) any section of the form which is designated as mandatory in the application form and/or related guidance notes must be completed as specified,

(iv) if the application form and/or related guidance notes require the applicant to provide biographical or biometric information, such information must be provided as specified,

(v) an appointment for the purposes stated in subparagraph (iv) must be made and must take place by the dates specified in any subsequent notification by the Lieutenant Governor following receipt of the application, or as agreed by the Lieutenant Governor,

(vi) where the application or claim is made by post or courier, or submitted in person:

(a) the application or claim must be accompanied by the photographs and documents specified as mandatory in the application form and/or related guidance notes, and

(b) the form must be signed by the applicant, and where applicable, the applicant's spouse, civil partner, same-sex partner or unmarried partner, save that where the applicant is under the age of eighteen, the form may be signed by the parent or legal guardian of the applicant on his behalf.

(vii) [NOT USED]

(viii) the application or claim must be delivered in accordance with paragraph 34B.

34B. Where an application form is specified, it must be sent by prepaid post or by courier to or submitted in person at the Isle of Man Immigration Office.

34C. Where an application or claim in connection with immigration for which an application form is specified does not comply with the requirements in paragraph 34A, such application or claim will be invalid and will not be considered.

34D. Where the main applicant wishes to include applications or claims by any members of his family as his dependants on his own application form, the applications or claims of the dependants must meet the following requirements or they will be invalid and will not be considered:

(i) the application form must expressly permit the applications or claims of dependants to be included, and

(ii) such dependants must be the spouse, civil partner, unmarried or same-sex partner and/or children under the age of 18 of the main applicant.

Variation of Applications or Claims for Leave to Remain

34E. If a person wishes to vary the purpose of an application or claim for leave to remain in the Isle of Man and an application form is specified for such new purpose, the variation must comply with the requirements of paragraph 34A (as they apply at the date the variation is made) as if the variation were a new application or claim, or the variation will be invalid and will not be considered.

34F. Any valid variation of a leave to remain application will be decided in accordance with the immigration rules in force at the date such variation is made.

Determination of the date of an application or claim (or variation of an application or claim) in connection with immigration

34G. For the purposes of these rules, the date on which an application or claim (or a variation in accordance with paragraph 34E) is made is as follows:

(i) where the application form is sent by post, the date of posting,

(ii) where the application form is submitted in person, the date on which it is accepted at the public counter of the Isle of Man Immigration Office,

(iii) where the application form is sent by courier, the date on which it is delivered to the Isle of Man Immigration Office.

(iv) [NOT USED]

34H. Applications or claims for leave to remain made before 19th June 2008 for which a form was prescribed prior to 19th June 2008 shall be subject to the forms and procedures as in force on the date on which the application or claim was made.

34I. Where an application or claim is made no more than 21 days after the date on which a form is specified under the immigration rules and on a form that was permitted for such application or claim immediately prior to the date of such specification, the application or claim shall be deemed to have been made on the specified form.

Withdrawn applications or claims for leave to remain in the United Kingdom

34J. Where a person whose application or claim for leave to remain is being considered requests the return of his passport for the purpose of travel outside the common travel area, the application for leave shall, provided it has not already been determined, be treated as withdrawn as soon as the passport is returned in response to that request.'

Undertakings

35. A sponsor of a person seeking leave to enter or variation of leave to enter or remain in the Isle of Man may be asked to give an undertaking in writing to be responsible for that person's maintenance and accommodation for the period of any leave granted, including any further variation. Under the Social Security Administration Act 1992[(d)] the Department of Health and Social Security may seek to recover from the person giving such an undertaking any income support paid to meet the needs of the person in respect of whom the undertaking has been given. Failure by the sponsor to maintain that person in accordance with the undertaking may also be an offence under section 105 of that Act if, as a consequence, income support or an income-based jobseeker's allowance is provided to, or in respect of, that person.

Medical

36. A person who intends to remain in the Isle of Man for more than 6 months should normally be referred to the Medical Inspector for examination. If he produces a medical certificate he should be advised to hand it to the Medical Inspector. Any person seeking entry who mentions health or medical treatment as a reason for his visit, or who appears not to be in good mental or physical health, should also be referred to the Medical Inspector; and the Immigration Officer has discretion, which should be exercised sparingly, to refer for examination in any other case.

37. Where the Medical Inspector advises that a person seeking entry is suffering from a specified disease or condition which may interfere with his ability to support himself or his dependants, the Immigration Officer should take account of this, in conjunction with other factors, in deciding whether to admit that person. The Immigration Officer should also take account of the Medical Inspector's assessment of the likely course of treatment in deciding

whether a person seeking entry for private medical treatment has sufficient means at his disposal.

38. A returning resident should not be refused leave to enter or have existing leave to enter or remain cancelled on medical grounds. But where a person would be refused leave to enter or have existing leave to enter or remain cancelled on medical grounds if he were not a returning resident, or in any case where it is decided on compassionate grounds not to exercise the power to refuse leave to enter or to cancel existing leave to enter or remain, or in any other case where the Medical Inspector so recommends, the Immigration Officer should give the person concerned a notice requiring him to report to the Director of Public Health with a view to further examination and any necessary treatment.

39. The Entry Clearance Officer has the same discretion as an Immigration Officer to refer applicants for entry clearance for medical examination and the same principles will apply to the decision whether or not to issue an entry clearance.

Students

39A. An application for a variation of leave to enter or remain made by a student who is sponsored by a government or international sponsorship agency may be refused if the sponsor has not given written consent to the proposed variation.

PART 2: PERSONS SEEKING TO ENTER OR REMAIN IN THE ISLE OF MAN FOR VISITS

VISITORS

"Requirements for leave to enter as a general visitor

40. For the purposes of paragraphs 41-46 a general visitor includes a person living and working outside the Isle of Man, the United Kingdom or the Channel Islands who comes to the Isle of Man as a tourist. A person seeking leave to enter the Isle of Man as a Business Visitor, which includes Academic Visitors, must meet the requirements of paragraph 46G. A person seeking entry as a Sports Visitor must meet the requirements of paragraph 46M. A person seeking entry as an Entertainer Visitor must meet the requirements of paragraph 46S. A visitor seeking leave to enter for the purposes of marriage must meet the requirements of Paragraph 56D.

41. The requirements to be met by a person seeking entry to the Isle of Man as a general visitor are that he:

(i) is genuinely seeking entry as a general visitor for a limited period as stated by him, not exceeding 6 months,

(ii) intends to leave the Isle of Man at the end of the period of the visit as stated by him,

(iii) does not intend to take employment in the Isle of Man,

(iv) does not intend to produce goods or provide services within the Isle of Man, including the selling of goods or services direct to members of the public,

(v) does not intend to study at a maintained school,

(vi) will maintain and accommodate himself and any dependants adequately out of the resources available to him, without recourse to public funds or taking employment; or will, with any dependants, be maintained and accommodated adequately by relatives or friends,

(vii) can meet the cost of the return or onward journey,

(viii) is not a child under the age of 18,

(ix) does not intend to do any of the activities provided for in paragraphs 46G (iii), 46M (iii) or 46S (iii),

(x) does not, during his visit, intend to marry, or to give notice of marriage,

(xi) does not intend to receive private medical treatment during his visit, and

(xii) is not in transit to a country outside the common travel area.

Leave to enter as a general visitor

42. A person seeking leave to enter the Isle of Man as a general visitor may be admitted for a period not exceeding 6 months, subject to a condition prohibiting employment, provided the Immigration Officer is satisfied that each of the requirements of paragraph 41 is met.

Refusal of leave to enter as a general visitor

43. Leave to enter as a general visitor is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 41 is met.

Requirements for an extension of stay as a general visitor

44. Six months is the maximum permitted leave which may be granted to a general visitor. The requirements for an extension of stay as a general visitor are that the applicant:

(i) meets the requirements of paragraph 41 (ii)-(vii) and (ix)-(xii),

(ii) has not already spent, or would not as a result of an extension of stay spend, more than 6 months in total in the Isle of Man as a general visitor. Any periods spent as a child visitor are to be counted as a period spent as a general visitor, and

(iii) has, or was last granted, entry clearance, leave to enter or leave to remain as a general visitor or as a child visitor.

Extension of stay as a general visitor

45. An extension of stay as a general visitor may be granted, subject to a condition prohibiting employment, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 44 is met.

Refusal of extension of stay as a general visitor

46. An extension of stay as a general visitor is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 44 is met.

Child Visitors

Requirements for leave to enter as a child visitor

46A. The requirements to be met by a person seeking leave to enter the Isle of Man as a child visitor are that he:

(i) is genuinely seeking entry as a child visitor for a limited period asstated by him not exceeding 6 months,

(ii) meets the requirements of paragraph 41(ii)-(iv), (vi), (vii) and (ix)-(xii),

(iii) is under the age of 18,

(iv) can demonstrate that suitable arrangements have been made for his travel to, and reception and care in the Isle of Man,

(v) has a parent or guardian in his home country or country of habitual residence who is responsible for his care,

(vi) if a visa national:

(a) holds a valid Isle of Man entry clearance for entry as an accompanied child visitor and is travelling in the company of the adult identified on his entry clearance, who is on the same occasion being admitted to the Isle of Man, or

(b) holds a valid Isle of Man entry clearance for entry as an unaccompanied child visitor, and

(vii) if he has been accepted for a course of study, this is to be provided by an organisation which is included on the "Register of Education and Training Providers", and which is outside the maintained sector.

Leave to enter as a child visitor

46B A person seeking leave to enter the Isle of Man as a child visitor may be admitted for a period not exceeding 6 months, subject to a condition prohibiting employment, providing that the Immigration Officer is satisfied that each of the requirements of paragraph 46A is met.

Refusal of leave to enter as a child visitor

46C Leave to enter as a child visitor is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 46A is met.

Requirements for an extension of stay as a child visitor

46D. Six months is the maximum permitted leave which may be granted to a child visitor. The requirements for an extension of stay as a child visitor are that the applicant -

(i) meets the requirements of paragraph 41 ii) to (vii) and (ix) to (xii),

(ii) is under the age of 18,

(iii) can demonstrate that there are suitable arrangements for his care in the Isle of Man,

(iv) has a parent or guardian in his home country or country of habitual residence who is responsible for his care,

(v) has not already spent, or would not as a result of an extension of stay spend, more than 6 months in total in the Isle of Man as a child visitor, and

(vi) has, or was last granted, entry clearance, leave to enter or leave to remain as a child visitor.

Extension of stay as a child visitor

46E An extension of stay as a child visitor may be granted, subject to a condition prohibiting employment, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 46D is met.

Refusal of extension of stay as a child visitor

46F An extension of stay as a child visitor is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 46D is met.

Business Visitors

Requirements for leave to enter as a Business Visitor

46G. The requirements to be met by a person seeking leave to enter the Isle of Man as a business visitor are that he:

(i) is genuinely seeking entry as a Business Visitor for a limited period as stated by him;

(a) not exceeding 6 months, or

(b) not exceeding 12 months if seeking entry as an Academic Visitor,

(ii) meets the requirements of paragraphs 41(ii)-(viii) and (x)-(xii),

(iii) intends to do one or more of the following during his visit;

(a) to carry out a "Permissible Activity" as defined in paragraph 6,

(b) to take part in a location shoot as a member of a film crew,

(c) to represent overseas news media including as a journalist, correspondent, producer or cameraman provided he is employed or paid by an overseas company and is gathering information for an overseas publication,

(d) to act as an Academic Visitor but only if he has been working as an academic in an institution of higher education overseas, or in the field of their academic expertise immediately prior to seeking entry,

(e) to act as a Visiting Professor,

(f) to be a secondee from an overseas company which has a contract with an Isle of Man company, provided that he is paid by the overseas company,

(g) to undertake some preaching or pastoral work as a religious worker, provided his base is abroad and he is not taking up an office, post or appointment,

(h) to act as an adviser, consultant, trainer or trouble shooter employed abroad by the same company to which the client firm in the Isle of Man belongs, provided this does not amount to employment paid or unpaid for the Isle of Man branch, or

(i) to undertake specific, one-off training in techniques and work practices used in the Isle of Man, provided this is not on-the-job training.

Leave to enter as a Business Visitor

46H. A person seeking leave to enter to the Isle of Man as a Business Visitor may be admitted for a period not exceeding 6 months, subject to a condition prohibiting employment, provided the Immigration Officer is satisfied that each of the requirements of paragraph 46G is met. A person seeking leave to enter the Isle of Man as an Academic Visitor who does not have entry clearance may, if otherwise eligible, be admitted for a period not exceeding 6 months, subject to a condition prohibiting employment, provided the Immigration Officer is satisfied that each of the requirements of paragraph 46G are met. An Academic Visitor who has entry clearance may be admitted for up to 12 months subject to a condition prohibiting employment.

Refusal of leave to enter as a Business Visitor

46I. Leave to enter as a Business Visitor is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 46G are met.

Requirements for an extension of stay as a Business Visitor

46J. Twelve months is the maximum permitted leave which may be granted to an Academic Visitor and 6 months is the maximum that may be granted to any other form of Business Visitor. The requirements for an extension of stay as a Business Visitor are that the applicant;

(i) meets the requirements of paragraph 46G(ii)-(iii),

(ii) if he is a Business Visitor other than an Academic Visitor, has not already spent, or would not as a result of an extension of stay spend, more than 6 months in total in the Isle of Man as a Business Visitor,

(iii) if he is an Academic Visitor, has not already spent, or would not as a result of an extension of stay spend, more than 12 months in total in the Isle of Man as a Business Visitor, and

(iv) has, or was last granted, entry clearance, leave to enter or leave to remain as a Business Visitor.

Extension of stay as a Business Visitor

46K. An extension of stay as a Business Visitor may be granted, subject to a condition prohibiting employment, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 46J is met.

Refusal of extension of stay as a Business Visitor

46L. An extension of stay as a Business Visitor is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 46J is met.

Sports Visitors

Requirements for leave to enter as a Sports Visitor

46M. The requirements to be met by a person seeking leave to enter the Isle of Man as a Sports Visitor are that he;

(i) is genuinely seeking entry as a Sports Visitor for a limited period as stated by him, not exceeding 6 months,

(ii) meets the requirements of paragraphs 41(ii)-(viii) and (x)-(xii), and

(iii) intends to do one or more of the following during his visit:

(a) to take part in a particular sporting event , tournament or series of events,

(b) to take part in a specific one off charity sporting event, provided no payment is received other than for travelling and other expenses,

(c) to join, as an Amateur, a wholly or predominantly amateur team provided no payment is received other than for board and lodging and reasonable expenses, or

(d) to serve as a member of the technical or personal staff, or as an official, attending the same event as a visiting sportsperson coming for one or more of the purposes listed in (a), (b) or (c).

Leave to enter as a Sports Visitor

46N. A person seeking leave to enter to the Isle of Man as a Sports Visitor may be admitted for a period not exceeding 6 months, subject to a condition prohibiting employment, provided the Immigration Officer is satisfied that each of the requirements of paragraph 46M is met.

Refusal of leave to enter as a Sports Visitor

46O. Leave to enter as a Sports Visitor is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 46M is met.

Requirements for an extension of stay as a Sports Visitor

46P. Six months is the maximum permitted leave which may be granted to a Sports Visitor. The requirements for an extension of stay as a sports visitor are that the applicant -

(i) meets the requirements of paragraph 46M(ii)-(iii),

(ii) has not already spent, or would not as a result of an extension of stay spend, more than 6 months in total in the Isle of Man as a Sports Visitor, and

(iii) has, or was last granted, entry clearance, leave to enter or leave to remain as a Sports Visitor.

Extension of stay as a Sports Visitor

46Q. An extension of stay as a Sports Visitor may be granted, subject to a condition prohibiting employment, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 46P is met.

Refusal of extension of stay as a Sports Visitor

46R. An extension of stay as a Sports Visitor is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 46P is met.

Entertainer Visitors

Requirements for leave to enter as an Entertainer Visitor

46S. The requirements to be met by a person seeking leave to enter the Isle of Man as an Entertainer Visitor are that he;

(i) is genuinely seeking entry as an Entertainer Visitor for a limited period as stated by him, not exceeding 6 months,

(ii) meets the requirements of paragraphs 41(ii)-(viii) and (x)-(xii) and

(iii) intends to do one or more of the following during his visit:

(a) to take part as a professional entertainer in one or more music competitions,

(b) to fulfil one or more specific engagements as either an individual Amateur entertainer or as an Amateur group,

(c) to take part, as an Amateur or professional entertainer, in a cultural event (or one or more of such events),

(d) serve as a member of the technical or personal staff, or of the production team, of an entertainer coming for one or more of the purposes listed in (a), (b), or (c).

Leave to enter as an Entertainer Visitor

46T. A person seeking leave to enter to the Isle of Man as an Entertainer Visitor may be admitted for a period not exceeding 6 months, subject to a condition prohibiting employment, provided the Immigration Officer is satisfied that each of the requirements of paragraph 46S is met.

Refusal of leave to enter as an Entertainer Visitor

46U. Leave to enter as an Entertainer Visitor is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 46S is met.

Requirements for an extension of stay as an Entertainer Visitor

46V. Six months is the maximum permitted leave which may be granted to an Entertainer Visitor. The requirements for an extension of stay as an Entertainer Visitor are that the applicant -

(i) meets the requirements of paragraph 46S(ii)-(iii),

(ii) has not already spent, or would not as a result of an extension of stay spend, more than 6 months in total in the Isle of Man as an Entertainer Visitor, and

(iii) has, or was last granted, entry clearance, leave to enter or leave to remain as an Entertainer Visitor.

Extension of stay as an Entertainer Visitor

46W. An extension of stay as an Entertainer Visitor may be granted, subject to a condition prohibiting employment, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 46V is met.

Refusal of extension of stay as an Entertainer Visitor

46X. An extension of stay as an Entertainer Visitor is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 46V is met.

VISITORS IN TRANSIT

Requirements for admission as a visitor in transit to another country

47. The requirements to be met by a person (not being a member of the crew of a ship, aircraft, hovercraft or hydrofoil) seeking leave to enter the Isle of Man as a visitor in transit to another country are that he:

(i) is in transit to a country outside the common travel area; and

(ii) has both the means and the intention of proceeding at once to another country; and

(iii) is assured of entry there; and
(iv) intends and is able to leave the Isle of Man within 48 hours.

Leave to enter as a visitor in transit

48. A person seeking leave to enter the Isle of Man as a visitor in transit may be admitted for a period not exceeding 48 hours with a prohibition on employment provided the Immigration Officer is satisfied that each of the requirements of paragraph 47 is met.

Refusal of leave to enter as a visitor in transit

49. Leave to enter as a visitor in transit is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 47 is met.

Extension of stay as a visitor in transit

50. The maximum permitted leave which may be granted to a visitor in transit is 48 hours. An application for an extension of stay beyond 48 hours from a person admitted in this category is to be refused.

VISITORS SEEKING TO ENTER OR REMAIN FOR PRIVATE MEDICAL TREATMENT

Requirement for leave to enter as a visitor for private medical treatment

51. The requirements to be met by a person seeking entry to the Isle of Man as a visitor for private medical treatment are that he:

(i) meets the requirements set out in paragraph 41 (iii)-(vii), (ix)-(x) and (xii) for entry as a general visitor, and

(ii) in the case of a person suffering from a communicable disease, has satisfied the Medical Inspector that there is no danger to public health; and

(iii) can show, if required to do so, that any proposed course of treatment is of finite duration; and

(iv) intends to leave the Isle of Man at the end of his treatment; and

(v) can produce satisfactory evidence, if required to do so, of:

(a) the medical condition requiring consultation or treatment; and

(b) satisfactory arrangements for the necessary consultation and treatment at his own expense; and

(c) the estimated costs of such consultation and treatment; and

(d) the likely duration of his visit; and

(e) sufficient funds available to him in the Isle of Man to meet the estimated costs and his undertaking to do so.

Leave to enter as a visitor for private medical treatment

52. A person seeking leave to enter the Isle of Man as a visitor for private medical treatment may be admitted for a period not exceeding 6 months, subject to a condition prohibiting employment, provided the Immigration Officer is satisfied that each of the requirements of paragraph 51 is met.

Refusal of leave to enter as a visitor for private medical treatment

53. Leave to enter as a visitor for private medical treatment is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 51 is met.

Requirements for an extension of stay as a visitor for private medical treatment

54. The requirements for an extension of stay as a visitor to undergo or continue private medical treatment are that the applicant:

(i) meets the requirements set out in paragraph 41(iii)-(vii), (ix)-(x) and (xii) and paragraph 51 (ii)-(v), and

(ii) has produced evidence from a registered medical practitioner who holds an NHS consultant post or who appears in the Specialist Register of the General Medical Council of satisfactory arrangements for private medical consultation or treatment and its likely duration; and, where treatment has already begun, evidence as to its progress; and

(iii) can show that he has met, out of the resources available to him any costs and expenses incurred in relation to his treatment in the Isle of Man; and

(iv) has sufficient funds available to him in the Isle of Man to meet the likely cost of his treatment and intends to meet those costs.

Extension of stay as a visitor for private medical treatment

55. An extension of stay as a visitor to undergo or continue private medical treatment may be granted, with a prohibition on employment, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 54 is met.

Refusal of extension of stay as a visitor for private medical treatment

56. An extension of stay as a visitor to undergo or continue private medical treatment is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 54 is met.

PARENT OF A CHILD AT SCHOOL

Requirements for leave to enter or remain as the parent of a child at school

56A. The requirements to be met by a person seeking leave to enter or remain in the Isle of Man as the parent of a child at school are that:

(i) the parent meets the requirements set out in paragraph 41(ii)-(vii); and

(ii) the child is attending an independent fee paying day school and meets the requirements set out in paragraph 57(i)-(ix); and

(iii) the child is under 12 years of age; and

(iv) the parent can provide satisfactory evidence of adequate and reliable funds for maintaining a second home in the Isle of Man; and

(v) the parent is not seeking to make the Isle of Man his main home.

Leave to enter or remain as the parent of a child at school

56B. A person seeking leave to enter or remain in the Isle of Man as the parent of a child at school may be admitted or allowed to remain for a period not exceeding 12 months, subject to a condition prohibiting employment, provided the Immigration Officer or, in the case of an application for limited leave to remain, the Lieutenant Governor is satisfied that each of the requirements of paragraph 56A is met.

Refusal of leave to enter or remain as the parent of a child at school

56C. Leave to enter or remain in the Isle of Man as the parent of a child at school is to be refused if the Immigration Officer or, in the case of an application for limited leave to remain, the Lieutenant Governor is not satisfied that each of the requirements of paragraph 56A is met.

Visitors seeking to enter for the purposes of marriage

Requirements for leave to enter as a visitor for marriage

56D. The requirements to be met by a person seeking leave to enter the Isle of Man as a visitor for marriage are that he:

(i) meets the requirements set out in paragraph 41 (i) - (ix) and (xi) -(xii), and

(ii) can show that he intends to give notice of marriage, or marry, in the Isle of Man within the period for which entry is sought, and

(iii) can produce satisfactory evidence, if required to do so, of the arrangements for giving notice of marriage, or for his wedding, in the Isle of Man during the period for which entry is sought, and

(iv) holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter as a visitor for marriage

56E. A person seeking leave to enter the Isle of Man as a visitor for marriage may be admitted for a period not exceeding 6 months, subject to a condition prohibiting employment, provided the Immigration Officer is satisfied that each of the requirements of paragraph 56D is met.

Refusal of leave to enter as a visitor for marriage

56F. Leave to enter as a visitor for marriage is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 56D is met.

"[56G – 56M Not Used]"

PART 3: PERSONS SEEKING TO ENTER OR REMAIN IN THE ISLE OF MAN FOR STUDIES

STUDENTS

Requirements for leave to enter as a student

57. The requirements to be met by a person seeking leave to enter the Isle of Man as a student are that he:

"(i) has been accepted for a course of study which is to be provided by or undertaken at an organisation which is included on the Register of Education and Training Providers, and is at either;

(a) a publicly funded institution of further or higher education which maintains satisfactory records of enrolment and attendance of students and supplies these to the Isle of Man Immigration Office when requested; or

(b) a bona fide private education institution; or

(c) an independent fee paying school outside the maintained sector which maintains satisfactory records of enrolment and attendance of students and supplies these to the Isle of Man Immigration Office when requested; and".

(ii) is able and intends to follow either:

(a) a recognised full time degree course at a publicly funded institution of further or higher education; or

(b) a weekday full-time course involving attendance at a single institution for a minimum of 15 hours organised daytime study per week of a single subject, or directly related subjects; or

(c) a full time course of study at an independent fee paying school; and

(iii) if under the age of 16 years is enrolled at an independent fee paying school on a full-time course of studies which meets the requirements of the Education Act 2001(an Act of Tynwald); and

(iv) [DELETED]

(v) [DELETED]

(vi) intends to leave the Isle of Man at the end of his studies; and

(vii) does not intend to engage in business or employment other than

(a) work experience forming an integral part of his studies as certified by the educational establishment at which he is studying, or:

(b) casual work, for a maximum of 20 hours per week during term time or full time during vacations;

In each case before the student commences the employment referred to in sub-paragraphs (a) or (b) above he must produce a valid document issued by the Department of Trade and Industry confirming that he has been granted permission to work as a student in accordance with the Overseas Student Scheme, and

(viii) is able to meet the costs of his course and accommodation and the maintenance of himself and any dependants without taking employment or engaging in business or having recourse to public funds, and

(ix) holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter as a student

58. A person seeking leave to enter the Isle of Man as a student may be admitted for an appropriate period depending on the length of his course of study and his means, and with a condition restricting his freedom to take employment, provided he is able to produce to the Immigration Officer on arrival a valid Isle of Man entry clearance for entry in this capacity.

Refusal of leave to enter as a student

59. Leave to enter as a student is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 57 is met.

Requirements for an extension of stay as a student

60. The requirements for an extension of stay as a student are that the applicant:

"(i) (a) was last admitted to the Isle of Man in possession of a valid student entry clearance in accordance with paragraphs 57–62 of these Rules; or

(b) has previously been granted leave to enter or remain in the Isle of Man to re-sit an examination in accordance with paragraphs 69A-69F of these Rules; or

(c) if he has been accepted on a course of study at degree level or above, has previously been granted leave to enter or remain in the Isle of Man in accordance with paragraphs 128-135 of these Rules; or

(d) has valid leave as a student in accordance with paragraphs 57-62 of these Rules; and".

(ii) meets the requirements for admission as a student set out in paragraph 57 (i)-(viii); and

(iii) has produced evidence of his enrolment on a course which meets the requirements of paragraph 57; and

(iv) can produce satisfactory evidence of regular attendance during any course which he has already begun; or any other course for which he has been enrolled in the past; and

(v) can show evidence of satisfactory progress in his course of study including the taking and passing of any relevant examinations; and

(vi) would not, as a result of an extension of stay, spend more than 2 years on short courses below degree level (i.e. courses of less than 1 years duration, or longer courses broken off before completion); and

(vii) has not come to the end of a period of government or international scholarship agency sponsorship or has the written consent of his official sponsor for a further period of study in the Isle of Man and satisfactory evidence that sufficient sponsorship funding is provided.

Extension of stay as a student

61. An extension of stay as a student may be granted subject to a restriction on his freedom to take employment provided the Lieutenant Governor is satisfied that the applicant meets each of the requirements of paragraph 60.

Refusal of extension of stay as a student

62. An extension of stay as a student is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 60 is met.

STUDENT NURSES

Definition of student nurse

63. For the purposes of these Rules the term student nurse means a person accepted for training as a student nurse or midwife leading to a registered nursing qualification.

Requirements for leave to enter as a student nurse

64. The requirements to be met by a person seeking leave to enter the Isle of Man as a student nurse are that the person:

(i) comes within the definition set out in paragraph 63 above; and

(ii) has been accepted for a course of study in a recognised nursing educational establishment offering nursing training which meets the requirements of the Nursing and Midwifery Council; and

(iii) did not obtain acceptance on the course of study referred to in (ii) by misrepresentation; and

(iv) is able and intends to follow the course; and

(v) does not intend to engage in business or take employment except in connection with the training course; and

(vi) intends to leave the Isle of Man at the end of the course; and

(vii) has sufficient funds available for accommodation and maintenance for himself and any dependants without engaging in business or taking employment (except in connection with the training course) or having recourse to public funds.

Leave to enter the Isle of Man as a student nurse

65. A person seeking leave to enter the Isle of Man as a student nurse may be admitted for the duration of the course, with a restriction on his freedom to take employment, provided the Immigration Officer is satisfied that each of the requirements of paragraph 64 is met.

Refusal of leave to enter as a student nurse

66. Leave to enter as a student nurse is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 64 is met.

Requirements for an extension of stay as a student nurse

67. The requirements for an extension of stay as a student nurse are that the applicant:

(i) was last admitted to the Isle of Man in possession of a valid student entry clearance, or valid prospective student entry clearance in accordance with paragraphs 82 to 87 of these Rules, [if he is a Visa National]; and

(ii) meets the requirements set out in paragraph 64 (i)-(vii); and

(iii) has produced evidence of enrolment at a recognised nursing educational establishment; and

(iv) can provide satisfactory evidence of regular attendance during any course which he has already begun; or any other course for which he has been enrolled in the past; and

(v) would not, as a result of an extension of stay, spend more than 4 years in obtaining the relevant qualification; and

(vi) has not come to the end of a period of government or international scholarship agency sponsorship or has the written consent of his official sponsor for a further period of study in the Isle of Man and evidence that sufficient sponsorship funding is available.

Extension of stay as a student nurse

68. An extension of stay as a student nurse may be granted, subject to a restriction on his freedom to take employment, provided the Lieutenant Governor is satisfied that the applicant meets each of the requirements of paragraph 67.

Refusal of extension of stay as a student nurse

69. An extension of stay as a student nurse is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 67 is met.

RE-SITS OF EXAMINATIONS

Requirements for leave to enter to re-sit an examination

69A. The requirements to be met by a person seeking leave to enter the Isle of Man in order to re-sit an examination are that the applicant:

(i) (a) meets the requirements for admission as a student set out in paragraph 57 (i)-(viii); or

(b) met the requirements for admission as a student set out in paragraph 57 (i)-(iii) in the previous academic year and continues to meet the requirements of paragraph 57 (iv)-(viii); and

(ii) has produced written confirmation from the education institution or independent fee paying school which he attends or attended in the previous academic year that he is required to re-sit an examination; and

(iii) can provide satisfactory evidence of regular attendance during any course which he has already begun; or any other course for which he has been enrolled in the past; and

(iv) has not come to the end of a period of government or international scholarship agency scholarship, or has the written consent of his official sponsor for a further period of study in the Isle of Man and satisfactory evidence that sufficient sponsorship funding is available; and

(v) has not previously been granted leave to re-sit the examination.

Leave to enter to re-sit an examination

69B. A person seeking leave to enter the Isle of Man in order to re-sit an examination may be admitted for a period sufficient to enable him to re-sit the examination at the first available opportunity with a condition restricting his freedom to take employment, provided the Immigration Officer is satisfied that each of the requirements of paragraph 69A is met.

Refusal of leave to enter to re-sit an examination

69C. Leave to enter to re-sit an examination is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 69A is met.

Requirements for an extension of stay to re-sit an examination

69D. The requirements for an extension of stay to re-sit an examination are that the applicant:

(i) was admitted to the Isle of Man with a valid student entry clearance if he was then a visa national; and

(ii) meets the requirements set out in paragraph 69A (i)-(v).

Extension of stay to re-sit an examination

69E. An extension of stay to re-sit an examination may be granted for a period sufficient to enable the applicant to re-sit the examination at the first available opportunity, subject to a restriction on his freedom to take employment, provided the Lieutenant Governor is satisfied that the applicant meets each of the requirements of paragraph 69D.

Refusal of extension of stay to re-sit an examination

69F. An extension of stay to re-sit an examination is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 69D is met.

WRITING UP A THESIS

69G. The requirements to be met by a person seeking leave to enter the Isle of Man in order to write up a thesis are that the applicant:

(i) (a) meets the requirements for admission as a student set out in paragraph 57 (i)-(viii); or

(b) met the requirements for admission as a student set out in paragraph 57 (i)-(iii) in the previous academic year and continues to meet the requirements of paragraph 57 (iv)-(viii); and

(ii) an provide satisfactory evidence that he is a postgraduate student enrolled at an education institution as either a full time, part time or writing up student; and

(iii) can demonstrate that his application is supported by the education institution; and

(iv) has not come to the end of a period of government or international scholarship agency sponsorship, or has the written consent of his official sponsor for a further period of study in the Isle of Man and satisfactory evidence that sufficient sponsorship funding is available; and

(v) has not previously been granted 12 months leave to write up the same thesis.

Leave to enter to write up a thesis

69H. A person seeking leave to enter the Isle of Man in order to write up a thesis may be admitted for 12 months with a condition restricting his freedom to take employment, provided the Immigration Officer is satisfied that each requirement of paragraph 69G is met.

Refusal of leave to enter to write up a thesis

69I. Leave to enter to write up a thesis is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 69G is met.

Requirements for an extension of stay to write up a thesis

69J. The requirements for an extension of stay to write up a thesis are that the applicant:

(i) was admitted to the Isle of Man with a valid student entry clearance if he was then a visa national; and

(ii) meets the requirements set out in paragraph 69G (i)-(v).

Extension of stay to write up a thesis

69K. An extension of stay to write up a thesis may be granted for 12 months subject to a restriction on his freedom to take employment, provided the Lieutenant Governor is satisfied that the applicant meets each of the requirements of paragraph 69J.

Refusal of extension of stay to write up a thesis

69L. An extension of stay to write up a thesis is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 69J is met.

Requirements for leave to enter as an overseas qualified nurse or midwife

69M. The requirements to be met by a person seeking leave to enter as an overseas qualified nurse or midwife are that the applicant:

(i) has obtained confirmation from the Nursing and Midwifery Council that he is eligible:

(a) for admission to the Overseas Nurses Programme; or

(b) to undertake a period of supervised practice; or

(c) to undertake an adaptation programme leading to registration as a midwife; and

(ii) has been offered:

(a) a supervised practice placement through an education provider that is recognised by the Nursing and Midwifery Council; or

(b) a supervised practice placement in a setting approved by the Nursing and Midwifery Council; or

(c) a midwifery adaptation programme placement in a setting approved by the Nursing and Midwifery Council; and

(iii) did not obtain acceptance of the offer referred to in paragraph 69 (ii) by misrepresentation; and

(iv) is able and intends to undertake the supervised practice placement or midwife adaptation programme; and

(v) does not intend to engage in business or take employment, except:

(a) in connection with the supervised practice placement or midwife adaptation programme; or

(b) part-time work of a similar nature to the work undertaken on the supervised practice placement or midwife adaptation programme; and

(vi) is able to maintain and accommodate himself and any dependants without recourse to public funds.

Leave to enter the Isle of Man as an overseas qualified nurse or midwife

69N. Leave to enter the Isle of Man as an overseas qualified nurse or midwife may be granted for a period not exceeding 18 months, provided the Immigration Officer is satisfied that each of the requirements of paragraph 69M is met.

Refusal of leave to enter as an overseas qualified nurse or midwife

69O. Leave to enter the Isle of Man as an overseas qualified nurse or midwife is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 69M is met.

Requirements for an extension of stay as an overseas qualified nurse or midwife

69P. The requirements to be met by a person seeking an extension of stay as an overseas qualified nurse or midwife are that the applicant:

(i) [NOT USED]

(ii) has leave to enter or remain in the Isle of Man as a student in accordance with paragraphs 57 to 69L of these Rules; or

(iii) [DELETED]

(iv) has leave to enter or remain as an overseas qualified nurse or midwife in accordance with paragraphs 69M - 69R of these Rules; and

(v) meets the requirements set out in paragraph 69M (i) - (vi); and

(vi) can provide satisfactory evidence of regular attendance during any previous period of supervised practice or midwife adaptation course; and

(vii) if he has previously been granted leave:

(a) as an overseas qualified nurse or midwife under paragraphs 69M-69R of these Rules, or

(b) to undertake an adaptation course as a student nurse under paragraphs 63 - 69 of these Rules;

is not seeking an extension of stay in this category which, when amalgamated with those previous periods of leave, would total more than 18 months; and

(viii) if his previous studies, supervised practice placement or midwife adaptation programme placement were sponsored by a government or international scholarship agency, he has the written consent of his official sponsor to remain in the Isle of Man as an overseas qualified nurse or midwife.

Extension of stay as an overseas qualified nurse or midwife

69 Q. An extension of stay as an overseas qualified nurse or midwife may be granted for a period not exceeding 18 months, provided that the Lieutenant Governor is satisfied that each of the requirements of paragraph 69P is met.

Refusal of extension of stay as an overseas qualified nurse or midwife

69 R. An extension of stay as an overseas qualified nurse or midwife is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 69P is met.

POSTGRADUATE DOCTORS, DENTISTS AND TRAINEE GENERAL PRACTITIONERS

Requirements for leave to enter the Isle of Man as a postgraduate doctor or dentist

70. The requirements to be met by a person seeking leave to enter the Isle of Man as a postgraduate doctor or dentist are that the applicant –

(i) has successfully completed and obtained a recognised United Kingdom degree in medicine or dentistry from either -

(a) a United Kingdom publicly funded institution of further or higher education; or

(b) a United Kingdom bona fide private education institution which maintains satisfactory records of enrolment and attendance; and

(ii) has previously been granted leave -

(a) in accordance with paragraphs 57 to 69L of these Rules for the final academic year of the studies referred to in (i) above; and

(b) as a student under paragraphs 57 to 62 of these Rules for at least one other academic year (aside from the final year) of the studies referred to in (i) above; and

(iii) holds a letter from the Postgraduate Dean confirming he has a full-time place on a recognised Foundation Programme; and

(iv) intends to train full time in his post on the Foundation Programme; and

(v) is able to maintain and accommodate himself and any dependants without recourse to public funds; and

(vi) intends to leave the Isle of Man if, on expiry of his leave under this

paragraph, he has not been granted leave to remain in the Isle of Man as –

(a) a doctor or dentist undertaking a period of clinical attachment or a dental observer post in accordance with paragraphs 75G to 75M of these Rules; or

(ba) a Tier 1 (General) Migrant or Tier 1 (Entrepreneur) Migrant; or

(b) a work permit holder in accordance with paragraphs 128 to 135 of these Rules; or

(c) highly skilled migrant in accordance with paragraphs 135A to 135H of these Rules; or

(d) a person intending to establish themselves in business in accordance with paragraphs 200 to 210 of these Rules; or

(e) [NOT USED]

(vii) if his study at medical school or dental school, or any subsequent studies he has undertaken, were sponsored by a government or international scholarship agency, he has the written consent of his sponsor to enter or remain in the Isle of Man as a postgraduate doctor or dentist; and

(viii) has completed his medical or dental degree in the 12 months preceding this application; and

(ix) if he has previously been granted leave as a postgraduate doctor or dentist, is not seeking leave to enter to a date beyond 3 years from that date on which he was first granted leave to enter or remain in this category; and

(x) holds a valid entry clearance for entry in this capacity except where he is a British National (Overseas), a British overseas territories citizen, a British Overseas citizen, a British protected person or a person who under the British Nationality Act 1981 is a British subject.

Leave to enter as a postgraduate doctor or dentist

71. Leave to enter the Isle of Man as a postgraduate doctor or dentist may be granted for the duration of the Foundation Programme, for a period not exceeding 26 months, provided the Immigration Officer is satisfied that each of the requirements of paragraph 70 is met.

Refusal of leave to enter as a postgraduate doctor or dentist

72. Leave to enter as a postgraduate doctor or dentist is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 70 is met.

Requirements for an extension of stay as a postgraduate doctor or dentist

73. The requirements to be met by a person seeking an extension of stay as a postgraduate doctor or dentist are that the applicant –

(i) meets the requirements of paragraph 70 (i) to (vii); and

(ii) has leave to enter or remain in the Isle of Man as either –

(a) a student in accordance with paragraphs 57 to 69L of these

Rules; or

(b) as a postgraduate doctor or dentist in accordance with paragraphs 70 to 75 of these Rules; or

(c) as a doctor or dentist undertaking a period of clinical attachment or a dental observer post in accordance with paragraphs 75G to 75M of these Rules; and

(iii) if he has not previously been granted leave in this category, has completed his medical or dental degree in the last 12 months; and

(iv) would not, as a result of an extension of stay, remain in the Isle of Man as a postgraduate doctor or dentist to a date beyond 3 years from the date on which he was first given leave to enter or remain in this capacity.

Extension of stay as a postgraduate doctor or dentist

74. An extension of stay as a postgraduate doctor or dentist may be granted for the duration of the Foundation Programme, for a period not exceeding 3 years, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 73 is met.

Refusal of an extension of stay as a postgraduate doctor or dentist

75. An extension of stay as a postgraduate doctor or dentist is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 73 is met.".

Requirements for leave to enter the Isle of Man to take the PLAB Test

75A. The requirements to be met by a person seeking leave to enter in order to take the PLAB Test are that the applicant:

(i) is a graduate from a medical school and intends to take the PLAB Test in the United Kingdom; and

(ii) can provide documentary evidence of a confirmed test date or of his eligibility to take the PLAB Test; and

(iii) meets the requirements of paragraph 41 (iii) - (vii) for entry as a visitor; and

(iv) intends to leave the Isle of Man at the end of his leave granted under this paragraph unless he is successful in the PLAB Test and granted leave to remain:

(a) as a postgraduate doctor or trainee general practitioner in accordance with paragraphs 70 to 75; or

(b) to undertake a clinical attachment in accordance with paragraphs 75G to 75M of these Rules; or

(c) as a work permit holder for employment in the Isle of Man as a doctor in accordance with paragraphs 128 to 135; or

(d) as a doctor under the highly skilled migrant programme in accordance with paragraphs 135A to 135H.

Leave to enter to take the PLAB Test

75B. A person seeking leave to enter the Isle of Man to take the PLAB Test may be admitted for a period not exceeding 6 months, provided the Immigration Officer is satisfied that each of the requirements of paragraph 75A is met.

Refusal of leave to enter to take the PLAB Test

75C Leave to enter the Isle of Man to take the PLAB Test is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 75A is met.

Requirements for an extension of stay in order to take the PLAB Test

75D. The requirements for an extension of stay in the Isle of Man in order to take the PLAB Test are that the applicant:

(i) was given leave to enter the Isle of Man for the purposes of taking the PLAB Test in accordance with paragraph 75B of these Rules; and

(ii) intends to take the PLAB Test and can provide documentary evidence of a confirmed test date; and

(iii) meets the requirements set out in paragraph 41 (iii)-(vii); and

(iv) intends to leave the Isle of Man at the end of his leave granted under this paragraph unless he is successful in the PLAB Test and granted leave to remain:

(a) as a postgraduate doctor or trainee general practitioner in accordance with paragraphs 70 to 75; or

(b) to undertake a clinical attachment in accordance with paragraphs 75G to 75M of these Rules; or

(c) as a work permit holder for employment in the Isle of Man as a doctor in accordance with paragraphs 128 to 135; or

(d) as a doctor under the highly skilled migrant programme in accordance with paragraphs 135A to 135H; and

(v) would not as a result of an extension of stay spend more than 18 months in the Isle of Man for the purpose of taking the PLAB Test.

Extension of stay to take the PLAB Test

75E. A person seeking leave to remain in the Isle of Man to take the PLAB Test may be granted an extension of stay for a period not exceeding 6 months, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 75D is met.

Refusal of extension of stay to take the PLAB Test

75F. Leave to remain in the Isle of Man to take the PLAB Test is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 75D is met.

Requirements for leave to enter to undertake a clinical attachment or dental observer post

75G. The requirements to be met by a person seeking leave to enter to undertake a clinical attachment or dental observer post are that the applicant:

(i) is a graduate from a medical or dental school and intends to undertake a clinical attachment or dental observer post in the Isle of Man; and

(ii) can provide documentary evidence of the clinical attachment or dental observer post which will:

(a) be unpaid; and

(b) only involve observation, not treatment, of patients; and

(iii) meets the requirements of paragraph 41 (iii) - (vii) of these Rules; and

(iv) intends to leave the Isle of Man at the end of his leave granted under this paragraph unless he is granted leave to remain:

(a) as a postgraduate doctor, dentist or trainee general practitioner in accordance with paragraphs 70 to 75; or

(b) as a work permit holder for employment in the Isle of Man as a doctor or dentist in accordance with paragraphs 128 to 135; or

(c) as a General Practitioner under the highly skilled migrant programme in accordance with paragraphs 135A to 135H, and

(v) if he has previously been granted leave in this category, is not seeking leave to enter which, when amalgamated with those previous periods of leave, would total more than 6 months.

Leave to enter to undertake a clinical attachment or dental observer post

75H. A person seeking leave to enter the Isle of Man to undertake a clinical attachment or dental observer post may be admitted for the period of the clinical attachment or dental observer post, up to a maximum of 6 weeks at a time or six months in total in this category, provided the Immigration Officer is satisfied that each of the requirements of paragraph 75G is met.

Refusal of leave to enter to undertake a clinical attachment or dental observer post

75J. Leave to enter the Isle of Man to undertake a clinical attachment or dental observer post is to be refused if the Immigration Officer is not satisfied that each of the requirements

of paragraph 75G is met.

Requirements for an extension of stay in order to undertake a clinical attachment or dental observer post

75K. The requirements to be met by a person seeking an extension of stay to undertake a clinical attachment or dental observer post are that the applicant:

(i) was given leave to enter or remain in the Isle of Man to undertake a clinical attachment or dental observer post or:

(a) for the purposes of taking the PLAB Test in accordance with paragraphs 75A to 75F and has passed both parts of the PLAB Test; or

(b) as a postgraduate doctor, dentist or trainee general practitioner in accordance with paragraphs 70 to 75; or

(c) as a work permit holder for employment in the Isle of Man as a doctor or dentist in accordance with paragraphs 128 to 135; and

(ii) is a graduate from a medical or dental school and intends to undertake a clinical attachment or dental observer post in the Isle of Man; and

(iii) can provide documentary evidence of the clinical attachment or dental observer post which will:

(a) be unpaid; and

(b) only involve observation, not treatment, of patients; and

(iv) intends to leave the Isle of Man at the end of his period of leave granted under this paragraph unless he is granted leave to remain:

(a) as a postgraduate doctor, dentist or trainee general practitioner in accordance with paragraphs 70 to 75; or

(b) as a work permit holder for employment in the Isle of Man as a doctor or dentist in accordance with paragraphs 128 to 135; or

(c) as a General Practitioner under the highly skilled migrant programme in accordance with paragraphs 135A to 135H.; and

(v) meets the requirements of paragraph 41 (iii) - (vii) of these Rules, and

(vi) if he has previously been granted leave in this category, is not seeking an extension of stay which, when amalgamated with those previous periods of leave, would total more than 6 months.

Extension of stay to undertake a clinical attachment or dental observer post

75L. A person seeking leave to remain in the Isle of Man to undertake a clinical attachment or dental observer post may be granted an extension of stay for the period of

their clinical attachment or dental observer post up to a maximum of 6 weeks at a time or 6 months in total in this category, provided that the Lieutenant Governor is satisfied that each of the requirements of paragraph 75K is met.

Refusal of extension of stay to undertake a clinical attachment or dental observer post

75M. Leave to remain in the Isle of Man to undertake a clinical attachment or dental observer post is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 75K is met.

SPOUSES OR CIVIL PARTNERS OF STUDENTS

Requirements for leave to enter or remain as the spouse or civil partner of a student

76. The requirements to be met by a person seeking leave to enter or remain in the Isle of Man as the spouse or civil partner of a student are that:

(i) the applicant is married to, or the civil partner of, a person admitted to or allowed to remain in the Isle of Man under paragraphs 57-75; or 82-87 and

(ii) each of the parties intends to live with the other as his or her spouse or civil partner during the applicant's stay and the marriage or civil partnership is subsisting; and

(iii) there will be adequate accommodation for the parties and any dependants without recourse to public funds; and

(iv) the parties will be able to maintain themselves and any dependants adequately without recourse to public funds; and

(v) the applicant does not intend to take employment except as permitted under paragraph 77 below; and

vi) the applicant intends to leave the Isle of Man at the end of any period of leave granted to him.

Leave to enter or remain as the spouse or civil partner of a student

77. A person seeking leave to enter or remain in the Isle of Man as the spouse or civil partner of a student may be admitted or allowed to remain for a period not in excess of that granted to the student provided the Immigration Officer or, in the case of an application for limited leave to remain, the Lieutenant Governor is satisfied that each of the requirements of paragraph 76 is met. Employment may be permitted where the period of leave granted to the student is, or was, 12 months or more.

Refusal of leave to enter or remain as the spouse or civil partner of a student

78. Leave to enter or remain as the spouse or civil partner of a student is to be refused if the Immigration Officer or, in the case of an application for limited leave to remain, the Lieutenant Governor, is not satisfied that each of the requirements of paragraph 76 is met.

CHILDREN OF STUDENTS

Requirements for leave to enter or remain as the child of a student

79. The requirements to be met by a person seeking leave to enter or remain in the Isle of Man as the child of a student are that he:

(i) is the child of a parent admitted to or allowed to remain in the Isle of Man as a student under paragraphs 57-75; and

(ii) is under the age of 18 or has current leave to enter or remain in this capacity; and

(iii) is unmarried, has not formed an independent family unit and is not leading an independent life; and

(iv) can, and will, be maintained and accommodated adequately without recourse to public funds; and

(v) will not stay in the Isle of Man beyond any period of leave granted to his parent.

Leave to enter or remain as the child of a student

80. A person seeking leave to enter or remain in the Isle of Man as the child of a student may be admitted or allowed to remain for a period not in excess of that granted to the student provided that the Immigration Officer or, in the case of an application for limited leave to remain, the Lieutenant Governor, is satisfied that each of the requirements of paragraph 79 is met. Employment may be permitted where the period of leave granted to the student is, or was, 12 months or more.

Refusal of leave to enter or remain as the child of a student

81. Leave to enter or remain in the Isle of Man as the child of a student is to be refused if the Immigration Officer or, in the case of an application for leave to remain, the Lieutenant Governor, is not satisfied that each of the requirements of paragraph 79 is met.

[82 – 87F Not Used]

PART 4: PERSONS SEEKING TO ENTER OR REMAIN IN THE ISLE OF MAN IN AN "AU PAIR" PLACEMENT, AS A WORKING HOLIDAYMAKER OR FOR TRAINING OR WORK EXPERIENCE

"AU PAIR" PLACEMENTS

88. to 94. [DELETED]

WORKING HOLIDAYMAKERS

95. TO 97. [DELETED]

[98 Not Used]

[99 Not Used]

[100 Not Used]

CHILDREN OF WORKING HOLIDAYMAKERS

101. TO 103. [DELETED]

[104-109 Not Used]

TEACHERS AND LANGUAGE ASSISTANTS COMING TO THE ISLE OF MAN UNDER APPROVED EXCHANGE SCHEMES

110. TO 116. [DELETED]

DEPARTMENT OF TRADE AND INDUSTRY APPROVED TRAINING OR WORK EXPERIENCE

117. to 121. [DELETED]

SPOUSES OR CIVIL PARTNERS OF PERSONS WITH LIMITED LEAVE TO ENTER OR REMAIN UNDER PARAGRAPHS 110-121

Requirements for leave to enter or remain as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under Paragraphs 110-121

122. The requirements to be met by a person seeking leave to enter or remain in the Isle of Man as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121 are that:

(i) the applicant is married to, or the civil partner of, a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121; and

(ii) each of the parties intends to live with the other as his or her spouse or civil partner during the applicant's stay and the marriage or civil partnership is subsisting; and

(iii) there will be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively; and

(iv) the parties will be able to maintain themselves and any dependants adequately without recourse to public funds; and

(v) the applicant does not intend to stay in the Isle of Man beyond any period of leave granted to his spouse or civil partner; and

(vi) if seeking leave to enter, the applicant holds a valid Isle of Man entry clearance for entry in this capacity or, if seeking leave to remain, was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter or remain as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121

123. A person seeking leave to enter or remain in the Isle of Man as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121 may be given leave to enter or remain the Isle of Man for a period of leave not in excess of that granted to the person with limited leave to enter or remain under paragraphs 110-121 provided that, in relation to an application for leave to enter, he is able, on arrival, to produce to the Immigration Officer a valid Isle of Man entry clearance for entry in this capacity or, in the case of an application for limited leave to remain, was admitted with a valid Isle of Man entry clearance for entry in this capacity and is able to satisfy the Lieutenant Governor that each of the requirements of paragraph 122 (i)-(v) is met.

Refusal of leave to enter or remain as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121

124. Leave to enter or remain as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121 is to be refused if, in relation to an application for leave to enter, a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival or, in the case of an application for limited leave to remain, if the applicant was not admitted with a valid Isle of Man entry clearance for entry in this capacity or is unable to satisfy the Lieutenant Governor that each of the requirements of paragraph 122 (i)-(v) is met.

CHILDREN OF PERSONS WITH LIMITED LEAVE TO ENTER OR REMAIN UNDER PARAGRAPHS 110-121

Requirements for leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121

125. The requirements to be met by a person seeking leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121 are that:

(i) he is the child of a parent who has limited leave to enter or remain in the Isle of Man under paragraphs 110-121; and

(ii) he is under the age of 18 or has current leave to enter or remain in this capacity; and-

(iii) he is unmarried, and is not a civil partner, has not formed an independent family unit and is not leading an independent life; and

(iv) he can, and will be, maintained and accommodated adequately without recourse to public funds in accommodation which his parent(s) own or occupy exclusively; and

(v) he will not stay in the Isle of Man beyond any period of leave granted to his parent(s); and

(vi) both parents are being or have been admitted to or allowed to remain in the Isle of Man save where:

(a) the parent he is accompanying or joining is his sole surviving parent; or

(b) the parent he is accompanying or joining has had sole responsibility for his upbringing; or

(c) there are serious and compelling family or other considerations which make exclusion from the Isle of Man undesirable and suitable arrangements have been made for his care; and

(vii) if seeking leave to enter, he holds a valid Isle of Man entry clearance for entry in this capacity or, if seeking leave to remain, was admitted with a valid Isle of Man entry clearance in this capacity.

Leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121

126. A person seeking leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121 may be given leave to enter or remain in the Isle of Man for a period of leave not in excess of that granted to the person with limited leave to enter or remain under paragraphs 110-121 provided that, in relation to an application for leave to enter, he is able, on arrival, to produce to the Immigration Officer a valid Isle of Man entry clearance for entry in this capacity or, in the case of an application for limited leave to remain in the Isle of Man, he was admitted with a valid Isle of Man entry clearance for entry in this capacity and is able to satisfy the Lieutenant Governor that each of the requirements of paragraph 125 (i)-(vi) is met.

Refusal of leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121

127. Leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 110-121 is to be refused if, in relation to an application for leave to enter, a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival, or, in the case of an application for limited leave to remain, if the applicant was not admitted with a valid Isle of Man entry clearance for entry in this capacity or is unable to satisfy the Lieutenant Governor that each of the requirements of paragraph 125 (i)-(vi) is met.

PART 5: PERSONS SEEKING TO ENTER OR REMAIN IN THE ISLE OF MAN FOR EMPLOYMENT

WORK PERMIT EMPLOYMENT

Requirements for leave to enter the Isle of Man for work permit employment

128. The requirements to be met by a person coming to the Isle of Man to seek or take employment (unless he is otherwise eligible for admission for employment under these Rules or is eligible for admission as a seaman under contract to join a ship due to leave British waters) are that he;

(i) holds a valid Department of Trade and Industry work permit; and

(ii) is not of an age which puts him outside the limits for employment; and

(iii) is capable of undertaking the employment specified in the work permit; and

(iv) does not intend to take employment except as specified in his work permit; and

(v) is able to maintain and accommodate himself and any dependants adequately without recourse to public funds; and

(vi) in the case of a person in possession of a work permit which is valid for a period of 12 months or less intends to leave the Isle of Man at the end of his approved employment; and

(vii) holds a valid Isle of Man entry clearance for entry in this capacity except where he holds a work permit valid for six month's or less or he is a British National (Overseas), a British overseas territories citizen, a British Overseas citizen, a British protected person or a person who under the British Nationality Act 1981 is a British subject.

Leave to enter for work permit employment

129. A person seeking leave to enter the Isle of Man for the purpose of work permit employment may be admitted for a period not exceeding the period of employment approved by the Department of Trade and Industry (as specified in his work permit), subject to a condition restricting him to that approved employment, provided he is able to produce to the Immigration Officer, on arrival, a valid Isle of Man entry clearance for entry in this capacity or, where entry clearance is not required, provided that the Immigration Officer is satisfied that each of the requirements of paragraph 128(i) - (vi) are met.

Refusal of leave to enter as a work permit holder

130. Leave to enter for the purpose of work permit employment is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival or, where entry clearance is not required, if the Immigration Officer is not satisfied that each of the requirements of paragraph 128(i) – (vi) are met.

Requirements for an extension of stay for work permit employment

131. The requirements for an extension of stay to seek or take employment (unless the applicant is otherwise eligible for an extension of stay for employment under these Rules) are that the applicant:

(i) entered the Isle of Man with a valid work permit under paragraph 129, and

(ii) has written approval from the Department of Trade and Industry for the continuation of his employment; and

(iii) meets the requirements of paragraph 128 (ii)-(v).

131A The requirements for an extension of stay to take employment (unless the applicant is otherwise eligible for an extension of stay for employment under these Rules) for a student are that the applicant:

(i) entered the Isle of Man or was given leave to remain as a student in accordance with paragraphs 57 to 62 of these Rules; and

(ii) has obtained a degree qualification on a recognised degree course at either an Isle of Man or United Kingdom publicly funded further or higher education institution or a bona fide Isle of Man or United Kingdom private education institution which maintains satisfactory records of enrolment and attendance; and

(iii) holds a valid Department of Trade and Industry work permit; and

(iv) has the written consent of his official sponsor to such employment if he is a member of a government or international scholarship agency sponsorship and that sponsorship is either ongoing or has recently come to an end at the time of the requested extension; and

(v) meets each of the requirements of paragraph 128 (ii) to (vi).

131B The requirements for an extension of stay to take employment (unless the applicant is otherwise eligible for an extension of stay for employment under these Rules) for a student nurse, overseas qualified nurse or midwife, postgraduate doctor or postgraduate dentist are that the applicant:

(i) entered the Isle of Man or was given leave to remain as a student nurse in accordance with paragraphs 63 to 69 of these Rules; or

(ia) entered the Isle of Man or was given leave to remain as an overseas qualified nurse or midwife in accordance with paragraphs 69M to 69R of these Rules; and

(ii) entered the Isle of Man or was given leave to remain as a postgraduate doctor or a postgraduate dentist in accordance with paragraphs 70 to 75 of these Rules; and

(iii) holds a valid Department of Trade and Industry immigration employment document for employment as a nurse, doctor or dentist; and

(iv) has the written consent of his official sponsor to such employment if he is a member of a government or international scholarship agency sponsorship and that sponsorship is either ongoing or has recently come to an end at the time of the requested extension; and

(v) meets each of the requirements of paragraph 128 (ii) to (vi).

[131C Not Used]

131D The requirements for an extension of stay to take employment (unless the applicant is otherwise eligible for an extension of stay for employment under these Rules) for a working holidaymaker are that the applicant:

(i) entered the Isle of Man as working holidaymaker in accordance with paragraphs 95 to 96 of these Rules; and

(ii) he has spent more than 12 months in total in the Isle of Man in this capacity; and

(iii) holds a valid Department of Trade and Industry work permit for employment in an occupation listed on the Work Permits (UK) shortage occupations list; and

(iv) meets each of the requirements of paragraph 128 (ii) to (vi).

131E. The requirements for an extension of stay to take employment for a highly skilled migrant are that the applicant:

(i) entered the Isle of Man or was given leave to remain as a highly skilled migrant in accordance with paragraphs 135A to 135E of these Rules; and

(ii) holds a valid work permit; and

(iii) meets each of the requirements of paragraph 128(ii) to (vi).

131F The requirements for an extension of stay to take employment (unless the applicant is otherwise eligible for an extension of stay for employment under these Rules) for an Innovator are that the applicant:

(i) entered the United Kingdom or was given leave to remain in the United Kingdom as an innovator in accordance with the United Kingdom Immigration Rules; and

(ii) holds a valid Department of Trade & Industry work permit; and

(iii) meets each of the requirements of paragraph 128(ii) to (vi).

131G. The requirements for an extension of stay to take employment (unless the applicant is otherwise eligible for an extension of stay for employment under these Rules) for an individual who has leave to enter or leave to remain in the Isle of Man to take the PLAB Test or to undertake a clinical attachment or dental observer post are that the applicant:

(i) entered the Isle of Man or was given leave to remain for the purposes of taking the PLAB Test in accordance with paragraphs 75A to 75F of these Rules; or

(ii) entered the Isle of Man or was given leave to remain to undertake a clinical attachment or dental observer post in accordance with paragraphs 75G to 75M of these Rules; and

(iii) holds a valid Department of Trade and Industry work permit for employment as a doctor or dentist; and

(iv) meets each of the requirements of paragraph 128 (ii) to (vi).

131H [NOT USED]

131I. The requirements for an extension of stay to take employment in the Isle of Man for a person with leave to enter or remain in the UK as a Tier 1 Migrant are that the applicant:

(i) entered the UK or was given leave to remain as a Tier 1 Migrant,

(ii) holds a valid Immigration Employment Document , and

(iii) meets each of the requirements of paragraph 128(ii) to (vi).

And for the purposes of this paragraph "Tier 1 Migrant" shall be construed in accordance with the United Kingdom Immigration Rules.

Extension of stay for work permit employment

132. An extension of stay for work permit employment may be granted for a period not exceeding the period of approved employment recommended by the Department of Trade and Industry provided the Lieutenant Governor is satisfied that each of the requirements of paragraphs 131, 131A, 131B, 131C, 131D, 131E, 131F, or 131G is met. An extension of stay is to be subject to a condition restricting the applicant to employment approved by the Department of Trade and Industry.

Refusal of extension of stay for employment

133. An extension of stay for employment is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraphs 131, 131A, 131B, 131C, 131D, 131E, 131F, or 131G is met (unless the applicant is otherwise eligible for an extension of stay for employment under these Rules).

Indefinite leave to remain for a work permit holder

134. Indefinite leave to remain may be granted, on application, to a person admitted as a work permit holder provided:

(i) he has spent a continuous period of 5 years in the Isle of Man in this capacity; and

(ii) he has met the requirements of paragraph 131,131A, 131B, 131C, 131D, 131E or 131F throughout the five year period; and.

(iii) he is still required for the employment in question, as certified by his

employer, and

(iv) he has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application.

Refusal of indefinite leave to remain for a work permit holder

135. Indefinite leave to remain in the Isle of Man as a work permit holder is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 134 is met.

Highly skilled migrants

135A. to 135F.[DELETED]

Requirements for indefinite leave to remain as a highly skilled migrant

135G. The requirements for indefinite leave to remain for a person who has been granted leave as a highly skilled migrant are that the applicant:

(i) has spent a continuous period of 5 years lawfully in the Isle of Man, of which the most recent period must have been spent with leave as a highly skilled migrant (in accordance with paragraphs 135A to 135F of these Rules), and the remainder must be made up of leave as a highly skilled migrant or leave as a work permit holder (under paragraphs 128 to 133 of these Rules), and

(ii) throughout the five years spent in the Isle of Man has been able to maintain and accommodate himself and any dependants adequately without recourse to public funds; and

(iii) is lawfully economically active in the Isle of Man in employment, self-employment or a combination of both; and

(iv) has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application.

Indefinite leave to remain as a highly skilled migrant

135GA Indefinite leave to remain may be granted provided that the Lieutenant Governor is satisfied that each of the requirements of paragraph 135G is met and that the application does not fall for refusal under paragraph 135HA.

Refusal of indefinite leave to remain as a highly skilled migrant

135H. Indefinite leave to remain in the Isle of Man is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 135G is met or if the application falls for refusal under paragraph 135HA.

Additional grounds for refusal for highly skilled migrants

135HA An application under paragraphs 135A-135C or 135G-135H of these Rules is to be refused, even if the applicant meets all the requirements of those paragraphs, if the Immigration Officer or Lieutenant Governor has cause to doubt the genuineness of any document submitted by the applicant and, having taken reasonable steps to verify the document, has been unable to verify that it is genuine.

[135I – 135T Not Used]

[136-159 Not Used]

DOMESTIC WORKERS IN PRIVATE HOUSEHOLDS

Requirement for leave to enter as a domestic worker in a private household

159A. The requirements to be met by a person seeking leave to enter the Isle of Man as a domestic worker in a private household are that he:

(i) is aged 18-65 inclusive; and

(ii) has been employed as a domestic worker for one year or more immediately prior to application for entry clearance under the same roof as his employer or in a household that the employer uses for himself on a regular basis and where there is evidence that there is a connection between employer and employee; and

(iii) that he intends to travel to the Isle of Man in the company of his employer, his employer's spouse or civil partner or his employer's minor child; and

(iv) intends to work full time as a domestic worker under the same roof as his employer or in a household that the employer uses for himself on a regular basis and where there is evidence that there is a connection between employer and employee; and

(v) does not intend to take employment except within the terms of this paragraph; and

(vi) can maintain and accommodate himself adequately without recourse to public funds; and

(vii) holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter as a domestic worker in a private household

159B. A person seeking leave to enter the Isle of Man as a domestic worker in a private household may be given leave to enter for that purpose for a period not exceeding 12 months provided that he is able to produce to the Immigration Officer, on arrival, a valid Isle of Man entry clearance for entry in this capacity.

Refusal of leave to enter as a domestic worker in a private household

159C. Leave to enter as a domestic worker in a private household is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival.

Requirements for extension of stay as a domestic worker in a private household

159D. The requirements for an extension of stay as a domestic worker in a private household are that the applicant:

(i) entered the Isle of Man with a valid Isle of Man entry clearance as a domestic worker in a private household; and

(ii) has continued to be employed for the duration of his leave as a domestic worker in a private household; and

(iii) continues to be required for employment for the period of the extension sought as a domestic worker in a private household within the terms of paragraph 159A as certified by his current employer; and

(iv) meets the requirements of paragraph 159A (i) to (vii).

Extension of stay as a domestic worker in a private household

159E. An extension of stay as a domestic worker in a private household may be granted for a period not exceeding 12 months provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 159D is met.

Refusal of extension of stay as a domestic worker in a private household

159F. An extension of stay as a domestic worker may be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 159D is met.

Indefinite leave to remain for a domestic worker in a private household

159G. Indefinite leave to remain may be granted, on application, to a domestic worker in a private household provide that;

(i) he has spent a continuous period of 5 years in the Isle of Man employed in this capacity; and

(ii) he has met the requirements of paragraph 159A throughout the 5 year period; and

(iii) he is still required for the employment as a domestic worker in a private household as certified by the employer, and

(iv) has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application.

Refusal of indefinite leave to remain for a domestic worker in a private household

159H. Indefinite leave to remain in the Isle of Man for a domestic worker in a private household is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 159G is met.

[160-168 Not Used]

MINISTERS OF RELIGION, MISSIONARIES AND MEMBERS OF RELIGIOUS ORDERS

169. For the purposes of these Rules:

(i) a minister of religion means a religious functionary whose main regular duties comprise the leading of a congregation in performing the rites and rituals of the faith and in preaching the essentials of the creed;

(ii) a missionary means a person who is directly engaged in spreading a religious doctrine and whose work is not in essence administrative or clerical;

(iii) a member of a religious order means a person who is coming to live in a community run by that order.

Requirements for leave to enter as a minister of religion, missionary, or member of a religious order

170. The requirements to be met by a person seeking leave to enter the Isle of Man as a minister of religion, missionary or member of a religious order are that he:

(i) (a) if seeking leave to enter as a minister of religion has either been working for at least one year as a minister of religion in any of the 5 years immediately prior to the date on which the application is made or, where ordination is prescribed by a religious faith as the sole means of entering the ministry, has been ordained as a minister of religion following at least one year's full-time or two year's part-time training for the ministry; or

(b) if seeking leave to enter as a missionary has been trained as a missionary or has worked as a missionary and is being sent to the Isle of Man by an overseas organisation; or

(c) if seeking leave to enter as a member of a religious order is coming to live in the community maintained by the religious order of which he is a member and if, intending to teach, does not intend to do so save at an establishment maintained by his order; and

(ii) intends to work full-time as a minister of religion, missionary or for the religious order of which he is a member; and

(iii) does not intend to take employment except within the terms of this paragraph; and

(iv) can maintain and accommodate himself and any dependants adequately without recourse to public funds; and

(iva) if seeking leave as a Minister of Religion can produce an International English Language Testing System certificate issued to him to certify that he has achieved level 6 competence in spoken and written English and that it is dated not more than two years prior to the date on which the application is made; and

(v) holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter as a minister of religion, missionary, or member of a religious order

171. A person seeking leave to enter the Isle of Man as a minister of religion, missionary or member of a religious order may be admitted for a period not exceeding 12 months provided he is able to produce to the Immigration Officer, on arrival, a valid Isle of Man entry clearance for entry in this capacity.

Refusal of leave to enter as a minister of religion, missionary or member of a religious order

172. Leave to enter as a minister of religion, missionary or member of a religious order is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival.

Requirements for an extension of stay as a minister of religion where entry to the Isle of Man was granted in that capacity

173. The requirements for an extension of stay as a minister of religion where entry to the Isle of Man was granted in that capacity, missionary or member of a religious order are that the applicant:

(i) entered the Isle of Man with a valid Isle of Man entry clearance as a minister of religion, missionary or member of a religious order; and

(ii) is still engaged in the employment for which his entry clearance was granted; and

(iii) is still required for the employment in question as certified by the leadership of his congregation, his employer or the head of his religious order; and

(iv) (a) if he entered the Isle of Man as a minister of religion, missionary or member of a religious order in accordance with sub paragraph (i) prior to 23 August 2004 meets the requirements of paragraph 170(ii)–(iv); or

(b) if he entered the Isle of Man as a minister of religion, missionary or member of a religious order in accordance with sub paragraph (i), on or after 23 August 2004 but prior to 19 April 2007, or was granted leave to remain in accordance with paragraph 174B between those dates, meets the requirements of paragraph 170 (ii)–(iv), and if a minister of religion met the requirement to produce an

International English Language Testing System certificate certifying that he achieved level 4 competence in spoken English at the time he was first granted leave in this capacity; or

(c) if he entered the Isle of Man as a minister of religion, missionary or member of a religious order in accordance with sub paragraph (i) on or after 19 April 2007, or was granted leave to remain in accordance with paragraph 174B on or after that date, meets the requirements of paragraph 170 (ii)-(iv), and if a minister of religion met the requirement to produce an International English Language Testing System certificate certifying that he achieved level 6 competence in spoken and written English at the time he was first granted leave in this capacity.

Extension of stay as a minister of religion, missionary or member of a religious order

174. An extension of stay as a minister of religion, missionary or member of a religious order may be granted for a period not exceeding 4 years provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 173 is met.

Requirements for an extension of stay as a minister of religion where entry to the Isle of Man was not granted in that capacity

174A The requirements for an extension of stay as a minister of religion for an applicant who did not enter the Isle of Man in that capacity are that he:

(i) entered the Isle of Man, or was given an extension of stay, in accordance with these Rules, except as a minister of religion or as a visitor under paragraphs 40-56 of these Rules, and has spent a continuous period of at least 12 months here pursuant to that leave immediately prior to the application being made; and

(ii) has either been working for at least one year as a minister of religion in any of the 5 years immediately prior to the date on which the application is made (provided that, when doing so, he was not in breach of a condition of any subsisting leave to enter or remain) or, where ordination is prescribed by a religious faith as the sole means of entering the ministry, has been ordained as a minister of religion following at least one year's full-time or two years part time training for the ministry; and

(iii) is imminently to be appointed, or has been appointed, to a position as a minister of religion in the Isle of Man and is suitable for such a position, as certified by the leadership of his prospective congregation; and

(iv) meets the requirements of paragraph 170(ii)-(iv(a)).

Extension of stay as a minister of religion where leave to enter was not granted in that capacity

174B An extension of stay as a minister of religion may be granted for a period not exceeding 3 years at a time provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 174A is met.

Refusal of extension of stay as a minister of religion, missionary or member of a religious order

175. An extension of stay as a minister of religion, missionary or member of a religious order is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 173 or 174A is met.

Indefinite leave to remain as a minister of religion, missionary or member of a religious order

176. Indefinite leave to remain may be granted, on application, to a person admitted as a minister of religion, missionary or member of a religious order provided:

(i) he has spent a continuous period of 5 years in the Isle of Man in this capacity; and

(ii) he has met the requirements of paragraph 173 or 174A throughout the 5 year period; and

(iii) he is still required for the employment in question as certified by the leadership of his congregation, his employer or the head of the religious order to which he belongs; and

(iv) he has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application.

Refusal of indefinite leave to remain for a minister of religion, missionary or member of a religious order

177. Indefinite leave to remain in the Isle of Man for a minister of religion, missionary or member of a religious order is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 176 is met.

177A. For the purposes of these Rules:

(i) a visiting religious worker means a person coming to the Isle of Man for a short period to perform religious duties at one or more locations in the Isle of Man;

(ii) a religious worker in a non-pastoral role means a person employed in the Isle of Man by the faith he is coming here to work for, whose duties include performing religious rites within the religious community, but not preaching to a congregation.

Requirements for leave to enter the Isle of Man as a visiting religious worker or a religious worker in a non-pastoral role

177B. The requirements to be met by a person seeking leave to enter as a visiting religious worker or a religious worker in a non-pastoral role are that the applicant:

(i) (a) if seeking leave to enter as a visiting religious worker:

(i) is an established religious worker based overseas; and

(ii) submits a letter(s) from a senior member or senior representative of one or more local religious communities in the Isle of Man confirming that he is invited to perform religious duties as a visiting religious worker at one or more locations in the Isle of Man and confirming the expected duration of that employment; and

(iii) if he has been granted leave as a visiting religious worker in the last 12 months, is not seeking leave to enter which, when amalgamated with his previous periods of leave in this category in the last 12 months, would total more than 6 months; or

(b) if seeking leave to enter as a religious worker in a non-pastoral role:

(i) has at least one year of full time training or work experience, or a period of part time training or work experience equivalent to one year full time training or work experience, accrued in the five years preceding the application in the faith with which he has employment in the Isle of Man; and

(ii) can show that, at the time of his application, at least one full-time member of staff of the local religious community which the applicant is applying to join in the Isle of Man has a sufficient knowledge of English; and

(iii) submits a letter from a senior member or senior representative of the local religious community which has invited him to the Isle of Man, confirming that he has been offered employment as religious worker in a non-pastoral role in that religious community, and confirming the duration of that employment; and

(ii) does not intend to take employment except as a visiting religious worker or religious worker in a non-pastoral role, whichever is the basis of his application; and

(iii) does not intend to undertake employment as a Minister of Religion, Missionary or Member of a Religious Order, as described in paragraphs 169-177 of these Rules; and

(iv) is able to maintain and accommodate himself and any dependants without recourse to public funds, or will, with any dependants, be maintained and accommodated adequately by the religious community employing him; and

(v) intends to leave the Isle of Man at the end of his leave in this category; and

(vi) holds a valid entry clearance for entry in this capacity except where he is a British National (Overseas), a British overseas territories citizen, a British Overseas citizen, a British protected person or a person who under the British Nationality Act 1981 is a British subject.

Leave to enter as a visiting religious worker or a religious worker in a non-pastoral role

177C. Leave to enter the Isle of Man as a visiting religious worker or a religious worker in a non-pastoral role may be granted:

(a) as a visiting religious worker, for a period not exceeding 6 months; or
(b) as a religious worker in a non-pastoral role, for a period not exceeding 12 months;

provided the Immigration Officer is satisfied that each of the requirements of paragraph 177B is met.

Refusal of leave to enter as a visiting religious worker or a religious worker in a non-pastoral role

177D. Leave to enter as a visiting religious worker or a religious worker in a non pastoral role is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 177B is met.

Requirements for an extension of stay as a visiting religious worker or a religious worker in a non pastoral role

177E. The requirements to be met by a person seeking an extension of stay as a visiting religious worker or a religious worker in a non-pastoral role are that the applicant:

(i) entered the Isle of Man with a valid entry clearance in this capacity or was given leave to enter as a visiting religious worker or a religious worker in a non-pastoral role; and

(ii) intends to continue employment as a visiting religious worker or a religious worker in a non-pastoral role; and

(iii) if seeking an extension of stay as a visiting religious worker:

(a) meets the requirement of paragraph 177B(i)(a)(i) above; and

(b) submits a letter from a senior member or senior representative of one or more local religious communities in the Isle of Man confirming that he is still wanted to perform religious duties as a visiting religious worker at one or more locations in the Isle of Man and confirming the expected duration of that employment; and

(c) would not, as the result of an extension of stay, be granted leave as a visiting religious worker which, when amalgamated with his previous periods of leave in this category in the last 12 months, would total more than 6 months; or

(iv) if seeking an extension of stay as a religious worker in a non-pastoral role:

(a) meets the requirements of paragraph 177B(i)(b)(i) and (ii); and

(b) submits a letter from a senior member or senior representative of the

local religious community for which he works in the Isle of Man confirming that his employment as a religious worker in a non-pastoral role in that religious community will continue, and confirming the duration of that employment; and

(c) would not, as the result of an extension of stay, remain in the Isle of Man for a period of more than 24 months as a religious worker in a non-pastoral role; and

(v) meets the requirements of paragraph 177B (ii) to (v)

Extension of stay as a visiting religious worker or a religious worker in a non-pastoral role

177F. An extension of stay as a visiting religious worker or a religious worker in a non-pastoral role may be granted:

(a) as a visiting religious worker, for a period not exceeding 6 months; or

(b) as a religious worker in a non-pastoral role, for a period not exceeding 24 months;

if the Lieutenant Governor is satisfied that each of the requirements of paragraph 177E is met.

Refusal of an extension of stay as a visiting religious worker or a religious worker in a non pastoral role

177G. An extension of stay as a visiting religious worker or a religious worker in a non-pastoral role is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 177E is met.
[178-185 Not Used]

PERSONS WITH ISLE OF MAN, UNITED KINGDOM OR CHANNEL ISLANDS ANCESTRY

Requirements for leave to enter on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry

186. The requirements to be met by a person seeking leave to enter the Isle of Man on the grounds of his Isle of Man, United Kingdom or Channel Islands ancestry are that he:

(i) is a Commonwealth citizen; and

(ii) is aged 17 or over; and

(iii) is able to provide proof that one of his grandparents was born in the Isle of Man, United Kingdom or Channel Islands and that any such grandparent is the applicant's blood grandparent or grandparent by reason of an adoption recognised by the laws of the Isle of Man relating to adoption; and

(iv) is able to work and intends to take or seek employment in the Isle of Man; and

(v) will be able to maintain and accommodate himself and any dependants adequately without recourse to public funds; and

(vi) holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter the Isle of Man on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry

187. A person seeking leave to enter the Isle of Man on the grounds of his Isle of Man, United Kingdom or Channel Islands ancestry may be given leave to enter for a period not exceeding 5 years provided he is able to produce to the Immigration Officer, on arrival, a valid Isle of Man entry clearance for entry in this capacity.

Refusal of leave to enter on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry

188. Leave to enter the Isle of Man on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival.

Requirements for an extension of stay on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry

189. The requirements to be met by a person seeking an extension of stay on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry are that:

(i) he is able to meet each of the requirements of paragraph 186 (i)-(v); and

(ii) he was admitted to the Isle of Man on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry in accordance with paragraphs 186 to 188 or has been granted an extension of stay in this capacity."

Extension of stay on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry

190. An extension of stay on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry may be granted for a period not exceeding 5 years provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 189 is met.

Refusal of an extension of stay on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry

191. An extension of stay on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 189 is met.

Indefinite leave to remain on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry

192. Indefinite leave to remain may be granted, on application, to a Commonwealth citizen with an Isle of Man, United Kingdom or Channel Islands born grandparent provided:

(i) he meets the requirements of paragraph 186 (i)-(v); and

(ii) he has spent a continuous period of 5 years in the Isle of Man in this capacity; and

(iii) he has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application.

Refusal of indefinite leave to remain on the grounds of Isle of Man, United Kingdom or Channel Islands ancestry

193. Indefinite leave to remain in the Isle of Man on the grounds of an Isle of Man, United Kingdom or Channel Islands born grandparent is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 192 is met.

SPOUSES OR CIVIL PARTNERS OF PERSONS WHO HAVE OR HAVE HAD LEAVE TO ENTER OR REMAIN UNDER PARAGRAPHS 128-193

Requirements for leave to enter as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193

194. The requirements to be met by a person seeking leave to enter the Isle of Man as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193 are that:

(i) the applicant is married to or a civil partner of a person with limited leave to enter in the Isle of Man under paragraphs 128-193; and

(ii) each of the parties intends to live with the other as his or her spouse or civil partner during the applicant's stay and the marriage or civil partnership is subsisting; and

(iii) there will be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively; and

(iv) the parties will be able to maintain themselves and any dependants adequately without recourse to public funds; and

(v) the applicant does not intend to stay in the Isle of Man beyond any period of leave granted to his spouse; and

(vi) the applicant holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193

195. A person seeking leave to enter the Isle of Man as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193 may be given leave to enter for a period not in excess of that granted to the person with limited leave to enter or remain under paragraphs 128-193 provided the Immigration Officer is satisfied that each of the requirements of paragraph 194 is met.
If the person is seeking leave to enter as the spouse or civil partner of a Highly Skilled Migrant, leave which is granted will be subject to a condition prohibiting Employment as a Doctor in Training.

Refusal of leave to enter as the spouse or civil partners of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193

196. Leave to enter the Isle of Man as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193 is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 194 is met.

Requirements for extension of stay as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 128-193

196A. The requirements to be met by a person seeking an extension of stay in the Isle of Man as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 128-193 are that the applicant:

(i) is married to or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193, or

(ii) is married to or civil partner of a person who has limited leave to enter or remain in the Isle of Man under paragraphs 128-193 and who is being granted indefinite leave to remain at the same time; or

(iii) is married to or a civil partner of a person who has indefinite leave to remain in the Isle of Man and who had limited leave to enter or remain in the Isle of Man under paragraphs 128-193 immediately before being granted indefinite leave to remain; and

(iv) meets the requirements of paragraph 194(ii) – (v); and

(v) was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Extension of stay as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 128-193

196B. An extension of stay in the Isle of Man as:

(i) the spouse or civil partner of a person who has limited leave to enter or remain under paragraphs 128-193 may be granted for a period not in excess of that granted to the person with limited leave to enter or remain; or

(ii) the spouse or civil partner of a person who is being admitted at the same time for settlement, or the spouse or civil partner of a person who has indefinite leave to remain, may be granted for a period not exceeding 2 years,

in both instances, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 196A is met.

If the person is seeking an extension of stay as the spouse or civil partner of a Highly Skilled Migrant, leave which is granted will be subject to a condition prohibiting Employment as a Doctor in Training, unless the applicant has, or has last been granted, entry clearance or leave to enter or remain (which was not subject to a condition prohibiting Employment as a Doctor in Training), as the spouse or civil partner, unmarried or same sex partner of a migrant granted leave under Parts 3 ,4, 5 or 6 of these Rules.

Refusal of extension of stay as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 128-193

196C. An extension of stay in the Isle of Man as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 128-193 is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 196A is met.

Requirements for indefinite leave to remain for the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 128-193

196D. The requirements to be met by a person seeking indefinite leave to remain in the Isle of Man as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 128-193 are that the applicant:

(i) is married to or civil partner of a person who has limited leave to enter or remain in the Isle of Man under paragraphs 128-193 and who is being granted indefinite leave to remain at the same time; or

(ii) is married to or a civil partner of a person who has indefinite leave to remain in the Isle of Man and who had limited leave to enter or remain in the Isle of Man under paragraphs 128-193 immediately before being granted indefinite leave to remain; and

(iii) meets the requirements of paragraph 194(ii) – (v); and

(iv) has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application; and

(v) was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Indefinite leave to remain as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 128-193

196E. Indefinite leave to remain in the Isle of Man for the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 128-193 may be granted provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 196D is met.

Refusal of indefinite leave to remain as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 128-193

196F. Indefinite leave to remain in the Isle of Man for the spouse or civil partner of a person who has or has had limited leave to enter or remain in the Isle of Man under paragraphs 128-193 is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 194D is met."

CHILDREN OF PERSONS WITH LIMITED LEAVE TO ENTER OR REMAIN IN THE ISLE OF MAN UNDER PARAGRAPHS 128-193

Requirements for leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193

197. The requirements to be met by a person seeking leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193 are that:

(i) he is the child of a parent with limited leave to enter or remain in the Isle of Man under paragraphs 128-193**;** and

(ii) he is under the age of 18 or has current leave to enter or remain in this capacity; and

(iii) he is unmarried, is not a civil partner, has not formed an independent family unit and is not leading an independent life; and

(iv) he can, and will be, maintained and accommodated adequately without recourse to public funds in accommodation which his parent(s) owns or occupy exclusively; and

(v) he will not stay in the Isle of Man beyond any period of leave granted to his parent(s); and

(vi) both parents are being or have been admitted to or allowed to remain in the Isle of Man save where:

(a) the parent he is accompanying or joining is his sole surviving parent; or

(b) the parent he is accompanying or joining has had sole responsibility for his upbringing; or

(c) there are serious and compelling family or other considerations which make exclusion from the Isle of Man undesirable and suitable arrangements have been made for his care; and

(vii) if seeking leave to enter, he holds a valid Isle of Man entry clearance for entry in this capacity or, if seeking leave to remain, was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193

198. A person seeking leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193 may be given leave to enter or remain in the Isle of Man for a period of leave not in excess of that granted to the person with limited leave to enter or remain under paragraphs 128-193 provided that, in relation to an application for leave to enter, he is able to produce to the Immigration Officer on arrival, a valid Isle of Man entry clearance for entry in this capacity, or in the case of an application for limited leave to remain, he was admitted with a valid Isle of Man entry clearance for entry in this capacity and is able to satisfy the Lieutenant Governor, that each of the requirements of paragraph 197 (i)-(vi) is met. An application for indefinite leave to remain in this category may be granted provided the applicant was admitted with a valid Isle of Man entry clearance for entry in this capacity and is able to satisfy the Lieutenant Governor that each of the requirements of paragraph 197 (i)-(vi) is met and provided indefinite leave to remain is, at the same time, being granted to the person with limited leave to enter or remain under paragraphs 128-193

Refusal of leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193

199. Leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193 is to be refused if, in relation to an application for leave to enter, a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival or, in the case of an application for limited leave to remain in the Isle of Man, if the applicant was not admitted with a valid Isle of Man entry clearance for entry in this capacity or is unable to satisfy the Lieutenant Governor that each of the requirements of paragraph 197 (i)-(vi) is met. An application for indefinite leave to remain in this category is to be refused if the applicant was not admitted with a valid Isle of Man entry clearance for entry in this capacity or is unable to satisfy the Lieutenant Governor that each of the requirements of paragraph 197 (i)-(vi) is met or if indefinite leave to remain is not, at the same time, being granted to the person with limited leave to enter or remain under paragraphs 128-193.

PART 6: PERSONS SEEKING TO ENTER OR REMAIN IN THE ISLE OF MAN AS A BUSINESSMAN, SELF-EMPLOYED PERSON, INVESTOR, WRITER, COMPOSER OR ARTIST

PERSONS INTENDING TO ESTABLISH THEMSELVES IN BUSINESS

200. to 208. [DELETED]

Indefinite leave to remain for a person admitted to establish himself in business

209. Indefinite leave to remain may be granted, on application, to a person established in business provided he:

(i) has spent a continuous period of 5 years in the Isle of Man in this capacity and is still engaged in the business in question; and

(ii) has met the requirements of paragraph 206 throughout the 5 year period; and

(iii) submits audited accounts for the first 4 years of trading and management accounts for the 5th year; and

(iv) has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application.

Refusal of indefinite leave to remain for a person established in business

210. Indefinite leave to remain in the Isle of Man for a person established in business is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 209 is met.

210A – 210H [NOT USED]

211 to 221 [DELETED]

Indefinite leave to remain for a person established in business under the provisions of an EC Association Agreement

222. Indefinite leave to remain may be granted, on application, to a person established in business provided he –

(i) is a national of Bulgaria or Romania; and

(ii) entered the Isle of Man with a valid Isle of Man entry clearance as a person intending to establish himself in business under the provisions of an EC Association Agreement; and

(iii) was granted an extension of stay before 1st January 2007 in order to remain in business under the provisions of the Agreement; and

(iv) established himself in business in the Isle of Man, spent a continuous period of 5 years in the Isle of Man in this capacity and is still so engaged; and

(v) met the requirements of paragraph 222A throughout the period of 5 years; and

(vi) submits audited accounts for the first 4 years of trading and management accounts for the 5th year; and

(vii) he has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application."

222A. The requirements mentioned in paragraph 222(v) are that throughout the period of 5 years –

(i) the applicant's share of the profits of the business has been sufficient to maintain and accommodate himself and any dependants without recourse to employment (other than his work for the business) or to public funds; and

(ii) he has not supplemented his business activities by taking or seeking employment in the Isle of Man (other than his work for the business); and

(iii) he has satisfied the requirements in paragraph 222B or 222C.

222B. Where the applicant has established himself in a company in the Isle of Man which he effectively controls, the requirements for the purpose of paragraph 222A(iii) are that–

(i) the applicant has been actively involved in the promotion and management of the company; and

(ii) he has had a controlling interest in the company; and

(iii) the company was registered in the Isle of Man and has been trading or providing services in the Isle of Man; and

(iv) the company owned the assets of the business.

222C. Where the applicant has established himself as a sole trader or in a partnership in the Isle of Man, the requirements for the purpose of paragraph 222A(iii) are that–

(i) the applicant has been actively involved in trading or providing services on his own account or in a partnership in the Isle of Man; and

(ii) the applicant owned, or together with his partners owned, the assets of the business; and

(iii) in the case of a partnership, the applicant's part in the business did not amount to disguised employment."

Refusal of indefinite leave to remain for a person established in business under the provisions of an EC Association Agreement

223. Indefinite leave to remain in the Isle of Man for a person established in business is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 222 is met.

Application of paragraphs 222 and 223

223A. Despite paragraph 5, paragraphs 222 and 223 apply to a person entitled to remain in the Isle of Man by virtue of the EEA Regulations.

INVESTORS

224 to 229 [DELETED]

Indefinite leave to remain for an investor

230. Indefinite leave to remain may be granted, on application, to a person admitted as an investor provided he:

(i) has spent a continuous period of 5 years in the Isle of Man in this capacity; and

(ii) has met the requirements of paragraph 227 throughout the 5 year period including the requirement as to investment of £750,000 and continues to do so; and

(iii) has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application."

Refusal of indefinite leave to remain for an investor

231. Indefinite leave to remain in the Isle of Man for an investor is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 230 is met.

WRITERS, COMPOSERS AND ARTISTS

232N to 237 [DELETED]

Indefinite leave to remain for a writer, composer or artist

238. Indefinite leave to remain may be granted, on application, to a person admitted as a writer, composer or artist provided he:

(i) has spent a continuous period of 5 years in the Isle of Man in this capacity; and

(ii) has met the requirements of paragraph 235 throughout the 5 year period; and

(iii) he has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application.

Refusal of indefinite leave to remain for a writer, composer or artist

239. Indefinite leave to remain for a writer, composer or artist is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 238 is met.

SPOUSES OR CIVIL PARTNERS OF PERSONS WHO HAVE OR HAVE HAD LIMITED LEAVE TO ENTER OR REMAIN UNDER PARAGRAPHS 200-239

Requirements for leave to enter as the spouse or civil partner of a person with limited leave to enter or remain under paragraphs 200-239

240. The requirements to be met by a person seeking leave to enter the Isle of Man as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239 are that:

(i) the applicant is married to or the civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239; and

(ii) each of the parties intends to live with the other as his or her spouse or civil partner during the applicant's stay and the marriage or civil partnership is subsisting; and

(iii) there will be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively; and

(iv) the parties will be able to maintain themselves and any dependants adequately without recourse to public funds; and

(v) the applicant does not intend to stay in the Isle of Man beyond any period of leave granted to his spouse or civil partner; and

(vi) the applicant holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239

241. A person seeking limited leave to enter the Isle of Man as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239 may be given leave to enter for a period not in excess of that granted to the person with limited leave to enter or remain under paragraphs 200-239 provided the Immigration Officer is satisfied that each of the requirements of paragraph 240 is met.

Refusal of leave to enter as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239

242. Leave to enter the Isle of Man as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239 is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 240 is met.

Requirements for extension of stay as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 200-239

242A. The requirements to be met by a person seeking an extension of stay in the Isle of Man as the spouse or civil partner of a person who has or has had leave to enter or remain under paragraphs 200 - 239 are that the applicant:

(i) is married to or the civil partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239; or

(ii) is married to or civil partner of a person who has limited leave to enter or remain in the Isle of Man under paragraphs 200-239 and who is being granted indefinite leave to remain at the same time; or

(iii) is married to or civil partner of a person who has indefinite leave to remain in the Isle of Man and who had limited leave to enter or remain in the Isle of Man under paragraphs 200-239 immediately before being granted indefinite leave to remain; and

(iv) meets the requirements of paragraph 240(ii) – (v); and

(v) was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Extension of stay as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 200-239

242B. An extension of stay in the Isle of Man as:
(i) the spouse or civil partner of a person who has limited leave to enter or remain under paragraphs 200-239 may be granted for a period not in excess of that granted to the person with limited to enter or remain; or

(ii) the spouse or civil partner of a person who is being admitted at the same time for settlement or the spouse or civil partner of a person who has indefinite leave to remain may be granted for a period not exceeding 2 years,

in both instances, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 242A is met.

Refusal of extension of stay as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 200-239

242C. An extension of stay in the Isle of Man as the spouse or civil partner of a person who has or has had leave to enter or remain under paragraphs 200 - 239 is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 242A is met.

Requirements for indefinite leave to remain as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 200-239

242D. The requirements to be met by a person seeking indefinite leave to remain in the Isle of Man as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 200 – 239 are that the applicant:

(i) is married to or civil partner of a person who has limited leave to enter or remain in the Isle of Man under paragraphs 200-239 and who is being granted indefinite leave to remain at the same time; or

(ii) is married to or civil partner of a person who has indefinite leave to remain in the Isle of Man and who had limited leave to enter or remain under paragraphs 200 – 239 immediately before being granted indefinite leave to remain; and

(iii) meets the requirements of paragraph 240 (ii) to (v); and

(iv) has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless the applicant is under the age of 18 or aged 65 or over at the time he makes his application; and

(v) was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Indefinite leave to remain as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 200-239

242E. Indefinite leave to remain in the Isle of Man as the spouse or civil partner of a person who has or has had limited leave to enter or remain in the Isle of Man under paragraphs 200 – 239 may be granted provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 242D is met.

Refusal of indefinite leave to remain as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man under paragraphs 200-239

242F. Indefinite leave to remain in the Isle of Man as the spouse or civil partner of a person who has or has had limited leave to enter or remain in the Isle of Man under paragraphs 200 – 239 is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 242D is met."

CHILDREN OF PERSONS WITH LIMITED LEAVE TO ENTER OR REMAIN IN THE ISLE OF MAN UNDER PARAGRAPHS 200-239

Requirements for leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239

243. The requirements to be met by a person seeking leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239 are that:

(i) he is the child of a parent who has leave to enter or remain in the Isle of Man under paragraphs 200-239; and

(ii) he is under the age of 18 or has current leave to enter or remain in this capacity; and

(iii) he is unmarried, is not a civil partner, has not formed an independent family unit and is not leading an independent life; and

(iv) he can, and will be, maintained and accommodated adequately without recourse to public funds in accommodation which his parent(s) own or occupy exclusively; and

(v) he will not stay in the Isle of Man beyond any period of leave granted to his parent(s); and

(vi) both parents are being or have been admitted to or allowed to remain in the Isle of Man save where:

(a) the parent he is accompanying or joining is his sole surviving parent; or

(b) the parent he is accompanying or joining has had sole responsibility for his upbringing; or

(c) there are serious and compelling family or other considerations which make exclusion from the Isle of Man undesirable and suitable arrangements have been made for his care; and

(vii) if seeking leave to enter, he holds a valid Isle of Man entry clearance for entry in this capacity or, if seeking leave to remain, was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239

244. A person seeking leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239 may be admitted to or allowed to remain in the Isle of Man for the same period of leave as that granted to the person given limited leave to enter or remain under paragraphs 200-239 provided that, in relation to an application for leave to enter, he is able to produce to the Immigration Officer on arrival, a valid Isle of Man entry clearance for entry in this capacity, or in the case of an application for limited leave to remain, he was admitted with a valid Isle of Man entry clearance for entry in this capacity and is able to satisfy the Lieutenant Governor that each of the requirements of paragraph 243 (i)-(vi) is met. An application for indefinite leave to remain in this category may be granted provided that the applicant was admitted with a valid Isle of Man entry clearance for entry in this capacity and is able to satisfy the Lieutenant Governor that each of the requirements of paragraph 243 (i)-(vi) is met and provided indefinite leave to remain is, at the same time, being granted to the person with limited leave to remain under paragraphs 200-239.

Refusal of leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239

245. Leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man under paragraphs 200-239 is to be refused if, in relation to an application for leave to enter, a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival or, in the case of an application for limited leave to remain in the Isle of Man, if the applicant was not admitted with a valid Isle of Man entry clearance for entry in this capacity or is unable to satisfy the Lieutenant Governor that each of the requirements of paragraph 243 (i)-(vi) is met. An application for indefinite leave to remain in this category is to be refused if the applicant was not admitted with a valid Isle of Man entry clearance for entry in this capacity or is unable to satisfy the Lieutenant Governor that each of the requirements of paragraph (i)-(vi) is met or if indefinite leave to remain is not, at the same time, being granted to the person with limited leave to remain under paragraphs 200-239.

PART 6A POINTS-BASED SYSTEM

Documentary evidence

245AA (a) Where Part 6A or Appendices 6, 7, 8 or 9 state that specified documents must be provided, that means documents specified by the Lieutenant Governor in the Points-based System Policy Guidance as being specified documents for the route under which the applicant is applying. If the specified documents are not provided, the applicant will not meet the requirement for which the specified documents are required as evidence.

(b) If the entry clearance officer or Lieutenant Governor has reasonable cause to doubt the genuineness of any document submitted by an applicant which is, or which purports to be, a specified document under Part 6A or Appendices A to C or E and, having taken reasonable steps to verify the document, is unable to verify that it is genuine, the document will be discounted for the purposes of this application.

TIER 1 (GENERAL) MIGRANTS

Purpose

245A. This route is for highly skilled migrants who wish to work, or become self-employed in the Isle of Man.

Entry to the Isle of Man

245B. All migrants arriving in the Isle of Man and wishing to enter as a Tier 1 (General) Migrant must have a valid entry clearance for entry under this route. If they do not have a valid entry clearance, entry will be refused.

Requirements for entry clearance or leave to remain

245C. To qualify for entry clearance or leave to remain as a Tier 1 (General) Migrant, an applicant must meet the requirements listed below. If the applicant meets these requirements, entry clearance or leave to remain will be granted. If the applicant does not meet these requirements, the application will be refused.

Requirements—

(a) [Not Used]

(b) The applicant must not fall for refusal under the general grounds for refusal, and if applying for leave to remain, must not be an illegal entrant.

(c) The applicant must have a minimum of 75 points under paragraphs 1 to 31 of Appendix A.

(d) The applicant must have 10 points under paragraphs 1 to 2 of Appendix B.

(e) The applicant must have 10 points under paragraphs 1 to 2 of Appendix C.

(f) An applicant who is applying for leave to remain must have, or have last been granted, entry clearance, leave to enter or remain—

(i) as a Highly Skilled Migrant,

(ii) as a Tier 1 (General) Migrant,

(iii) [Not Used]

(iv) [Not Used]

(v) [Not Used]

(vi) as a postgraduate doctor or dentist,

(vii) as a student,

(viii) as a student nurse,

(ix) as a student re-sitting an examination,

(x) [Not Used]

(xi) as a work permit holder,

(xii) as a business person,

(xiii) [Not Used]

(xiv) as a Tier 1 (Entrepreneur) Migrant,

(xv) as a Tier 1 (Investor) Migrant, or

(xvi) [Not Used]

(xvii) as a writer, composer or artist.

(g) An applicant who has, or was last granted, leave as a student or a postgraduate doctor or dentist or student nurse, and—

(i) is currently being sponsored by a government or international scholarship agency, or

(ii) was being sponsored by a government or international scholarship agency, and that sponsorship came to an end 12 months ago or less, must provide the unconditional written consent of the sponsoring Government or agency to the application and must provide the specified documents to show that this consent has been obtained.

Period and conditions of grant

245D. (a) Entry clearance will be granted for a period of 3 years.

(b) Leave to remain will be granted—

(i) for a period of 2 years, to an applicant who has, or was last granted, leave as a Tier 1 (General) Migrant,

(ii) for a period of 3 years, to any other applicant.

(c) Entry clearance and leave to remain under this route will be subject to the following conditions:

(i) no recourse to public funds,

(ii) registration with the police, if this is required by paragraph 326, and

(iii) no Employment as a Doctor in Training, unless the applicant is applying for leave to remain and has, or has last been granted, entry clearance, leave to enter or leave to remain that was not subject to a condition restricting their employment, whether that is employment as a Doctor in Training or otherwise, and has been employed during that leave on an NHS Foundation Programme or as a Doctor in Training.

Requirements for indefinite leave to remain

245E. To qualify for indefinite leave to remain, a Tier 1 (General) Migrant must meet the requirements listed below. If the applicant meets these requirements, indefinite leave to remain will be granted. If the applicant does not meet these requirements, the application will be refused.

Requirements—
(a) The applicant must not fall for refusal under the general grounds for refusal, and must not be an illegal entrant.

(b) The applicant must have spent a continuous period of 5 years lawfully in the Isle of Man, of which the most recent period must have been spent with leave as a Tier 1 (General) Migrant, and the rest may be made up of leave in any combination of the following categories—

(i) as a Tier 1 (General) Migrant,

(ii) as a highly skilled migrant,

(iii) as a work permit holder,

(iv) [Not Used]

(v) [Not Used]

(vi) as a writer, composer or artist.

(c) The applicant must be economically active in the Isle of Man, in employment or self-employment or both.

(d) The applicant must have sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, with reference to paragraphs 33B to 33D, unless the applicant is under the age of 18 or aged 65 or over at the time the application is made.

TIER 1 (ENTREPRENEUR) MIGRANTS

Purpose of this route and meaning of "business"

245H. (a) This route is for migrants who wish to establish, join or take over one or more businesses in the Isle of Man.

(b) For the purpose of paragraphs 245G to 245N and paragraphs 32 to 41 of Appendix A "business" means an enterprise as—

(i) a sole trader,

(ii) a partnership, or

(iii) a company registered in the Isle of Man.

Entry to the Isle of Man

245I. All migrants arriving in the Isle of Man and wishing to enter as a Tier 1 (Entrepreneur) Migrant must have a valid entry clearance for entry under this route. If they do not have a valid entry clearance, entry will be refused.

Requirements for entry clearance

245J. To qualify for entry clearance as a Tier 1 (Entrepreneur) Migrant, an applicant must meet the requirements listed below. If the applicant meets these requirements, entry clearance will be granted. If the applicant does not meet these requirements, the application will be refused.

Requirements—
(a) The applicant must not fall for refusal under the general grounds for refusal.

(b) The applicant must have a minimum of 75 points under paragraphs 32 to 41 of Appendix A.

(c) The applicant must have a minimum of 10 points under paragraphs 1 and 2 of Appendix B.

(d) The applicant must have a minimum of 10 points under paragraphs 1 and 2 of Appendix C.

(e) An applicant who has, or was last granted, leave as a student or a postgraduate doctor or dentist, a student nurse, a student writing up a thesis or as a student re-sitting an examination and—

(i) is currently being sponsored by a government or international scholarship agency, or

(ii) was being sponsored by a government or international scholarship agency, and that sponsorship came to an end 12 months ago or less must provide the unconditional written consent of the sponsoring Government or agency to the application and must provide the specified documents to show that this requirement has been met.

Period and conditions of grant

245K. Entry clearance will be granted for a period of 3 years and will be subject to the following conditions—

(i) no recourse to public funds,

(ii) registration with the police, if this is required by paragraph 326, and

(iii) no employment other than working for the business or businesses the applicant has established, joined or taken over.

Requirements for leave to remain

245L. To qualify for leave to remain as a Tier 1 (Entrepreneur) Migrant under this rule, an applicant must meet the requirements listed below. If the applicant meets these requirements, leave to remain will be granted. If the applicant does not meet these requirements, the application will be refused.

Requirements—
(a) The applicant must not fall for refusal under the general grounds for refusal, and must not be an illegal entrant.

(b) The applicant must have a minimum of 75 points under paragraphs 32 to 41 of Appendix A.

(c) The applicant must have a minimum of 10 points under paragraphs 1 to 2 of Appendix B.

(d) The applicant must have a minimum of 10 points under paragraphs 1 to 2 of Appendix C.

(e) The applicant who is applying for leave to remain must have, or have last been granted, entry clearance, leave to enter or remain—

(i) as a highly skilled migrant,

(ii) as a Tier 1 (General) Migrant,

(iii) as a Tier 1 (Entrepreneur) Migrant,

(iv) as a Tier 1 (Investor) Migrant,

(v) [Not Used]

(vi) as a business person,

(vii) [Not Used]

(viii) as an investor,

(xi) as a postgraduate doctor or dentist,

(xii) [Not Used]

(xiii) as a student,

(xiv) as a student nurse,

(xv) as a student re-sitting an examination,

(xvi) [Not Used]

(xvii) as a work permit holder, or

(xviii) as a writer, composer or artist.

(f) An applicant who has, or was last granted, leave as a student or a postgraduate doctor or dentist, student nurse, student re-sitting an examination, or as a student writing up a thesis, and—

(i) is currently being sponsored by a government or international scholarship agency, or

(ii) was being sponsored by a government or international scholarship agency, and that sponsorship came to an end 12 months ago or less, must provide the unconditional written consent of the sponsoring Government or agency to the application and must provide the specified documents to show that this requirement has been met.

Period, conditions and curtailment of grant

245M. (a) Leave to remain will be granted-

(i) for a period of 2 years, to an applicant who has, or was last granted, leave as a Tier 1 (Entrepreneur) Migrant,

(ii) for a period of 3 years, to any other applicant.

(b) Leave to remain under this route will be subject to the following conditions—
(i) no recourse to public funds,

(ii) registration with the police, if this is required by paragraph 326, and

(iii) no employment, other than working for the business or businesses which he or she or she has established, joined or taken over.

(c) Without limiting the grounds for curtailment in paragraph 323, leave to enter or remain granted to a Tier 1 (Entrepreneur) Migrant may be curtailed if, within 3 months of

the date specified in sub-paragraph (d), the applicant has not done one or more of the following things—

(i) obtained the permission of the Department of Trade and Industry for self employment under the Control of Employment Act,

(ii) registered a new business in which he or she or she is a director, or

(iii) registered as a director of an existing business.

(d) The date referred to in sub-paragraph (c) is—

(i) the date of the applicant's entry to the Isle of Man, in the case of an applicant granted entry clearance as a Tier 1 (Entrepreneur) Migrant where there is evidence to establish the applicant's date of entry to the Isle of Man,

(ii) the date of the grant of entry clearance to the applicant, in the case of an applicant granted entry clearance as a Tier 1 (Entrepreneur) Migrant where there is no evidence to establish the applicant's date of entry to the Isle of Man, or

(iii) the date of the grant of leave to remain to the applicant, in any other case.

(e) Sub-paragraph (c) does not apply where the applicant's last grant of leave prior to the grant of the leave that he or she or she currently has was as a Tier 1 (Entrepreneur) Migrant, or a business person.

Requirements for indefinite leave to remain

245N. To qualify for indefinite leave to remain as a Tier 1 (Entrepreneur) Migrant, an applicant must meet the requirements listed below. If the applicant meets these requirements, indefinite leave to remain will be granted. If the applicant does not meet these requirements, the application will be refused.

Requirements—

(a) The applicant must not fall for refusal under the general grounds for refusal, and must not be an illegal entrant.

(b) The applicant must be engaged in business activity at the time of his or her application and the applicant must provide specified evidence to show this.

(c) The applicant must have spent a continuous period of 5 years lawfully in the Isle of Man, of which the most recent period must have been spent with leave as a Tier (1) (Entrepreneur) Migrant, and the rest may be made up of leave in any combination of the following categories—

(i) as a Tier 1 (Entrepreneur) Migrant,

(ii) as a business person.

(d) The applicant must have sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, with reference to paragraphs 33B to 33D, unless the applicant is under the age of 18 or aged 65 or over at the time the application is made.

TIER 1 (INVESTOR) MIGRANTS

Purpose

245O. This route is for high net worth individuals making a substantial financial investment to the Isle of Man.

Entry to the Isle of Man

245P. All migrants arriving in the Isle of Man and wishing to enter as a Tier 1 (Investor) Migrant must have a valid entry clearance for entry under this route. If they do not have a valid entry clearance, entry will be refused.

Requirements for entry clearance

245Q. To qualify for entry clearance or leave to remain as a Tier 1 (Investor) Migrant, an applicant must meet the requirements listed below. If the applicant meets these requirements, entry clearance will be granted. If the applicant does not meet these requirements, the application will be refused.

Requirements—
(a) The applicant must not fall for refusal under the general grounds for refusal.

(b) The applicant must have a minimum of 75 points under paragraphs 42 to 50 of Appendix A.

(c) An applicant who has, or was last granted, leave as a student or a postgraduate doctor or dentist, a student nurse, or as a student re-sitting an examination or a student writing up a thesis and:

(i) is currently being sponsored by a government or international scholarship agency, or

(ii) was being sponsored by a government or international scholarship agency, and that sponsorship came to an end 12 months ago or less,

must provide the unconditional written consent of the sponsoring Government or agency to the application and must provide the specified documents to show that this requirement has been met.

Period and conditions of grant

245R. Entry clearance will be granted for a period of 3 years and will be subject to the following conditions—

(i) no recourse to public funds,

(ii) registration with the police, if this is required by paragraph 326, and

(iii) no employment as a doctor in training.

Requirements for leave to remain

245S. To qualify for leave to remain as a Tier 1 (Investor) Migrant, an applicant must meet the requirements listed below. If the applicant meets these requirements, leave to remain will be granted. If the applicant does not meet these requirements, the application will be refused.

Requirements—

(a) The applicant must not fall for refusal under the general grounds for refusal, and must not be an illegal entrant.

(b) The applicant must have a minimum of 75 points under paragraphs 42 to 50 of Appendix A.

(c) The applicant must have, or have last been granted, entry clearance, leave to enter or remain—

(i) as a highly skilled migrant,

(ii) as a Tier 1 (General) Migrant,

(iii) as a Tier 1 (Entrepreneur) Migrant,

(iv) as a Tier 1 (Investor) Migrant,

(v) [Not Used]

(vi) as a business person,

(vii) [Not Used]

(viii) as an investor,

(ix) as a student,

(x) as a student nurse,

(xi) as a student re-sitting an examination,

(xii) [Not Used]

(xiii) as a work permit holder, or

(xiv) as a writer, composer or artist.

(d) An applicant who has, or was last granted, leave as a student, student nurse or student re-sitting an examination and—

(i) is currently being sponsored by a government or international scholarship agency, or

(ii)

(iii) was being sponsored by a government or international scholarship agency, and that sponsorship came to an end 12 months ago or less, must provide the unconditional written consent of the sponsoring Government or agency to the application and must provide the specified documents to show that this requirement has been met.

Period, conditions and curtailment of grant

245T. (a) Leave to remain will be granted—

(i) for a period of 2 years, to an applicant who has, or was last granted, leave as a Tier 1 (Investor) Migrant,

(ii) for a period of 3 years, to any other applicant.

(b) Leave to remain under this route will be subject to the following conditions—

(i) no recourse to public funds,

(ii) registration with the police, if this is required by paragraph 326, and

(iii) no employment as a doctor in training, unless the applicant has, or has last been granted, entry clearance, leave to enter or leave to remain that was not subject to a condition restricting their employment whether that is employment as a Doctor in Training or otherwise, and has been employed during that leave on an NHS Foundation Programme or as a Doctor in Training.

(c) Without prejudice to the grounds for curtailment in paragraph 323, leave to enter or remain as a Tier 1 (Investor) Migrant may be curtailed if within 3 months of the date specified in paragraph (d), the applicant has not invested, or had invested on his or her behalf, at least £750,000 of his or her capital in the Isle of Man by way of share capital or loan capital in active and trading Isle of Man registered companies other than those principally engaged in property investment.

(d) The date referred to in sub-paragraph (c) is—

(i) the date of the applicant's entry to the Isle of Man, in the case of an applicant granted entry clearance as a Tier 1 (Investor) Migrant where there is evidence to establish the applicant's date of entry to the Isle of Man, or

(ii) the date of the grant of entry clearance to the applicant, in the case of an applicant granted entry clearance as a Tier 1 (Investor) Migrant where there is no evidence to establish the applicant's date of entry to the Isle of Man, or

(iii) the date of the grant of leave to remain to the applicant, in any other case.

(e) Subparagraph (c) does not apply where the applicant's last grant of leave prior to the grant of the leave that he or she currently has was as a Tier 1 (Investor) Migrant or as an investor.

Requirements for indefinite leave to remain

245U. To qualify for indefinite leave to remain, a Tier 1 (Investor) Migrant must meet the requirements listed below. If the applicant meets these requirements, indefinite leave to remain will be granted. If the applicant does not meet these requirements, the application will be refused.

Requirements—

(a) The applicant must not fall for refusal under the general grounds for refusal, and must not be an illegal entrant.

(b) The applicant must have spent a continuous period of 5 years lawfully in the Isle of Man, of which the most recent period must have been spent with leave as a Tier 1 (Investor) Migrant, and the rest may be made up of leave in any combination of the following categories—

(i) as a Tier 1 (Investor) Migrant,

(ii) as an investor.

(c) The applicant must have maintained the investment referred to in Table 8 of Appendix A throughout the period of 5 years referred to in subparagraph (b) above other than in the first 3 months of that period and, in relation to time spent with leave as a Tier 1 (Investor) Migrant, the applicant must provide specified documents to show that this requirement has been met.

(d) The applicant must have sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, with reference to paragraphs 33B to 33D, unless the applicant is under the age of 18 or aged 65 or over at the time the application is made.

TIER 5 (YOUTH MOBILITY SCHEME) TEMPORARY MIGRANTS

Purpose of this route

245ZI. This route is for sponsored young people from participating countries who wish to live and work temporarily in the Isle of Man.

Entry clearance

245ZJ. All migrants arriving in the Isle of Man and wishing to enter under this route must have a valid entry clearance for entry under this route. If they do not have a valid entry clearance, entry will be refused.

Requirements for entry clearance

245ZK To qualify for entry clearance as a Tier 5 (Youth Mobility Scheme) Temporary Migrant, an applicant must meet the requirements listed below. However, whether or not the requirements listed below are met, if a citizen of a country listed in Appendix G makes an application for entry clearance which, if granted, would mean that the annual allocation, by the United Kingdom, of places under this route for citizens of that country would be

exceeded, the application will be refused. The applicant will also be refused if the requirements listed below are not met.

Requirements—

(a) The applicant must not fall for refusal under the general grounds for refusal.

(b) The applicant must be—

(i) a citizen of a country listed in Appendix G to these Rules, or

(ii) a British Overseas Citizen, British Overseas Territories Citizen or British National (Overseas), as defined by the British Nationality Act 1981 (of Parliament)[3] and must provide the specified documents to show that this requirement has been met.

(c) The applicant must have a minimum of 40 points under paragraphs 101 to 104 of Appendix A.

(d) The applicant must have a minimum of 10 points under paragraphs 6 and 7 of Appendix C.

(e) The applicant must have no children under the age of 18 who are either living with him or her or for whom he or she is financially responsible.

(f) The applicant must not previously have spent time in the Isle of Man as a Working Holidaymaker or a Tier 5 (Youth Mobility Scheme) Temporary Migrant.

Period and conditions of grant

245ZL. Entry clearance will be granted for a period of 2 years subject to the following conditions—

(a) no recourse to public funds,

(b) registration with the police, if this is required by paragraph 326,

(c) no employment as a professional sportsperson (including as a sports coach), or as a doctor in training, and

(d) no self employment, except where the following conditions are met—

(i) the migrant has no premises which he or she or she owns, other than his or her home, from which he or she or she carries out his or her business,

(ii) the total value of any equipment used in the business does not exceed £5,000, and

(iii) the migrant has no employees.".

[3] 1981 c. 61

PART 7: OTHER CATEGORIES

PERSONS EXERCISING RIGHTS OF ACCESS TO A CHILD RESIDENT IN THE ISLE OF MAN

Requirements for leave to enter the Isle of Man as a person exercising rights of access to a child resident in the Isle of Man

246. The requirements to be met by a person seeking leave to enter the Isle of Man to exercise access rights to a child resident in the Isle of Man are that:

(i) the applicant is the parent of a child who is resident in the Isle of Man ; and

(ii) the parent or carer with whom the child permanently resides is resident in the Isle of Man; and

(iii) the applicant produces evidence that he has access rights to the child in the form of:

(a) a Residence Order or a Contact Order granted by a Court in the Isle of Man; or

(b) a certificate issued by a Court in the Isle of Man confirming the applicant's intention to maintain contact with the child; and

(iv) the applicant intends to continue to take an active role in the child's upbringing; and

(v) the child is under the age of 18; and

(vi) there will be adequate accommodation for the applicant and any dependants without recourse to public funds in accommodation which the applicant owns or occupies exclusively; and

(vii) the applicant will be able to maintain himself and any dependants adequately without recourse to public funds; and

(viii) the applicant holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter the Isle of Man as a person exercising rights of access to a child resident in the Isle of Man

247. Leave to enter as a person exercising access rights to a child resident in the Isle of Man may be granted for 12 months in the first instance, provided that a valid Isle of Man entry clearance for entry in this capacity is produced to the Immigration Officer on arrival.

Refusal of leave to enter the Isle of Man as a person exercising rights of access to a child resident in the Isle of Man

248. Leave to enter as a person exercising rights of access to a child resident in the Isle of Man is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival.

Requirements for leave to remain in the Isle of Man as a person exercising rights of access to a child resident in the Isle of Man

248A. The requirements to be met by a person seeking leave to remain in the Isle of Man to exercise access rights to a child resident in the Isle of Man are that:

(i) the applicant is the parent of a child who is resident in the Isle of Man; and

(ii) the parent or carer with whom the child permanently resides is resident in the Isle of Man; and

(iii) the applicant produces evidence that he has access rights to the child in the form of:

(a) a Residence Order or a Contact Order granted by the Court in the Isle of Man; or

(b) a certificate issued by a Court in the Isle of Man confirming the applicant's intention to maintain contact with the child; or

(c) a statement from the child's other parent (or, if contact is supervised, from the supervisor) that the applicant is maintaining contact with the child; and

(iv) the applicant takes and intends to continue to take an active role in the child's upbringing; and

(v) the child visits or stays with the applicant on a frequent and regular basis and the applicant intends this to continue; and

(vi) the child is under the age of 18; and

(vii) the applicant has limited leave to remain in the Isle of Man as the spouse, civil partner, unmarried partner or same-sex partner of a person present and settled in the Isle of Man who is other parent of the child; and

(viii) the applicant has not remained in breach of the immigration laws; and

(ix) there will be adequate accommodation for the applicant and any dependants without recourse to public funds in accommodation which the applicant owns or occupies exclusively; and

(x) and the applicant will be able to maintain himself and any dependents adequately without recourse to public funds

Leave to remain in the Isle of Man as a person exercising rights of access to a child resident in the Isle of Man

248B. Leave to remain as a person exercising access rights to a child resident in the Isle of Man may be granted for 12 months in the first instance, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 248A is met.

Refusal of leave to remain in the Isle of Man as a person exercising rights of access to a child resident in the Isle of Man

248C. Leave to remain as a person exercising rights of access to a child resident in the Isle of Man is to be refused if the Lieutenant Governor is not satisfied that the requirements of paragraph 248A is met.

Indefinite leave to remain in the Isle of Man as a person exercising rights of access to a child resident in the Isle of Man

248D. The requirements for indefinite leave to remain in the Isle of Man as a person exercising rights of access to a child resident in the Isle of Man are that:

(i) the applicant was admitted to the Isle of Man or granted leave to remain in the Isle of Man for a period of 12 months as a person exercising rights of access to a child; and has completed a period of 12 months as a person exercising rights of access to a child in the Isle of Man; and

(ii) the applicant takes and intends to continue to take an active role in the child's upbringing; and

(iii) the child visits or stays with the applicant on a frequent and regular basis and the applicant intends this to continue; and

(iv) there will be adequate accommodation for the applicant and any dependants without recourse to public funds in accommodation which the applicant owns or occupies exclusively; and

(v) the applicant will be able to maintain himself and any dependants adequately without recourse to public funds; and

(vi) the child is under 18 years of age"; and

(vii) the applicant has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application.

Indefinite leave to remain as a person exercising rights of access to a child resident in the Isle of Man

248E. Indefinite leave to remain as a person exercising rights of access to a child may be granted provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 248D is met.

Refusal of indefinite leave to remain in the Isle of Man as a person exercising rights of access to a child resident in the Isle of Man

248F. Indefinite leave to remain as a person exercising rights of access to a child is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 248D is met.

[249-254 Not Used]

EEA NATIONALS AND THEIR FAMILIES

Settlement

255. An EEA national (other than a student) and the family member of such a person, who has been issued with a residence permit or residence document valid for 5 years, and who has remained in the Isle of Man for 4 years and continues to do so may, on application, have his residence permit or residence document (as the case may be) endorsed to show permission to remain in the Isle of Man indefinitely.

256. A self employed EEA national who has a right to reside in the Isle of Man by virtue of having ceased such activity in the Isle of Man and the family member of such a person, will be permitted to remain in the Isle of Man indefinitely.

257. In addition, the following persons will be permitted to remain in the Isle of Man indefinitely:

(i) an EEA national who has been continuously resident in the Isle of Man for at least 3 years, has been in employment in the Isle of Man or any Member State of the EEA for the preceding 12 months and has reached the age of entitlement to a state retirement pension;

(ii) an EEA national who has ceased to be employed owing to a permanent incapacity for work arising out of an accident at work or an occupational disease entitling him to a state disability pension;

(iii) an EEA national who has been continuously resident in the Isle of Man for at least 2 years, and who has ceased to be employed owing to a permanent incapacity for work;

(iv) a member of the family of an EEA national to whom (i), (ii) or (iii) above applies;

(v) a member of the family of an EEA national who dies during his working life after having resided continuously in the Isle of Man for at least 2 years, or whose death results from an accident at work or an occupational disease.

"Requirements for leave to enter or remain as the primary carer or relative of an EEA national self-sufficient child

257C. The requirements to be met by a person seeking leave to enter or remain as the primary carer or relative of an EEA national self-sufficient child are that the applicant—

(i) is—

(a) the primary carer; or

(b) the parent; or

(c) the sibling,

of an EEA national under the age of 18 who has a right of residence in the Isle of Man under the EEA Regulations as a self-sufficient person; and

(ii) is living with the EEA national or is seeking entry to the Isle of Man in order to live with the EEA national; and

(iii) in the case of a sibling of the EEA national—

(a) is under the age of 18 or has current leave to enter or remain in this capacity; and

(b) is unmarried and is not a civil partner, has not formed an independent family unit and is not leading an independent life; and

(iv) can, and will, be maintained and accommodated without taking employment or having recourse to public funds; and

(v) if seeking leave to enter, holds a valid Isle of Man entry clearance for entry in this capacity.

In this paragraph, "sibling", includes a half-brother or half-sister and a stepbrother or stepsister.

Leave to enter or remain as the primary carer or relative of an EEA national self-sufficient child

257D. Leave to enter or remain in the Isle of Man as the primary carer or relative of an EEA national self-sufficient child may be granted for a period not exceeding 5 years provided that, in the case of an application for leave to enter, the applicant is able to produce to the Immigration Officer, on arrival a valid entry clearance for entry in this capacity or, in the case of an application for leave to remain, the applicant is able to satisfy the Governor that each of the requirements of paragraph 257C (i) to (iv) is met. Leave to enter or remain is to be subject to a condition prohibiting employment and recourse to public funds.

Refusal of leave to enter or remain as the primary carer or relative of an EEA national self-sufficient child

257E. Leave to enter or remain in the Isle of Man as the primary carer or relative of an EEA national self-sufficient child is to be refused if, in the case of an application for leave to enter, the applicant is unable to produce to the Immigration Officer on arrival a valid Isle of Man entry clearance for entry in this capacity or, in the case of an application for leave to remain, if the applicant is unable to satisfy the Governor that each of the requirements of paragraph 257C (i) to (iv) is met.".

The EEA family permit

258 to 261 [DELETED]

RETIRED PERSONS OF INDEPENDENT MEANS

Requirements for leave to enter the Isle of Man as a retired person of independent means

263. [DELETED]

Leave to enter as a retired person of independent means

264. [DELETED]

Refusal of leave to enter as a retired person of independent means

265. [DELETED]

Requirements for an extension of stay as a retired person of independent means

266. The requirements for an extension of stay as a retired person of independent means are that the applicant –

(i) entered the Isle of Man with a valid Isle of Man entry clearance as a retired person of independent means, and

(ii) meets the following requirements:

(a) has under his control and disposable in the Isle of Man an income of his own of not less than £50,000 per annum,

(b) is able and willing to maintain and accommodate himself and any dependants indefinitely in the Isle of Man from his own resources with no assistance from any other person and without taking employment or having recourse to public funds,

(c) can demonstrate a close connection with the Isle of Man, and

(iii) has made the Isle of Man his main home.

266A. [DELETED]

266B. [DELETED]

266C. [DELETED]'

266D. [DELETED]

266E [NOT USED]

Extension of stay as a retired person of independent means

267. An extension of stay as a retired person of independent means, with a prohibition on the taking of employment, may be granted so as to bring the person's stay in this category up to a maximum of 5 years in aggregate, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 266 is met. An extension of stay as a retired person of independent means, with a prohibition on the taking of employment, may be granted for a maximum period of 5 years, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 266A, 266B, 266C or 266D is met.

Refusal of extension of stay as a retired person of independent means

268. An extension of stay as a retired person of independent means is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 266, 266A, 266B, 266C or 266D is met.

Indefinite leave to remain for a retired person of independent means

269. Indefinite leave to remain may be granted, on application, to a person admitted as a retired person of independent means provided he:

(i) has spent a continuous period of 5 years in the Isle of Man in this capacity; and

(ii) has met the requirements of paragraph 266 throughout the 5 year period and continues to do so.

Refusal of indefinite leave to remain for a retired person of independent means

270. Indefinite leave to remain in the Isle of Man for a retired person of independent means is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 269 is met.

SPOUSES OR CIVIL PARTNERS OF PERSONS WHO HAVE OR HAVE HAD LEAVE TO ENTER OR REMAIN IN THE ISLE OF MAN AS RETIRED PERSONS OF INDEPENDENT MEANS

Requirements for leave to enter as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means

271. The requirements to be met by a person seeking leave to enter the Isle of Man as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means are that:

(i) the applicant is married to or the civil partner of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means; and

(ii) each of the parties intends to live with the other as his or her spouse or civil partners during the applicant's stay and the marriage or civil partnership is subsisting; and

(iii) there will be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively; and

(iv) the parties will be able to maintain themselves and any dependants adequately without recourse to public funds; and

(v) the applicant does not intend to stay in the Isle of Man beyond any period of leave granted to his spouse or civil partner; and

(vi) the applicant holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means

272. A person seeking leave to enter the Isle of Man as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means may be given leave to enter for a period not in excess of that granted to the person with limited leave to enter or remain as a retired person of independent means, provided the Immigration Officer is satisfied that each of the requirements of paragraph 271 is met.

Refusal of leave to enter as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means

273. Leave to enter as the spouse or civil partner of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 271 is met.

Requirements for extension of stay as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man as a retired person of independent means

273A. The requirements to be met by a person seeking an extension of stay in the Isle of Man as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man as a retired person of independent means are that the applicant:

(i) is married to or the civil partner of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means; or

(ii) is married to or the civil partner of a person who has limited leave to enter or remain in the Isle of Man as a retired person of independent means and who is being granted indefinite leave to remain at the same time; or

(iii) is married to or the civil partner of a person who has indefinite leave to remain in the Isle of Man and who had limited leave to enter or remain as a retired person of independent means immediately before being granted indefinite leave to remain; and

(iv) meets the requirements of paragraph 271 (ii) – (v); and

(v) was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Extension of stay as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man as a retired person of independent means

273B. An extension of stay in the Isle of Man as:

(i) the spouse or civil partner of a person who has limited leave to enter or remain as a retired person of independent means may be granted for a period not in excess of that granted to the person with limited leave to enter or remain; or

(ii) the spouse or civil partner of a person who is being admitted at the same time for settlement or the spouse or civil partner of a person who has indefinite leave to remain may be granted for a period not exceeding 2 years,

in both instances, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 273A is met.

Refusal of extension of stay as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man as a retired person of independent means

273C. An extension of stay in the Isle of Man as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man as a retired person of independent means is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 273A is met.

Requirements for indefinite leave to remain for the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man as a retired person of independent means

273D. The requirements to be met by a person seeking indefinite leave to remain in the Isle of Man as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man as a retired person of independent means are that the applicant:

(i) is married to or the civil partner of a person who has limited leave to enter or remain in the Isle of Man as a retired person of independent means and who is being granted indefinite leave to remain at the same time; or

(ii) is married to or the civil partner of a person who has indefinite leave to remain in the Isle of Man and who had limited leave to enter or remain as a retired person of independent means immediately before being granted indefinite leave to remain; and

(iii) meets the requirements of paragraph 271 (ii) – (v); and

(iv) has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application; and

(v) was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Indefinite leave to remain as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man as a retired person of independent means

273E. Indefinite leave to remain in the Isle of Man for the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man as a retired person of independent means may be granted provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 273D is met.

Refusal of indefinite leave to remain as the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man as a retired person of independent means

273F. Indefinite leave to remain in the Isle of Man for the spouse or civil partner of a person who has or has had leave to enter or remain in the Isle of Man as a retired person of independent means is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 273D is met."

CHILDREN OF PERSONS WITH LIMITED LEAVE TO ENTER OR REMAIN IN THE ISLE OF MAN AS RETIRED PERSONS OF INDEPENDENT MEANS

Requirements for leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means

274. The requirements to be met by a person seeking leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means are that:

(i) he is the child of a parent who has been admitted to or allowed to remain in the Isle of Man as a retired person of independent means; and

(ii) he is under the age of 18 or has current leave to enter or remain in this capacity; and

(iii) he is unmarried, is not a civil partner, has not formed an independent family unit and is not leading an independent life; and

(iv) he can, and will be, maintained and accommodated adequately without recourse to public funds in accommodation which his parent(s) own or occupy exclusively; and

(v) will not stay in the Isle of Man beyond any period of leave granted to his parent(s); and

(vi) both parents are being or have been admitted to or allowed to remain in the Isle of Man save where:

(a) the parent he is accompanying or joining is his sole surviving parent; or

(b) the parent he is accompanying or joining has had sole responsibility for his upbringing; or

(c) there are serious and compelling family or other considerations which make exclusion from the Isle of Man undesirable and suitable arrangements have been made for his care; and

(vii) if seeking leave to enter, he holds a valid Isle of Man entry clearance for entry in this capacity or, if seeking leave to remain, was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means

275. A person seeking leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means may be given leave to enter or remain in the Isle of Man for a period not in excess of that granted to the person with limited leave to enter or remain as a retired person of independent means provided that, in relation to an application for leave to enter, he is able to produce to the Immigration Officer on arrival, a valid Isle of Man entry clearance for entry in this capacity, or in the case of an application for limited leave to remain, he was admitted with a valid Isle of Man entry clearance for entry in this category and is able to satisfy the Lieutenant Governor that each of the requirements of paragraph 274 (i)-(vii) is met. An application for indefinite leave to remain in this capacity may be granted provided the applicant was admitted with a valid Isle of Man entry clearance for entry in this capacity and is able to satisfy the Lieutenant Governor that each of the requirements of paragraph 274 (i)-(vii) is met and provided indefinite leave to remain is, at the same time, being granted to the person with limited leave to enter or remain as a retired person of independent means. Leave to enter or remain is to be subject to a condition prohibiting employment except in relation to the grant of indefinite leave to remain.

Refusal of leave to enter or remain as the child of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means

276. Leave to enter or remain in the Isle of Man as the child of a person with limited leave to enter or remain in the Isle of Man as a retired person of independent means is to be refused if, in relation to an application for leave to enter, a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival, or in the case of an application for limited leave to remain, if the applicant was not admitted with a valid Isle of Man entry clearance for entry in this capacity or is unable to satisfy the Lieutenant Governor that each of the requirements of paragraph 274 (i)-(vii) is met. An application for indefinite leave to remain in this category is to be refused if the applicant was not admitted with a valid Isle of Man entry clearance for entry in this capacity or is unable to satisfy the Lieutenant Governor that each of the requirements of paragraph 274 (i)-(vii) is met or if indefinite leave to remain is not, at the same time, being granted to the person with limited leave to enter or remain as a retired person of independent means.

Long residence

Long residence in the Isle of Man

276A. For the purposes of paragraphs 276B to 276E:

(a) "continuous residence" means residence in the Isle of Man for an unbroken period, and for these purposes a period shall not be considered to have been broken where an applicant is absent from the Isle of Man for a period of 6 months or less at any one time, provided that the applicant in question has existing limited leave to enter or remain upon their departure and return, but shall be considered to have been broken if the applicant:

(i) has been removed under Schedule 2 of the 1971 Act, has been deported or has left the Isle of Man having been refused leave to enter or remain here; or

(ii) has left the Isle of Man and , on doing so, evidenced a clear intention not to return; or

(iii) left the Isle of Man in circumstances in which he could have had no reasonable expectation at the time of leaving that he would lawfully be able to return; or

(iv) has been convicted of an offence and was sentenced to a period of imprisonment or was directed to be detained in an institution other than a prison (including, in particular, a hospital or an institution for young offenders), provided that the sentence in question was not a suspended sentence; or

(v) has spent a total of more than 18 months absent from the Isle of Man during the period in question.

(b) "lawful residence" means residence which is continuous residence pursuant to:

(i) existing leave to enter or remain; or

(ii) temporary admission within section 11 of the 1971 Act where leave to enter or remain is subsequently granted; or

(iii) an exemption from immigration control, including where an exemption ceases to apply if it is immediately followed by a grant of leave to enter or remain.

Requirements for an extension of stay on the ground of long residence in the Isle of Man

276A1. The requirement to be met by a person seeking an extension of stay on the ground of long residence in the Isle of Man is that the applicant meets all the requirements in paragraph 276B of these rules, except the requirement to have sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands contained in paragraph 276B (iii).

Extension of stay on the ground of long residence in the Isle of Man

276A2. An extension of stay on the ground of long residence in the Isle of Man may be granted for a period not exceeding 2 years provided that the Lieutenant Governor is satisfied that the requirement in paragraph 276A1 is met.

Conditions to be attached to extension of stay on the ground of long residence in the Isle of Man

276A3. Where an extension of stay is granted under paragraph 276A2:

(i) if the applicant has spent less than 14 years in the Isle of Man , the grant of leave should be subject to the same conditions attached to his last period of lawful leave, or

(ii) if the applicant has spent 14 years or more in the Isle of Man, the grant of leave should not contain any restriction on employment.

Refusal of extension of stay on the ground of long residence in the Isle of Man

276A4. An extension of stay on the ground of long residence in the Isle of Man is to be refused if the Lieutenant Governor is not satisfied that the requirement in paragraph 276A1 is met."

Requirements for indefinite leave to remain on the ground of long residence in the Isle of Man

276B. The requirements to be met by an applicant for indefinite leave to remain on the ground of long residence in the Isle of Man are that:

(i) (a) he has had at least 10 years continuous lawful residence in the Isle of Man; or

(b) he has had at least 14 years continuous residence in the Isle of Man, excluding any period spent in the Isle of Man following service of notice of liability to removal or notice of a decision to remove by way of directions under paragraphs 8 to 10, or 12 to 14, of Schedule 2 to the Immigration Act 1971or of a notice of intention to deport him from the Isle of Man, United Kingdom or Channel Islands; and.

(ii) having regard to the public interest there are no reasons why it would be undesirable for him to be given indefinite leave to remain on the ground of long residence, taking into account his:

(a) age; and

(b) strength of connections in the Isle of Man; and

(c) personal history, including character, conduct, associations and employment record; and

(d) domestic circumstances; and

(e) previous criminal record and the nature of any offence of which the person has been convicted; and

(f) compassionate circumstances; and

(g) any representations received on the person's behalf, and

(iii) the applicant has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application.

Indefinite leave to remain on the ground of long residence in the Isle of Man

276C. Indefinite leave to remain on the ground of long residence in the Isle of Man may be granted provided that the Lieutenant Governor is satisfied that each of the requirements of paragraph 276B is met.

Refusal of indefinite leave to remain on the ground of long residence in the Isle of Man

276D. Indefinite leave to remain on the ground of long residence in the Isle of Man is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 276B is met.

PART 8: FAMILY MEMBERS

SPOUSES AND CIVIL PARTNERS

277. Nothing in these Rules shall be construed as permitting a person to be granted entry clearance, leave to enter, leave to remain or variation of leave as a spouse or civil partner of another if either the applicant or the sponsor will be aged under 21 on the date of arrival in the Isle of Man or (as the case may be) on the date on which the leave to remain or variation of leave would be granted.

278. Nothing in these Rules shall be construed as allowing a person to be granted entry clearance, leave to enter, leave to remain or variation of leave as the spouse or civil partner of a man or woman (the sponsor) if:

(i) his or her marriage or civil partnership to the sponsor is polygamous; and

(ii) there is another person living who is the husband or wife of the sponsor and who:

(a) is, or at any time since his or her marriage or civil partnership to the sponsor has been, in the Isle of Man; or

(b) has been granted a certificate of entitlement in respect of the right of abode mentioned in Section 2(1)(a) of the Immigration Act 1988 or an entry clearance to enter the Isle of Man as the husband or wife of the sponsor.

For the purpose of this paragraph a marriage may be polygamous although at its inception neither party had any other spouse or civil partner.

279. Paragraph 278 does not apply to any person who seeks entry clearance, leave to enter, leave to remain or variation of leave where:

(i) he or she has been in the Isle of Man before 1 August 1988 having been admitted for the purpose of settlement as the husband or wife of the sponsor ; or

(ii) he or she has, since her marriage or civil partnership to the sponsor , been in the Isle of Man at any time when there was no such other spouse or civil partner living as is mentioned in paragraph 278 (ii).

but where a person claims that paragraph 278 does not apply to them because they have been in the Isle of Man in circumstances which cause them to fall within sub-paragraph (i) or (ii) of that paragraph it shall be for them to prove that fact.

280. For the purposes of paragraphs 278 and 279 the presence of any wife or husband in the Isle of Man in any of the following circumstances shall be disregarded:

(i) as a visitor; or

(ii) as an illegal entrant; or

(iii) in circumstances whereby a person is deemed by virtue of Section 11 (1) of the Immigration Act 1971 not to have entered the Isle of Man.

SPOUSES OR CIVIL PARTNERS OF PERSONS PRESENT AND SETTLED IN THE ISLE OF MAN OR BEING ADMITTED ON THE SAME OCCASION FOR SETTLEMENT

Requirements for leave to enter the Isle of Man with a view to settlement as the spouse or civil partner of a person present and settled in the Isle of Man or being admitted on the same occasion for settlement

281. The requirements to be met by a person seeking leave to enter the Isle of Man with a view to settlement as the spouse or civil partner of a person present and settled in the Isle of Man or who is on the same occasion being admitted for settlement are that:

(i) (a) the applicant is married to, or the civil partner of, a person present and settled in the Isle of Man or who is on the same occasion being admitted for settlement; or

(b)(i) the applicant is married to or the civil partner of a person who has a right of abode in the Isle of Man or indefinite leave to enter or remain in the Isle of Man and is on the same occasion seeking admission to the Isle of Man for the purposes of settlement and the parties were married or formed a civil partnership at least 4 years ago, since which time they have been living together outside the Isle of Man; and

(b)(ii) the applicant has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application; and

(ii) the parties to the marriage or civil partnership have met; and

(iii) each of the parties intends to live permanently with the other as his or her spouse or civil partner and the marriage or civil partnership is subsisting; and

(iv) there will be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively; and

(v) the parties will be able to maintain themselves and any dependants adequately without recourse to public funds; and

(vi) the applicant holds a valid Isle of Man entry clearance for entry in this capacity.

For the purposes of this paragraph and paragraphs 282-289 a member of HM Forces serving overseas, or a permanent member of HM Diplomatic Service or a comparable UK-based staff member of the British Council on a tour of duty abroad, or a staff member of the Department for International Development who is a British Citizen or is settled in the Isle of Man, is to be regarded as present and settled in the Isle of Man.

Leave to enter as the spouse or civil partner of a person present and settled in the Isle of Man or being admitted for settlement on the same occasion

282. A person seeking leave to enter the Isle of Man as the spouse or civil partner of a person present and settled in the Isle of Man or who is on the same occasion being admitted for settlement may:

(a) in the case of a person within paragraph 281(i)(a), be admitted for an initial period not exceeding 27 months, or

(b) in the case of a person who meets both of the requirements in paragraph 281(i)(b), be granted indefinite leave to enter, or

(c) in the case of a person who meets the requirement in paragraph 281(i)(b)(i), but not the requirement in paragraph 281(i)(b)(ii) to have sufficient knowledge of the English language and about life in the United Kingdom and Islands, be admitted for an initial period not exceeding 27 months,

in all cases provided the Immigration Officer is satisfied that each of the relevant requirements of paragraph 281 is met.

Refusal of leave to enter as the spouse or civil partner of a person present and settled in the Isle of Man or being admitted on the same occasion for settlement

283. Leave to enter the Isle of Man as the spouse or civil partner of a person present and settled in the Isle of Man or who is on the same occasion being admitted for settlement is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 281 is met.

Requirements for an extension of stay as the spouse or civil partner of a person present and settled in the Isle of Man

284. The requirements for an extension of stay as the spouse or civil partner of a person present and settled in the Isle of Man are that:

(i) the applicant has limited leave to enter or remain in the Isle of Man which was given in accordance with any of the provisions of these Rules, other than where as a result of that leave he would not have been in the Isle of Man beyond 6 months from the date on which he was admitted to the Isle of Man on this occasion in accordance with these Rules, unless the leave in question is limited leave to enter as a fiancé(e) or proposed civil partner or unless the leave in question was granted to the applicant as the spouse, civil partner, unmarried or same-sex partner of a highly skilled migrant, a person admitted to establish himself in business or an investor and that spouse or partner is the same person in relation to whom the applicant is applying for an extension of stay under this paragraph, and

(ii) the applicant is married to or the civil partner of a person present and settled in the Isle of Man, and

(iii) the parties to the marriage or civil partnership have met, and

(iv) the applicant has not remained in breach of the immigration laws, and

(v) the marriage or civil partnership has not taken place after a decision has been made to deport the applicant or he has been recommended for deportation or been given notice under Section 6(2) of the 1971 Act or been given directions for his removal under section 10 of the Immigration and Asylum Act 1999, and

(vi) each of the parties intends to live permanently with the other as his or her spouse or civil partner and the marriage or civil partnership is subsisting, and

(vii) there will be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively; and

(viii) the parties will be able to maintain themselves and any dependants adequately without recourse to public funds.

Extension of stay as the spouse or civil partner of a person present and settled in the Isle of Man

285. An extension of stay as the spouse or civil partner of a person present and settled in the Isle of Man may be granted for a period of 2 years in the first instance, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 284 is met.

Refusal of extension of stay as the spouse or civil partner of a person present and settled in the Isle of Man

286. An extension of stay as the spouse or civil partner of a person present and settled in the Isle of Man is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 284 is met.

Requirements for indefinite leave to remain as the spouse or civil partner of a person present and settled in the Isle of Man

287. (a) The requirements for indefinite leave to remain for the spouse or civil partner of a person present and settled in the Isle of Man are that -

(i) (a) the applicant was admitted to the Isle of Man for a period not exceeding 27 months or given an extension of stay for a period of 2 years in accordance with paragraphs 281 to 286 of these Rules and has completed a period of 2 years as the spouse or civil partner of a person present and settled in the Isle of Man, or

(b) the applicant was admitted to the Isle of Man for a period not exceeding 27 months or given an extension of stay for a period of 2 years in accordance with paragraphs 295AA to 295F of these Rules and during that period married or formed a civil partnership with the person whom he or she was admitted or granted an extension of stay to join and has completed a period of 2 years as the unmarried or same-sex partner and then the spouse or civil partner of a person present and settled in the Isle of Man, or

(c) was admitted to the Isle of Man in accordance with leave granted under paragraph 282(c) of these rules, and

(d) the applicant was admitted to the Isle of Man or given an extension of stay as the spouse or civil partner of a Tier 1 Migrant, and then obtained an extension of stay under paragraphs 281 to 286 and has completed a period of 2 years as the spouse or civil partner of the person who is now present and settled here; or

(e) the applicant was admitted to the Isle of Man or given an extension of stay as the unmarried or same-sex partner of a Tier 1 Migrant and during that period married or formed a civil partnership with the person whom he or she was admitted or granted an extension of stay to join and has completed a period of 2 years as the unmarried or same-sex partner and then the spouse or civil partner of the person who is now present and settled in the Isle of Man; and

(ii) the applicant is still the spouse or civil partner of the person he or she was admitted or granted an extension of stay to join and the marriage or civil partnership is subsisting, and

(iii) each of the parties intends to live permanently with the other as his or her spouse or civil partner, and

(iv) there will be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively, and

(v) the parties will be able to maintain themselves and any dependants without recourse to public funds, and

(vi) the applicant has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application.

(b) The requirements for indefinite leave to remain for the bereaved spouse or civil partner of a person present and settled in the Isle of Man are that:

(i) (a) the applicant was admitted to the Isle of Man for a period not exceeding 27 months or given an extension of stay for a period of 2 years as the spouse or civil partner of a person present and settled in the Isle of Man in accordance with paragraphs 281 to 286 of these Rules, or

(b) the applicant was admitted to the Isle of Man for a period not exceeding 27 months or given an extension of stay for a period of 2 years as the unmarried or same-sex partner of a person present and settled in the Isle of Man in accordance with paragraphs 295AA to 295F of these Rules and during that period married or formed a civil partnership with the person whom he or she was admitted or granted an extension of stay to join, and

(ii) the person whom the applicant was admitted or granted an extension of stay to join died during that period, and

(iii) the applicant was still the spouse or civil partner of the person he or she was admitted or granted an extension of stay to join at the time of death, and

(iv) each of the parties intended to live permanently with the other as his or her spouse or civil partner and the marriage or civil partnership was subsisting at the time of death.

Indefinite leave to remain for the spouse or civil partner of a person present and settled in the Isle of Man

288. Indefinite leave to remain as the spouse or civil partner of a person present and settled in the Isle of Man may be granted provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 287 is met.

Refusal of indefinite leave to remain for the spouse or civil partner of a person present and settled in the Isle of Man

289. Indefinite leave to remain for the spouse or civil partner of a person present and settled in the Isle of Man is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 287 is met.

Requirements for indefinite leave to remain in the Isle of Man as the victim of domestic violence

289A. The requirements to be met by a person who is the victim of domestic violence and who is seeking indefinite leave to remain in the Isle of Man are that;

(i) the applicant was admitted to the Isle of Man for a period not exceeding 27 months or given an extension of stay for a period of 2 years as the spouse or civil partner of a person present and settled here, or

(ii) the applicant was admitted to the Isle of Man for a period not exceeding 27 months or given an extension of stay for a period of 2 years as the unmarried or same sex partner of a person present and settled here, and

(iii) the applicant's relationship with their spouse, civil partner, unmarried partner or same-sex partner, as appropriate, was subsisting at the beginning of the relevant period of leave or extension of stay referred to in (i) or (ii) above, and

(iv) the applicant is able to produce such evidence as may be required by the Lieutenant Governor to establish that the relationship was caused to permanently break down before the end of that period as a result of domestic violence.

Indefinite leave to remain as the victim of domestic violence

289B. Indefinite leave to remain as the victim of domestic violence may be granted provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 289A is met.

Refusal of indefinite leave to remain as the victim of domestic violence

289C. Indefinite leave to remain as the victim of domestic violence is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 289A is met.

FIANCÉ(E)S AND PROPOSED CIVIL PARTNERS

289AA.Nothing in these Rules shall be construed as permitting a person to be granted entry clearance, leave to enter or variation of leave as a fiancé(e) or proposed civil partner if either the applicant or the sponsor will be aged under 21 on the date of arrival of the applicant in the Isle of Man or (as the case may be) on the date on which the leave to enter or variation on leave would be granted.

Requirements for leave to enter the Isle of Man as a fiancé(e) or proposed civil partner(ie with a view to marriage and permanent settlement in the Isle of Man)

290. The requirements to be met by a person seeking leave to enter the Isle of Man as a fiancé(e) or proposed civil partner are that:

(i) the applicant is seeking leave to enter the Isle of Man for marriage or civil partnership to a person present and settled in the Isle of Man or who is on the same occasion being admitted for settlement; and

(ii) the parties to the proposed marriage or civil partnership have met; and

(iii) each of the parties intends to live permanently with the other as his or her spouse or civil partner after the marriage or civil partnership; and

(iv) adequate maintenance and accommodation without recourse to public funds will be available for the applicant until the date of the marriage or civil partnership; and

(v) there will, after the marriage or civil partnership, be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively; and

(vi) the parties will be able after the marriage or civil partnership to maintain themselves and any dependants adequately without recourse to public funds; and

(vii) the applicant holds a valid Isle of Man entry clearance for entry in this capacity.

290A. For the purposes of paragraph 290 and paragraphs 291 to 295, an EEA national who holds a document certifying permanent residence issued under the EEA Regulations is to be regarded as present and settled in the Isle of Man.

Leave to enter as a fiancé(e) or proposed civil partner

291. A person seeking leave to enter the Isle of Man as a fiancé(e) or proposed civil partner may be admitted, with a prohibition on employment, for a period not exceeding 6 months to

enable the marriage or civil partnership to take place provided a valid Isle of Man entry clearance for entry in this capacity is produced to the Immigration Officer on arrival.

Refusal of leave to enter as a fiancé(e) or proposed civil partner

292. Leave to enter the Isle of Man as a fiancé(e) or proposed civil partner is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival.

Requirements for an extension of stay as a fiancé(e)or proposed civil partner

293. The requirements for an extension of stay as fiancé(e) or proposed civil partner are that:

(i) the applicant was admitted to the Isle of Man with a valid Isle of Man entry clearance as a fiancé(e) or proposed civil partner; and

(ii) good cause is shown why the marriage or civil partnership did not take place within the initial period of leave granted under paragraph 291; and

(iii) there is satisfactory evidence that the marriage or civil partnership will take place at an early date; and

(iv) the requirements of paragraph 290 (ii)-(vi) are met.

Extension of stay as a fiancé(e) or proposed civil partner

294. An extension of stay as a fiancé(e) or proposed civil partner may be granted for an appropriate period with a prohibition on employment to enable the marriage or civil partnership to take place provided that the Lieutenant Governor is satisfied that each of the requirements of paragraph 293 is met.

Refusal of extension of stay as a fiancé(e) or proposed civil partner

295. An extension of stay is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 293 is met.

LEAVE TO ENTER AS THE UNMARRIED PARTNER OF A PERSON PRESENT AND SETTLED IN THE ISLE OF MAN OR BEING ADMITTED ON THE SAME OCCASION FOR SETTLEMENT

295AA. Nothing in these Rules shall be construed as permitting a person to be granted entry clearance, leave to enter or variation of leave as an unmarried partner if either the applicant or the sponsor will be aged under 21 on the date of arrival of the applicant in the Isle of Man or (as the case maybe) on the date on which the leave to enter or variation of leave would be granted.

Requirements for leave to enter the Isle of Man with a view to settlement as the unmarried partner of a person present and settled in the Isle of Man or being admitted on the same occasion for settlement

295A. The requirements to be met by a person seeking leave to enter the Isle of Man with a view to settlement as the unmarried partner of a person present and settled in the Isle of Man or being admitted on the same occasion for settlement, are that:

(i) (a) the applicant is the unmarried partner of a person present and settled in the Isle of Man or who is on the same occasion being admitted for settlement and the parties have been living together in a relationship akin to marriage which has subsisted for two years or more; or

(b)(i) the applicant is the unmarried or same-sex partner of a person who has a right of abode in the Isle of Man or indefinite leave to enter or remain in the Isle of Man and is on the same occasion seeking admission to the Isle of Man for the purposes of settlement and the parties have been living together outside the Isle of Man in a relationship akin to marriage which has subsisted for 4 years or more; and

(ii) the applicant has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application; and

(ii) any previous marriage (or similar relationship) by either partner has permanently broken down; and

(iii) the parties are not involved in a consanguineous relationship with one another; and;

(iv) there will be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively; and

(v) the parties will be able to maintain themselves and any dependants adequately without recourse to public funds; and

(vi) the parties intend to live together permanently; and

(vii) the applicant holds a valid Isle of Man entry clearance for entry in this capacity.

For the purposes of this paragraph and paragraphs 295B-295I, a member of HM Forces serving overseas or a permanent member of HM Diplomatic Service or a comparable UK-based staff member of the British Council on a tour of duty abroad, or a staff member of the Department for International Development who is a British Citizen or is settled in the Isle of Man, is to be regarded as present and settled in the Isle of Man.

Leave to enter the Isle of Man with a view to settlement as the unmarried partner of a person present and settled in the Isle of Man or being admitted on the same occasion for settlement

295B A person seeking leave to enter the Isle of Man as the unmarried or same-sex partner of a person present and settled in the Isle of Man or who is on the same occasion being admitted for settlement may:

(a) in the case of a person within paragraph 295A(i)(a), be admitted for an initial period not exceeding 27 months, or

(b) in the case of a person who meets both of the requirements in paragraph 295A(i)(b), be granted indefinite leave to enter, or

(c) in the case of a person who meets the requirement in paragraph 295A(i)(b)(i), but not the requirement in paragraph 295A(i)(b)(ii) to have sufficient knowledge of the English language and about life in the United Kingdom and Islands, be admitted for an initial period not exceeding 27 months,

in all cases provided the Immigration Officer is satisfied that each of the relevant requirements of paragraph 295A is met."

Refusal of leave to enter the Isle of Man with a view to settlement as the unmarried partner of a person present and settled in the Isle of Man or being admitted on the same occasion for settlement

295C. Leave to enter the Isle of Man with a view to settlement as the unmarried partner of a person present and settled in the Isle of Man or being admitted on the same occasion for settlement, is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 295A is met..

LEAVE TO REMAIN AS THE UNMARRIED PARTNER OF A PERSON PRESENT AND SETTLED IN THE ISLE OF MAN

Requirements for leave to remain as the unmarried partner of a person present and settled in the Isle of Man

295D. The requirements to be met by a person seeking leave to remain as the unmarried partner of a person present and settled in the Isle of Man are that:

(i) the applicant has limited leave to remain in the Isle of Man which was given in accordance with any of the provisions of these Rules; and

(ii) any previous marriage (or similar relationship) by either partner has permanently broken down; and

(iii) the applicant is the unmarried partner of a person present and settled in the Isle of Man; and

(iv) the applicant has not remained in breach of the immigration laws; and

(v) the parties have been living together in a relationship akin to marriage which has subsisted for two years or more; and

(vi) the parties' relationship pre-dates any decision to deport the applicant, recommend him for deportation, give him notice under Section 6(2) of the Immigration Act 1971; and

(vii) the parties are not involved in a consanguineous relationship with one another, and;

(viii) there will be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively; and

(ix) the parties will be able to maintain themselves and any dependants adequately without recourse to public funds; and

(x) the parties intend to live together permanently.

Leave to remain as the unmarried partner of a person present and settled in the Isle of Man

295E. Leave to remain as the unmarried partner of a person present and settled in the Isle of Man may be granted for a period of 2 years in the first instance provided that the Lieutenant Governor is satisfied that each of the requirements of paragraph 295D are met.

Refusal of leave to remain as the unmarried partner of a person present and settled in the Isle of Man

295F. Leave to remain as the unmarried partner of a person present and settled in the Isle of Man is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 295D is met.

INDEFINITE LEAVE TO REMAIN AS THE UNMARRIED PARTNER OF A PERSON PRESENT AND SETTLED IN THE ISLE OF MAN

Requirements for indefinite leave to remain as the unmarried partner of a person present and settled in the Isle of Man

295G. The requirements to be met by a person seeking indefinite leave to remain as the unmarried partner of a person present and settled in the Isle of Man are that:

"(i) (a) the applicant was admitted to the Isle of Man for a period not exceeding 27 months or given an extension of stay for a period of 2 years in accordance with paragraphs 295AA to 295F of these Rules and has completed a period of 2 years as the unmarried or same-sex partner of a person present and settled here, or

"(b) the applicant was admitted to the Isle of Man or given an extension of stay as the unmarried or same-sex partner of a Tier 1 Migrant, and then obtained an extension of stay under paragraphs 295AA to 295F and has completed a period of leave as the unmarried or same-sex partner of the person who is now present and settled here; or".

(c) the applicant was admitted to the Isle of Man in accordance with leave granted under paragraph 295B(c) of these rules, and

(ii) the applicant is still the unmarried partner of the person he was admitted or granted an extension of stay to join and the relationship is still subsisting; and

(iii) each of the parties intends to live permanently with the other as his partner; and

(iv) there will be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively; and

(v) the parties will be able to maintain themselves and any dependants adequately without recourse to public funds; and

(vi) the applicant has sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, unless he is under the age of 18 or aged 65 or over at the time he makes his application.

Indefinite leave to remain as the unmarried partner of a person present and settled in the Isle of Man

295H. Indefinite leave to remain as the unmarried partner of a person present and settled in the Isle of Man may be granted provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 295G is met.

Refusal of indefinite leave to remain as the unmarried partner of a person present and settled in the Isle of Man

295I. Indefinite leave to remain as the unmarried partner of a person present and settled in the Isle of Man is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 295G is met.

LEAVE TO ENTER OR REMAIN AS THE UNMARRIED PARTNER OF A PERSON WITH LIMITED LEAVE TO ENTER OR REMAIN IN THE ISLE OF MAN UNDER PARAGRAPHS 128-193; 200-239; OR 263-270

Requirements for leave to enter or remain as the unmarried partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193; 200-239; or 263-270

295J. The requirements to be met by a person seeking leave to enter or remain as the unmarried partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193; 200-239; or 263-270; are that:

(i) the applicant is the unmarried partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193; 200-239; or 263-270; and

(ii) any previous marriage (or similar relationship) by either partner has permanently broken down; and

(iii) the parties are not involved in a consanguineous relationship with one another; and

(iv) the parties have been living together in a relationship akin to marriage which has subsisted for 2 years or more; and

(v) each of the parties intends to live with the other as his partner during the applicant's stay; and

(vi) there will be adequate accommodation for the parties and any dependants without recourse to public funds in accommodation which they own or occupy exclusively; and

(vii) the parties will be able to maintain themselves and any dependants adequately without recourse to public funds; and

(viii) the applicant does not intend to stay in the Isle of Man beyond any period of leave granted to his partner; and

(xi) if seeking leave to enter, the applicant holds a valid Isle of Man entry clearance for entry in this capacity or, if seeking leave to remain, was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter or remain as the unmarried partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193; 200-239; or 263-270

295K. Leave to enter as the unmarried partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193; 200-239; or 263-270; may be granted provided that a valid Isle of Man entry clearance for entry in this capacity is produced to the Immigration Officer on arrival. Leave to remain as the unmarried partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193; 200-239; or 263-270; may be granted provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 295J is met.
If the applicant is seeking leave to enter or remain as the unmarried partner of a Highly Skilled Migrant, any leave which is granted will be subject to a condition prohibiting Employment as a Doctor in Training, unless the applicant is in the Isle of Man and has, or has last been granted, entry clearance or leave to enter or remain (which was not subject to a condition prohibiting Employment as a Doctor in Training) as the unmarried or same sex partner of a migrant granted leave under Parts 3, 4, 5 or 6 of these Rules

Refusal of leave to enter or remain as the unmarried partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193; 200-239; or 263-270

295L. Leave to enter as the unmarried partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193; 200-239; or 263-270; is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival. Leave to remain as the unmarried partner of a person with limited leave to enter or remain in the Isle of Man under paragraphs 128-193; 200-239; or 263-270; is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 259J is met.

INDEFINITE LEAVE TO REMAIN FOR THE BEREAVED UNMARRIED PARTNER OF A PERSON PRESENT AND SETTLED IN THE ISLE OF MAN

Requirements for indefinite leave to remain for the bereaved unmarried partner of a person present and settled in the Isle of Man

295M. The requirements to be met by a person seeking indefinite leave to remain as the bereaved unmarried partner of a person present and settled in the Isle of Man, are that:

(i) the applicant was admitted to the Isle of Man or given an extension of stay for a period of 2 years in accordance with paragraphs 295AA to 295F of these Rules as the unmarried partner of the person present and settled in the Isle of Man; and

(ii) the person whom the applicant was admitted or granted an extension of stay to join died during that 2 year period; and

(iii) the applicant was still the unmarried partner of the person he was admitted or granted an extension of stay to join at the time of the death; and

(iv) each of the parties intended to live permanently with the other as his partner and the relationship was subsisting at the time of death.

Indefinite leave to remain for the bereaved unmarried partner of a person present and settled in the Isle of Man

295N. Indefinite leave to remain for the bereaved unmarried partner of a person present and settled in the Isle of Man, may be granted provided that the Lieutenant Governor is satisfied that each of the requirements of paragraph 295M is met.

Refusal of indefinite leave to remain for the bereaved unmarried partner of a person present and settled in the Isle of Man

295O. Indefinite leave to remain for the bereaved unmarried partner of a person present and settled in the Isle of Man is to be refused if the Isle of Man is not satisfied that each of the requirements of paragraph 295M is met.

CHILDREN

296. Nothing in these Rules shall be construed as permitting a child to be granted entry clearance, leave to enter or remain or variation of leave where his parent is party to a polygamous marriage and any application by that parent for admission or leave to remain for settlement or with a view to settlement would be refused pursuant to paragraph 278 or 278A.

LEAVE TO ENTER OR REMAIN IN THE ISLE OF MAN AS THE CHILD OF A PARENT, PARENTS OR A RELATIVE PRESENT AND SETTLED OR BEING ADMITTED FOR SETTLEMENT IN THE ISLE OF MAN

Requirements for indefinite leave to enter the Isle of Man as the child of a parent, parents or a relative present and settled or being admitted for settlement in the Isle of Man

297. The requirements to be met by a person seeking indefinite leave to enter in the Isle of Man as the child of a parent, parents or a relative present and settled or being admitted for settlement in the Isle of Man are that he:

(i) is seeking leave to enter to accompany or join a parent, parents or a relative in one of the following circumstances:

(a) both parents are present and settled in the Isle of Man; or

(b) both parents are being admitted on the same occasion for settlement; or

(c) one parent is present and settled in the Isle of Man and the other being admitted on the same occasion for settlement; or

(d) one parent is present and settled in the Isle of Man or being admitted on the same occasion for settlement and the other parent is dead; or

(e) one parent is present and settled in the Isle of Man or being admitted on the same occasion for settlement and has had sole responsibility for the child's upbringing; or

(f) one parent or a relative is present and settled in the Isle of Man or being admitted on the same occasion for settlement and there are serious and compelling family or other considerations which make exclusion of the child undesirable and suitable arrangements have been made for the child's care; and

(ii) is under the age of 18; and

(iii) is not leading an independent life, is unmarried, has not formed a civil partnership and has not formed an independent family unit; and

(iv) can, and will, be accommodated adequately by the parent, parents or relative the child is seeking to join without recourse to public funds in accommodation which the parent, parents or relative the child is seeking to join, own or occupy exclusively; and

(v) can, and will, be maintained adequately by the parent, parents or relative the child is seeking to join, without recourse to public funds; and

(vi) holds a valid Isle of Man entry clearance for entry in this capacity.

Requirements for indefinite leave to remain in the Isle of Man as the child of a parent, parents or a relative present and settled or being admitted for settlement in the Isle of Man

298. The requirements to be met by a person seeking indefinite leave to remain in the Isle of Man as the child of a parent, parents or a relative present and settled in the Isle of Man are that he:

(i) is seeking to remain with a parent, parents or a relative in one of the following circumstances:

(a) both parents are present and settled in the Isle of Man; or

(b) one parent is present and settled in the Isle of Man and the other parent is dead; or

(c) one parent is present and settled in the Isle of Man and has sole responsibility for the child's upbringing; or

(d) one parent or a relative is present and settled in the Isle of Man and there are serious and compelling family or other considerations which make exclusion of the child undesirable and suitable arrangements have been made for the child's care; and

(ii) has limited leave to enter or remain in the Isle of Man, and

(a) is under the age of 18; or

(b) was given leave to enter or remain with a view to settlement under paragraph 302; and

(iii) is not leading an independent life, is unmarried, has not formed a civil partnership and has not formed an independent family unit; and

(iv) can, and will, be accommodated adequately by the parent, parents or relative the child was admitted to join, without recourse to public funds in accommodation which the parent, parents or relative the child was admitted to join, own or occupy exclusively; and

(v) can, and will, be maintained adequately by the parent, parents or relative the child was admitted to join, without recourse to public funds.

Indefinite leave to enter or remain in the Isle of Man as the child of a parent, parents or a relative present and settled or being admitted for settlement in the Isle of Man

299. Indefinite leave to enter the Isle of Man as the child of a parent, parents or a relative present and settled or being admitted for settlement in the Isle of Man may be granted provided a valid Isle of Man entry clearance for entry in this capacity is produced to the Immigration Officer upon arrival. Indefinite leave to remain in the Isle of Man as the child of a parent, parents or relative present and settled in the Isle of Man may be granted provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 298 is met.

Refusal of indefinite leave to enter or remain in the Isle of Man as the child of a parent, parents or a relative present and settled or being admitted for settlement in the Isle of Man

300. Indefinite leave to enter the Isle of Man as the child of a parent, parents or a relative present and settled or being admitted for settlement in the Isle of Man is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival. Indefinite leave to remain in the Isle of Man as the child of a parent, parents or a relative present and settled in the Isle of Man is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 298 is met.

Requirements for limited leave to enter or remain in the Isle of Man with a view to settlement as the child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement

301. The requirements to be met by a person seeking limited leave to enter or remain in the Isle of Man with a view to settlement as the child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement are that he:

(i) is seeking leave to enter to accompany or join or remain with a parent or parents in one of the following circumstances:

(a) one parent is present and settled in the Isle of Man or being admitted on the same occasion for settlement and the other parent is being or has been given limited leave to enter or remain in the Isle of Man with a view to settlement; or

(b) one parent is being or has been given limited leave to enter or remain in the Isle of Man with a view to settlement and has had sole responsibility for the child's upbringing; or

(c) one parent is being or has been given limited leave to enter or remain in the Isle of Man with a view to settlement and there are serious and compelling family or other considerations which make exclusion of the child undesirable and suitable arrangements have been made for the child's care; and

(ii) is under the age of 18; and

(iii) is not leading an independent life, is unmarried, has not formed a civil partnership and has not formed an independent family unit; and

(iv) can, and will, be accommodated adequately without recourse to public funds in accommodation which the parent or parents own or occupy exclusively; and

(iva) can, and will, be maintained adequately by the parent or parents without recourse to public funds; and

(v) (where an application is made for limited leave to remain with a view to settlement) has limited leave to enter or remain in the Isle of Man; and

(vi) if seeking leave to enter, holds a valid Isle of Man entry clearance for entry in this capacity or, if seeking leave to remain, was admitted with a valid Isle of Man entry clearance for entry in this capacity.

Limited leave to enter or remain in the Isle of Man with a view to settlement as the child of a parent or parents given limited leave to enter or remain the Isle of Man with a view to settlement

302. A person seeking limited leave to enter the Isle of Man with a view to settlement as the child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement may be admitted for a period not exceeding 27 months provided he is able, on arrival, to produce to the Immigration Officer a valid Isle of Man entry clearance for entry in this capacity. A person seeking limited leave to remain in the Isle of Man with a view to settlement as the child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement may be given limited leave to remain for a period not exceeding 27 months provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 301 (i)-(vi) is met.

Refusal of limited leave to enter or remain in the Isle of Man with a view to settlement as the child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement

303. Limited leave to enter the Isle of Man with a view to settlement as the child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival. Limited leave to remain in the Isle of Man with a view to settlement as the child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 301 (i)-(vi) is met.

LEAVE TO ENTER AND EXTENSION OF STAY IN THE ISLE OF MAN AS THE CHILD OF A PARENT WHO IS BEING, OR HAS BEEN ADMITTED TO THE ISLE OF MAN AS A FIANCE(E) OR PROPOSED CIVIL PARTNER

Requirements for limited leave to enter the Isle of Man as the child of a fiancé(e) or proposed civil partner

303A. The requirements to be met by a person seeking limited leave to enter the Isle of Man as the child of a fiancé(e) or proposed civil partner, are that:

(i) he is seeking to accompany or join a parent who is, on the same occasion that the child seeks admission, being admitted as a fiancé(e) or proposed civil partner, or who has been admitted as a fiancé(e) or proposed civil partner; and

(ii) he is under the age of 18; and

(iii) he is not leading an independent life, is unmarried and is not a civil partner, and has not formed an independent family unit; and

(iv) he can, and will, be maintained and accommodated adequately without recourse to public funds with the parent admitted or being admitted as a fiancé(e); and

(v) there are serious and compelling family or other considerations which make the child's exclusion undesirable, that suitable arrangements have been made for his care in the Isle of Man, and there is no other person outside the Isle of Man who could reasonably be expected to care for him; and

(vi) he holds a valid Isle of Man entry clearance for entry in this capacity.

Limited leave to enter the Isle of Man as the child of a parent who is being, or has been admitted to the Isle of Man as a fiancé(e) or proposed civil partner

303B. A person seeking limited leave to enter the Isle of Man as the child of a fiancé(e) or proposed civil partner, may be granted limited leave to enter the Isle of Man for a period not in excess of that granted to the fiancé(e) or proposed civil partner, provided that a valid Isle of Man entry clearance for entry in this capacity is produced to the Immigration Officer on arrival. Where the period of limited leave granted to a fiancé(e) or proposed civil partner will expire in more than 6 months, a person seeking limited leave to enter as the child of fiancé(e) or proposed civil partner should be granted leave for a period not exceeding six months.

Refusal of limited leave to enter the Isle of Man as the child of a parent who is being, or has been admitted to the Isle of Man as a fiancé (e) or proposed civil partner

303C. Limited leave to enter the Isle of Man as the child of a fiancé(e) or proposed civil partner is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival.

Requirements for an extension of stay in the Isle of Man as the child of a fiancé(e) or proposed civil partner

303D. The requirements to be met by a person seeking an extension of stay in the Isle of Man as the child of a fiancé(e) or proposed civil partner are that:

(i) the applicant was admitted with a valid Isle of Man entry clearance as the child of a fiancé(e) or proposed civil partner; and

(ii) the applicant is the child of a parent who has been granted limited leave to enter, or an extension of stay, as a fiancé(e) or proposed civil partner; and

(iii) the requirements of paragraph 303A (ii)-(v) are met.

Extension of stay in the Isle of Man as the child of a fiancé(e) or proposed civil partner

303E. An extension of stay as the child of a fiancé(e) or proposed civil partner may be granted provided that the Lieutenant Governor is satisfied that each of the requirements of paragraph 303D is met.

Refusal of an extension of stay in the Isle of Man as the child of a fiancé(e) or proposed civil partner

303F. An extension of stay as the child of a fiancé(e) or proposed civil partner is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 303D is met.

CHILDREN BORN IN THE ISLE OF MAN WHO ARE NOT BRITISH CITIZENS

304. This paragraph and paragraphs 305-309 apply only to dependent children under 18 years of age who are unmarried and are not civil partners and who were born in the Isle of Man, United Kingdom or Channel Islands on or after 1 January 1983 (when the British Nationality Act 1981 came into force) but who, because neither of their parents was a British citizen or settled in the Isle of Man, United Kingdom or Channel Islands at the time of their birth, are not British citizens and are, therefore, subject to immigration control. Such a child requires leave to enter where admission to the Isle of Man is sought, and leave to remain where permission is sought for the child to be allowed to stay in the Isle of Man. If he qualifies for entry clearance, leave to enter or leave to remain under any other part of these Rules, a child who was born in the Isle of Man, United Kingdom or Channel Islands but is not a British citizen may be granted entry clearance, leave to enter or leave to remain in accordance with the provisions of that other part.

Requirements for leave to enter or remain in the Isle of Man as the child of a parent or parents given leave to enter or remain in the Isle of Man

305. The requirements to be met by a child born in the Isle of Man, United Kingdom or Channel Islands who is not a British citizen who seeks leave to enter or remain in the Isle of Man as the child of a parent or parents given leave to enter or remain in the Isle of Man are that he:

(i) (a) is accompanying or seeking to join or remain with a parent or parents who have, or are given, leave to enter or remain in the Isle of Man; or

(b) is accompanying or seeking to join or remain with a parent or parents, one of whom is a British citizen or has right of abode in the Isle of Man, United Kingdom or Channel Islands; or

(c) is a child in respect of whom the parental rights and duties are vested solely in a local authority; and

(ii) is under the age of 18; and

(iii) was born in the Isle of Man, United Kingdom or Channel Islands; and

(iv) is not leading an independent life, is unmarried and is not a civil partner**".** and has not formed an independent family unit; and

(v) (where an application is made for leave to enter) has not been away from the Isle of Man for more than 2 years.

Leave to enter or remain in the Isle of Man

306. A child born in the Isle of Man, United Kingdom and Channel Islands who is not a British citizen and who requires leave to enter or remain in the circumstances set out in paragraph 304 may be given leave to enter for the same period as his parent or parents where paragraph 305 (i)(a) applies, provided the Immigration Officer is satisfied that each of the requirements of paragraph 305 (ii)-(v) is met. Where leave to remain is sought, the child may be granted leave to remain for the same period as his parent or parents where paragraph 305 (i)(a) applies, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 305 (ii)-(iv) is met. Where the parent or parents have or are given periods of leave of different duration, the child may be given leave to whichever period is longer, except that if the parents are living apart the child should be given leave for the same period as the parent who has day to day responsibility for him.

307. If a child does not qualify for leave to enter or remain because neither of his parents has a current leave, (and neither of them is a British citizen or has the right of abode), he will normally be refused leave to enter or remain, even if each of the requirements of paragraph 305 (ii)-(v) has been satisfied. However, he may be granted leave to enter or remain for a period not exceeding 3 months if both of his parents are in the Isle of Man and it appears unlikely that they will be removed in the immediate future and there is no other person outside the Isle of Man who could reasonably be expected to care for him.

308. A child born in the Isle of Man, United Kingdom and Channel Islands who is not a British citizen and who requires leave to enter or remain in the Isle of Man in the circumstances set out in paragraph 304 may be given indefinite leave to enter where paragraph 305 (i)(b) or (i)(c) applies provided the Immigration Officer is satisfied that each of the requirements of paragraph 305 (ii)-(v) is met. Where an application is for leave to remain, such a child may be granted indefinite leave to remain where paragraph 305 (i)(b) or (i)(c) applies, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 305 (ii)-(iv) is met.

Refusal of leave to enter or remain in the Isle of Man

309. Leave to enter the Isle of Man where the circumstances set out in paragraph 304 apply is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 305 is met. Leave to remain for such a child is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 305 (i)-(iv) is met.

ADOPTED CHILDREN

309A. For the purposes of adoption under paragraphs 310-316C a de facto adoption shall be regarded as having taken place if:

(a) at the time immediately preceding the making of the application for entry clearance under these Rules the adoptive parent or parents have been living abroad (in applications involving two parents both must have lived abroad together) for at least a period of time equal to the first period mentioned in sub-paragraph (b)(i) and must have cared for the child for at least a period of time equal to the second period material in that sub-paragraph; and

(b) during their time abroad, the adoptive parent or parents have:

(i) lived together for a minimum period of 18 months, of which the 12 months immediately preceding the application for entry clearance must have been spent living together with the child; and

(ii) have assumed the role of the child's parents, since the beginning of the 18 month period, so that there has been a genuine transfer of parental responsibility.

Requirements for indefinite leave to enter the Isle of Man as the adopted child of a parent or parents present and settled or being admitted for settlement in the Isle of Man

310. The requirements to be met in the case of a child seeking indefinite leave to enter the Isle of Man as the adopted child of a parent or parents present and settled or being admitted for settlement in the Isle of Man are that he:

(i) is seeking leave to enter to accompany or join an adoptive parent or parents in one of the following circumstances:

(a) both parents are present and settled in the Isle of Man; or

(b) both parents are being admitted on the same occasion for settlement; or

(c) one parent is present and settled in the Isle of Man and the other is being admitted on the same occasion for settlement; or

(d) one parent is present and settled in the Isle of Man or being admitted on the same occasion for settlement and the other parent is dead; or

(e) one parent is present and settled in the Isle of Man or being admitted on the same occasion for settlement and has had sole responsibility for the child's upbringing; or

(f) one parent is present and settled in the Isle of Man or being admitted on the same occasion for settlement and there are serious and compelling family or other considerations which make exclusion of the child undesirable and suitable arrangements have been made for the child's care; or

(g) in the case of a de facto adoption one parent has a right of abode in the Isle of Man or indefinite leave to enter or remain in the Isle of Man and is seeking admission to the Isle of Man on the same occasion for the purposes of settlement; and

(ii) is under the age of 18; and

(iii) is not leading an independent life, is unmarried and is not a civil partner**.** and has not formed an independent family unit; and

(iv) can, and will, be accommodated and maintained adequately without recourse to public funds in accommodation which the adoptive parent or parents own or occupy exclusively; and

(vi) (a) was adopted in accordance with a decision taken by the competent administrative authority or court in his country of origin or the country in which he is resident, being a country whose adoption orders are recognised by the Isle of Man; or

(b) is the subject of a de facto adoption; and

(vii) was adopted at a time when:

(a) both adoptive parents were resident together abroad; or

(b) either or both parents were settled in the Isle of Man; and

(viii) has the same rights and obligations as any other child of the adoptive parents or parent's family; and

(ix) was adopted due to the inability of the original parent(s) or current carer(s) to care for him and there has been a genuine transfer of parental responsibility to the adoptive parents; and

(x) has lost or broken his ties with his family of origin; and

(xi) was adopted, but the adoption is not one of convenience arranged to facilitate his admission to or remaining in the Isle of Man; and

(xii) holds a valid Isle of Man entry clearance for entry in this capacity.

Requirements for indefinite leave to remain the Isle of Man as the adopted child of a parent or parents present and settled in the Isle of Man

311. The requirements to be met in the case of a child seeking indefinite leave to remain the Isle of Man as the adopted child of a parent or parents present and settled in the Isle of Man are that he:

(i) is seeking to remain with an adoptive parent or parents in one of the following circumstances

(a) both parents are present and settled in the Isle of Man; or

(b) one parent is present and settled in the Isle of Man and the other parent is dead; or

(c) one parent is present and settled in the Isle of Man and has had sole responsibility for the child's upbringing; or

(d) one parent is present and settled in the Isle of Man and there are serious and compelling family or other considerations which make exclusion of the child undesirable and suitable arrangements have been made for the child's care; or

(e) in the case of a de facto adoption one parent has a right of abode in the Isle of Man or indefinite leave to enter or remain in the Isle of Man and is seeking admission to the Isle of Man on the same occasion for the purpose of settlement; and

(ii) has limited leave to enter or remain in the Isle of Man, and

(a) is under the age of 18; and

(b) was given leave to enter or remain with a view to settlement under paragraph 315 or paragraph 316B; and

(iii) is not leading an independent life, is unmarried and is not a civil partner and has not formed an independent family unit; and

(iv) can, and will, be accommodated and maintained adequately without recourse to public funds in accommodation which the adoptive parent or parents own or occupy exclusively; and

(v) [Not Used]

(vi) (a) was adopted in accordance with a decision taken by the competent administrative authority or court in his country of origin or the country in which he is resident, being a country whose adoption orders are recognised by the Isle of Man; or

(b) is the subject of a de facto adoption; and

(vii) was adopted at a time when:

(a) both adoptive parents were resident together abroad; or

(b) either or both parents were settled in the Isle of Man; and

(viii) has the same rights and obligations as any other child of the adoptive parent's or parents' family; and

(ix) was adopted due to the inability of the original parent(s) or current carer(s) to care for him and there has been a genuine transfer of parental responsibility to the adoptive parents; and

(x) has lost or broken his ties with his family of origin; and

(xi) was adopted, but the adoption is not one of convenience arranged to facilitate his admission to or remaining in the Isle of Man.

Indefinite leave to enter or remain in the Isle of Man as an adopted child of a parent or parents present and settled or being admitted for settlement in the Isle of Man

312. Indefinite leave to enter the Isle of Man as the adopted child of a parent or parents present and settled or being admitted for settlement in the Isle of Man may be granted provided a valid Isle of Man entry clearance for entry in this capacity is produced to the

Immigration Officer upon arrival. Indefinite leave to remain in the Isle of Man as the adopted child of a parent or parents present and settled in the Isle of Man may be granted provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 311 is met.

Refusal of indefinite leave to enter or remain in the Isle of Man as an adopted child of a parent or parents present and settled or being admitted for settlement in the Isle of Man

313. Indefinite leave to enter the Isle of Man as the adopted child of a parent or parents present and settled or being admitted for settlement in the Isle of Man is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer upon arrival. Indefinite leave to remain in the Isle of Man as the adopted child of a parent or parents present and settled in the Isle of Man is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 311 is met.

Requirements for limited leave to enter or remain in the Isle of Man with a view to settlement as the adopted child of a parent or parents given limited leave to enter or remain the Isle of Man with a view to settlement

314. The requirements to be met in the case of a child seeking limited leave to enter or remain in the Isle of Man with a view to settlement as the adopted child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement are that he:

(i) is seeking leave to enter to accompany or join or remain with a parent or parents in one of the following circumstances:

(a) one parent is present and settled in the Isle of Man or being admitted on the same occasion for settlement and the other parent is being given limited leave to enter or remain in the Isle of Man with a view to settlement; or

(b) one parent is being or has been given limited leave to enter or remain in the Isle of Man with a view to settlement and has had sole responsibility for the child's upbringing; or

(c) one parent is being or has been given limited leave to enter or remain in the Isle of Man with a view to settlement and there are serious and compelling family or other considerations which make exclusion of the child undesirable and suitable arrangements have been made for the child's care; or

(d) in the case of a de facto adoption one parent has a right of abode in the Isle of Man or indefinite leave to enter or remain in the Isle of Man and is seeking admission to the Isle of Man on the same occasion for the purpose of settlement and

(ii) is under the age of 18; and

(iii) is not leading an independent life, is unmarried and is not a civil partner and has not formed an independent family unit; and

(iv) can, and will, be accommodated and maintained adequately without recourse to public funds in accommodation which the adoptive parent or parents own or occupy exclusively; and

(v) (a) was adopted in accordance with a decision taken by the competent administrative authority or court in his country of origin or the country in which he is resident, being a country whose adoption orders are recognised by law of the Isle of Man; or

(b) is the subject of a de facto adoption; and

(vi) was adopted at a time when:

(a) both adoptive parents were resident together abroad; or

(b) either or both adoptive parents were settled in the Isle of Man; and

(vii) has the same rights and obligations as any other child of the adoptive parent's or parents' family; and

(viii) was adopted due to the inability of the original parent(s) or current carer(s) to care for him and there has been a genuine transfer of parental responsibility to the adoptive parents; and

(ix) has lost or broken his ties with his family of origin; and

(x) was adopted, but the adoption is not one of convenience arranged to facilitate his admission to or remaining in the Isle of Man; and

(xi) (where an application is made for limited leave to remain with a view to settlement) has limited leave to enter or remain in the Isle of Man; and

(xii) if seeking leave to enter, holds a valid Isle of Man entry clearance for entry in this capacity.

Limited leave to enter or remain in the Isle of Man with a view to settlement as the adopted child of a parent or parents given limited leave to enter or remain the Isle of Man with a view to settlement

315. A person seeking limited leave to enter the Isle of Man with a view to settlement as the adopted child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement may be admitted for a period not exceeding 12 months provided he is able, on arrival, to produce to the Immigration Officer a valid Isle of Man entry clearance for entry in this capacity. A person seeking limited leave to remain in the Isle of Man with a view to settlement as the adopted child of a parent or parents granted limited leave to enter or remain in the Isle of Man with a view to settlement may be given limited leave to remain for a period not exceeding 12 months provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 314 (i)-(xi) is met.

Refusal of limited leave to enter or remain in the Isle of Man with a view to settlement as the adopted child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement

316. Limited leave to enter the Isle of Man with a view to settlement as the adopted child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival. Limited leave to remain in the Isle of Man with a view to settlement as the adopted child of a parent or parents given limited leave to enter or remain in the Isle of Man with a view to settlement is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 314 (i)-(xi) is met.

Requirements for limited leave to enter the Isle of Man with a view to settlement as a child for adoption

316A. The requirements to be satisfied in the case of a child seeking limited leave to enter the Isle of Man for the purpose of being adopted (which, for the avoidance of doubt, does not include a de facto adoption) in the Isle of Man are that he:

(i) is seeking limited leave to enter to accompany or join a person or persons who wish to adopt him in the Isle of Man (the "prospective parent(s)"), in one of the following circumstances:

(a) both prospective parents are present and settled in the Isle of Man; or

(b) both prospective parents are being admitted for settlement on the same occasion that the child is seeking admission; or

(c) one prospective parent is present and settled in the Isle of Man and the other is being admitted for settlement on the same occasion that the child is seeking admission; or

(d) one prospective parent is present and settled in the Isle of Man and the other is being given limited leave to enter or remain in the Isle of Man with a view to settlement on the same occasion that the child is seeking admission, or has previously been given such leave; or

(e) one prospective parent is being admitted for settlement on the same occasion that the other is being granted limited leave to enter with a view to settlement, which is also on the same occasion that the child is seeking admission; or

(f) one prospective parent is present and settled in the Isle of Man or is being admitted for settlement on the same occasion that the child is seeking admission, and has had sole responsibility for the child's upbringing; or

(g) one prospective parent is present and settled in the Isle of Man or is being admitted for settlement on the same occasion that the child is seeking admission, and there are serious and compelling family or other considerations which would make the child's exclusion

undesirable, and suitable arrangements have been made for the child's care; and

(ii) is under the age of 18; and

(iii) is not leading an independent life is unmarried. and is not a civil partner. and has not formed an independent family unit; and

(iv) can, and will, be maintained and accommodated adequately without recourse to public funds in accommodation which the prospective parent or parents own or occupy exclusively; and

(v) will have the same rights and obligations as any other child of the marriage or civil partnership; and

(vi) is being adopted due to the inability of the original parent(s) or current carer(s) (or those looking after him immediately prior to him being physically transferred to his prospective parent or parents) to care for him, and there has been a genuine transfer of parental responsibility to the prospective parent or parents; and

(vii) has lost or broken or intends to lose or break his ties with his family of origin; and

(viii) will be adopted in the Isle of Man by his prospective parent or parents in accordance with the law relating to adoption in the Isle of Man, but the proposed adoption is not one of convenience arranged to facilitate his admission to the Isle of Man.

Limited leave to enter the Isle of Man with a view to settlement as a child for adoption

316B. A person seeking limited leave to enter the Isle of Man with a view to settlement as a child for adoption may be admitted for a period not exceeding 2 years provided he is able, on arrival, to produce to the Immigration Officer a valid Isle of Man entry clearance for entry in this capacity.

Refusal of limited leave to enter the Isle of Man with a view to settlement as a child for adoption

316C. Limited leave to enter the Isle of Man with a view to settlement as a child for adoption is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival.

Requirements for limited leave to enter the Isle of Man with a view to settlement as a child for adoption under the Hague Convention

316D. The requirements to be satisfied in the case of a child seeking limited leave to enter the Isle of Man for the purpose of being adopted in the Isle of Man under the Hague Convention are that he:

(i) is seeking limited leave to enter to accompany one or two people each of whom are habitually resident in the Isle of Man and who wish to adopt him under the Hague Convention ("the prospective parents");

(ii) is the subject of an agreement made under Article 17(c) of the Hague Convention; and

(iii) has been entrusted to the prospective parents by the competent administrative authority of the county from which he is coming to the Isle of Man for adoption under the Hague Convention; and

(iv) is under the age of 18; and

(v) can, and will, be maintained and accommodated adequately without recourse to public funds in accommodation which the prospective parent or parents own or occupy exclusively; and

(vi) holds a valid Isle of Man entry clearance for entry in this capacity.

Limited leave to enter the Isle of Man with a view to settlement as a child for adoption under the Hague Convention

316E. A person seeking limited leave to enter the Isle of Man with a view to settlement as a child for adoption under the Hague Convention may be admitted for a period not exceeding 2 years provided he is able, on arrival, to produce to the Immigration Officer a valid Isle of Man entry clearance for entry in this capacity.

Refusal of limited leave to enter the Isle of Man with a view to settlement as a child for adoption under the Hague Convention

316F. Limited leave to enter the Isle of Man with a view to settlement as a child for adoption under the Hague Convention is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival.

PARENTS, GRANDPARENTS AND OTHER DEPENDENT RELATIVES OF PERSONS PRESENT AND SETTLED IN THE ISLE OF MAN

Requirements for indefinite leave to enter or remain in the Isle of Man as the parent, grandparent or other dependent relative of a person present and settled in the Isle of Man

317. The requirements to be met by a person seeking indefinite leave to enter or remain in the Isle of Man as the parent, grandparent or other dependent relative of a person present and settled in the Isle of Man are that the person:

(i) is related to a person present and settled in the Isle of Man in one of the following ways:

(a) mother or grandmother who is a widow aged 65 years or over; or

(b) father or grandfather who is a widower aged 65 years or over; or

(c) parents or grandparents travelling together of whom at least one is aged 65 or over; or

(d) a parent or grandparent aged 65 or over who has entered into a second relationship of marriage or civil partnership but cannot look to the spouse, civil partner or children of that second relationship for financial support; and where the person settled in the United Kingdom is able and willing to maintain the parent or grandparent and any spouse or civil partner or child of the second relationship who would be admissible as a dependant, or

(e) a parent or grandparent under the age of 65 if living alone outside the Isle of Man in the most exceptional compassionate circumstances and mainly dependent financially on relatives settled in the Isle of Man; or

(f) the son, daughter, sister, brother, uncle or aunt over the age of 18 if living alone outside the Isle of Man in the most exceptional compassionate circumstances and mainly dependent financially on relatives settled in the Isle of Man; and

(ii) is joining or accompanying a person who is present and settled in the Isle of Man or who is on the same occasion being admitted for settlement; and

(iii) is financially wholly or mainly dependent on the relative present and settled in the Isle of Man; and

(iv) can, and will, be accommodated adequately, together with any dependants, without recourse to public funds in accommodation which the sponsor owns or occupies exclusively; and

(iva) can, and will be maintained adequately, together with any dependants, without recourse to public funds; and

(v) has no other close relatives in his own country to whom he could turn for financial support; and

(vi) if seeking leave to enter, holds a valid Isle of Man entry clearance for entry in this capacity.

Indefinite leave to enter or remain as the parent, grandparent or other dependent relative of a person present and settled in the Isle of Man

318. Indefinite leave to enter the Isle of Man as the parent, grandparent or other dependent relative of a person present and settled in the Isle of Man may be granted provided a valid
Isle of Man entry clearance for entry in this capacity is produced to the Immigration Officer on arrival. Indefinite leave to remain in the Isle of Man as the parent, grandparent or other dependent relative of a person present and settled in the Isle of Man may be granted provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 317 (i)-(v) is met.

Refusal of indefinite leave to enter or remain in the Isle of Man as the parent, grandparent or other dependent relative of a person present and settled in the Isle of Man

319. Indefinite leave to enter the Isle of Man as the parent, grandparent or other dependent relative of a person settled in the Isle of Man is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival. Indefinite leave to remain in the Isle of Man as the parent, grandparent or other dependent relative of a person present and settled in the Isle of Man is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 317 (i)-(v) is met.

"Family Members of Relevant Points-based System Migrants

Partners of Relevant Points-based System Migrants

319AA. In paragraphs 319A to319K and Appendix E "Relevant Points-based System Migrant" means a migrant granted leave as a Tier 1 Migrant.

Purpose

319A. This route is for the spouse, civil partner, unmarried or same-sex partner of a relevant points-based system migrant. Paragraphs 277 to 280 apply to spouses or civil partners of a relevant points-based system migrant; paragraph 277 applies to civil partners of a relevant points-based system migrant; and paragraph 295AA applies to unmarried and same-sex partners of a relevant points-based system migrant.

Entry to the Isle of Man

319B. All migrants arriving in the Isle of Man and wishing to enter as the partner of a relevant points-based system migrant must have a valid entry clearance for entry under this route. If they do not have a valid entry clearance, entry will be refused.

Requirements for entry clearance or leave to remain

319C. To qualify for entry clearance or leave to remain as the partner of a relevant points-based system migrant, an applicant must meet the requirements listed below. If the applicant meets these requirements, entry clearance or leave to remain will be granted. If the applicant does not meet these requirements, the application will be refused.

Requirements—

(a) The applicant must not fall for refusal under the general grounds for refusal, and if applying for leave to remain, must not be an illegal entrant.

(b) The applicant must be the spouse or civil partner, unmarried or same-sex partner of a person who:

(i) has valid leave to enter or remain as a relevant points-based system migrant, or

(ii) is, at the same time, being granted entry clearance or leave to remain as a relevant points-based system migrant.

(c) An applicant who is the unmarried or same-sex partner of a relevant points based system migrant must also meet the following requirements—

(i) any previous marriage or similar relationship by the applicant or the relevant points-based system migrant with another person must have permanently broken down,

(ii) the applicant and the relevant points-based system migrant must not be so closely related that they would be prohibited from marrying each other in the Isle of Man, and

(iii) the applicant and the relevant points-based system migrant must have been living together in a relationship similar to marriage or civil partnership for a period of at least 2 years.

(d) The marriage or civil partnership, or relationship similar to marriage or civil partnership, must be subsisting at the time the application is made.

(e) The applicant and the relevant points-based system migrant must intend to live with the other as their spouse or civil partner, unmarried or same-sex partner throughout the applicant's stay in the Isle of Man.

(f) The applicant must not intend to stay in the Isle of Man beyond any period of leave granted to the relevant points-based system migrant.

(g) Unless the relevant points-based system migrant is a Tier 1 (Investor) Migrant there must be a sufficient level of funds available to the applicant, as set out in Appendix E.

(h) An applicant who is applying for leave to remain, must have, or have last been granted, leave—

(i) as the partner of a relevant points-based system migrant, or

(ii) as the spouse or civil partner, unmarried or same-sex partner of a person with leave under another category who has since been granted, or is, at the same time, being granted leave to remain as a relevant points-based system migrant.

Period and conditions of grant

319D. (a) Entry clearance and leave to remain will be granted for a period which expires on the same day as the leave granted to the relevant points based system migrant.

(b) Entry clearance and leave to remain under this route will be subject to the following conditions—

(i) no recourse to public funds,

(ii) registration with the police, if this is required under paragraph 326, and

(iii) no Employment as a Doctor in Training, unless the applicant is applying for leave to remain and has or has last been granted, entry clearance, leave to enter or remain that was not subject to a condition restricting their employment, whether that

is employment as a Doctor in Training or otherwise, and has been employed during that leave on an NHS Foundation Programme or as a Doctor in Training.

Requirements for indefinite leave to remain

319E. To qualify for indefinite leave to remain as the partner of a relevant points-based system migrant, an applicant must meet the requirements listed below. If the applicant meets these requirements, indefinite leave to remain will be granted. If the applicant does not meet these requirements, the application will be refused unless the applicant qualifies for leave to remain by virtue of paragraphs 33E and 33F.

Requirements—

(a) The applicant must not fall for refusal under the general grounds for refusal, and must not be an illegal entrant.

(b) The applicant must be the spouse or civil partner, unmarried or same-sex partner of a person who is, at the same time, being granted indefinite leave to remain as a relevant points-based system migrant.

(c) The applicant must have, or have last been granted, leave as the partner of the relevant points-based system migrant who is being granted indefinite leave to remain.

(d) The applicant and the relevant points-based system migrant must have been living together in the Isle of Man in marriage or civil partnership, or in a relationship similar to marriage or civil partnership, for a period of at least 2 years.

(e) The marriage or civil partnership, or relationship similar to marriage or civil partnership, must be subsisting at the time the application is made.

(f) The applicant and the relevant points-based system migrant must intend to live permanently with the other as their spouse or civil partner, unmarried or same-sex partner.

(g) The applicant must have sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, with reference to paragraphs 33B to 33F, unless the applicant is aged 65 or over at the time this application is made.

Children of Relevant Points-based System Migrants

Purpose

319F. This route is for the children of relevant points-based system migrants who are under the age of 18 when they apply to enter under this route. Paragraph 296 applies to children of Tier 1 Migrants.

Entry to the Isle of Man

319G. All migrants arriving in the Isle of Man and wishing to enter as the child of a relevant points-based system migrant must have a valid entry clearance for entry under this route. If they do not have a valid entry clearance, entry will be refused.

Requirements for entry clearance or leave to remain

319H. To qualify for entry clearance or leave to remain under this route, an applicant must meet the requirements listed below. If the applicant meets these requirements, entry clearance or leave to remain will be granted. If the applicant does not meet these requirements, the application will be refused.

Requirements—

(a) The applicant must not fall for refusal under the general grounds for refusal, and if applying for leave to remain, must not be an illegal entrant.

(b) The applicant must be the child of a parent who—

(i) has valid leave to enter or remain as a relevant points-based system migrant, or

(ii) is, at the same time, being granted entry clearance or leave to remain as a relevant points-based system migrant.

(c) The applicant must be under the age of 18 on the date the application is made, or if over 18 and applying for leave to remain, must have, or have last been granted, leave as the child of a relevant points-based system migrant.

(d) The applicant must not be married or in a civil partnership, must not have formed an independent family unit, and must not be leading an independent life.

(e) The applicant must not intend to stay in the Isle of Man beyond any period of leave granted to the relevant points-based system migrant parent.

(f) Both of the applicant's parents must either be lawfully present in the Isle of Man, or being granted entry clearance or leave to remain at the same time as the applicant, unless—

(i) The relevant points-based system migrant is the applicant's sole surviving parent,

(ii) The relevant points-based system migrant parent has and has had sole responsibility for the applicant's upbringing, or

(iii) there are serious or compelling family or other considerations which would make it desirable not to refuse the application and suitable arrangements have been made in the Isle of Man for the applicant's care.

(g) Unless the relevant points-based system migrant is a Tier 1 (Investor) Migrant there must be a sufficient level of funds available to the applicant, as set out in Appendix E.

(h) An applicant who is applying for leave to remain must have, or have last been granted leave—

(i) as the child of a relevant points-based system migrant, or

(ii) as the child of a parent who had leave under another category and who has since been granted, or is, at the same time, being granted leave to remain as a relevant points-based system migrant.

Period and conditions of grant

319I. (a) Entry clearance and leave to remain will be granted for a period which expires on the same day as the leave granted to the relevant points based system migrant parent.

(b) Entry clearance and leave to remain under this route will be subject to the following conditions—

(i) no recourse to public funds, and

(ii) registration with the police, if this is required under paragraph 326 of these Rules.

Requirements for indefinite leave to remain

319J. To qualify for indefinite leave to remain under this route, an applicant must meet the requirements listed below. If the applicant meets these requirements, indefinite leave to remain will be granted. If the applicant does not meet these requirements, the application will be refused, unless the applicant qualifies for leave to remain by virtue of paragraphs 33E and 33F.

Requirements—

(a) The applicant must not fall for refusal under the general grounds for refusal, and must not be an illegal entrant.

(b) The applicant must be the child of a parent who is, at the same time, being granted indefinite leave to remain as a relevant points-based system migrant.

(c) The applicant must have, or have last been granted, leave as the child of the relevant points-based system migrant who is being granted indefinite leave to remain.

(d) The applicant must not be married or in a civil partnership, must not have formed an independent family unit, and must not be leading an independent life.

(e) Both of an applicant's parents must either be lawfully present in the Isle of Man, or being granted entry clearance, limited leave to remain, or indefinite leave to remain at the same time as the applicant, unless—

(i) The relevant points-based system migrant is the applicant's sole surviving parent,

(ii) The relevant points-based system migrant parent has and has had sole responsibility for the applicant's upbringing, or

(iii) there are serious or compelling family or other considerations which would make it desirable not to refuse the application and suitable arrangements have been made for the applicant's care.

(f) The applicant must have sufficient knowledge of the English language and sufficient knowledge about life in the United Kingdom and Islands, with reference to paragraphs 33B to 33F, unless the applicant is under the age of 18 at the time when the application is made.

Documentary evidence

319K. (a) Where Appendix E states that specified documents must be provided, that means documents specified by the Lieutenant Governor in the Relevant Points-based System Migrant's (Dependants) Policy Guidance. If the specified documents are not provided, the applicant will not meet the requirement for which the specified documents are required as evidence.
(b) If the Entry Clearance Officer or Lieutenant Governor has reasonable cause to doubt the genuineness of any document submitted by an applicant which is, or which purports to be a specified document under Appendix E and, having taken reasonable steps to verify the document, is unable to verify that it is genuine, the document will be discounted for the purposes of this application.

PART 9: GENERAL GROUNDS FOR THE REFUSAL OF ENTRY CLEARANCE, LEAVE TO ENTER OR VARIATION OF LEAVE TO ENTER OR REMAIN THE ISLE OF MAN

REFUSAL OF ENTRY CLEARANCE OR LEAVE TO ENTER THE ISLE OF MAN

320. In addition to the grounds for refusal of entry clearance or leave to enter set out in Parts 2 to 8 of these Rules, and subject to paragraph 321 below, the following provisions for the refusal of entry clearance or leave to enter apply:

Grounds on which entry clearance or leave to enter the Isle of Man is to be refused

(1) the fact that entry is being sought for a purpose not covered by these Rules;

(2) the fact that the person seeking entry to the Isle of Man is currently the subject of a deportation order;

(3) failure by the person seeking entry to the Isle of Man to produce to the Immigration Officer a valid national passport or other document satisfactorily establishing his identity and nationality;

(4) failure to satisfy the Immigration Officer, in the case of a person arriving in the Isle of Man with the intention of entering any other part of the common travel area, that he is acceptable to the immigration authorities there;

(5) failure, in the case of a visa national, to produce to the Immigration Officer a passport or other identity document endorsed with a valid and current Isle of Man entry clearance issued for the purpose for which entry is sought;

(6) where the Lieutenant Governor has personally directed that the exclusion of a person from the Isle of Man is conducive to the public good;

(7) save in relation to a person settled in the Isle of Man or where the Immigration Officer is satisfied that there are strong compassionate reasons justifying admission, confirmation from the Medical Inspector that, for medical reasons, it is undesirable to admit a person seeking entry to the Isle of Man.

(7A) where false representations have been made or false documents or information have been submitted (whether or not material to the application, and whether or not to the applicant's knowledge), or material facts have not been disclosed, in relation to the application.

(7B) subject to paragraph 320(7C), where the applicant has previously breached immigration laws by:-

(a) overstaying, or

(b) breaching a condition attached to his leave, or

(c) being an Illegal Entrant, or

(d) using Deception in an application for entry clearance, leave to enter or remain (whether successful or not),

unless the applicant:

(i) overstayed for 28 days or less and left the Isle of Man voluntarily, not at the expense (directly or indirectly) of the Lieutenant Governor, or

(ii) used Deception in an application for entry clearance more than 10 years ago, or

(iii) left the Isle of Man voluntarily, not at the expense (directly or indirectly) of the Lieutenant Governor, more than 12 months ago, or

(iv) left the Isle of Man voluntarily, at the expense (directly or indirectly) of the Lieutenant Governor, more than 5 years ago, or

(v) was removed or deported from the Isle of Man more than 10 years ago.

Where more than one breach of the immigration laws has occurred, only the breach which leads to the longest period of absence from the United Kingdom or Islands will be relevant under this paragraph.

(7C) Paragraph 320(7B) shall not apply in the following circumstances -

(a) where the applicant is applying as:

(i) a spouse, civil partner or unmarried or same-sex partner under paragraphs 281 or 295A, or

(ii) a fiancé(e) or proposed civil partner under paragraph 290, or

(iii) a parent, grandparent or other dependant relative under paragraph 317, or

(iv) a person exercising rights of access to a child under paragraph 246, or

(v) [Not Used]

(b) where the individual was under the age of 18 at the time of his most recent breach of the immigration laws.

Grounds on which entry clearance or leave to enter the Isle of Man should normally be refused

(8) failure by a person arriving in the Isle of Man to furnish the Immigration Officer with such information as may be required for the purpose of deciding whether he requires leave to enter and, if so, whether and on what terms leave should be given;

(8A) where the person seeking leave is outside the Isle of Man, failure by him to supply any information, documents, copy documents or medical report requested by an Immigration Officer;

(9) failure, by a person seeking leave to enter as a returning resident to satisfy the Immigration Officer that he meets the requirements of paragraph 18 of these Rules or that he seeks leave to enter for the same purpose as that for which his earlier leave was granted;

(10) production by a person seeking leave to enter the Isle of Man of a national passport or travel document issued by a territorial entity or authority which is not recognised by Her Majesty's Government as a state or is not dealt with as a government by them, or which does not accept valid United Kingdom passports for the purpose of its own immigration control, or a passport or travel document which does not comply with international passport practice;

(11) where the applicant has previously contrived in a significant way to frustrate the intentions of these Rules. Guidance is provided by the United Kingdom Borders Agency providing examples of circumstances in which an applicant who has previously overstayed, breached a condition attached to his leave, been an Illegal Entrant or used Deception in an application for entry clearance, leave to enter or remain (whether successful or not) is likely to be considered as having contrived in a significant way to frustrate the intentions of the UK Immigration Rules. This guidance will be referred to when the application is made under the Isle of Man Immigration Rules.

(12) [DELETED].

(13) failure, except by a person eligible for admission to the Isle of Man for settlement or a spouse or civil partner eligible for admission under paragraph 282 to satisfy the Immigration Officer that he will be admitted to another country after a stay in the Isle of Man;

(14) refusal by a sponsor of a person seeking leave to enter the Isle of Man to give, if requested to do so, an undertaking in writing to be responsible for that person's maintenance and accommodation for the period of any leave granted;

(15) whether or not to the holder's knowledge, the making of false representations or the failure to disclose any material fact for the purpose of obtaining a work permit;

(16) failure, in the case of a child under the age of 18 years seeking leave to enter the Isle of Man otherwise than in conjunction with an application made by his parent(s) or legal guardian, to provide the Immigration Officer, if required to do so, with written consent to the application from his parent(s) or legal guardian:

(17) save in relation to a person settled in the Isle of Man refusal to undergo a medical examination when required to do so by the Immigration Officer;

(18) save where the Immigration Officer is satisfied that admission would be justified for strong compassionate reasons, conviction in any country

including the Isle of Man of an offence which, if committed in the Isle of Man, is punishable with imprisonment for a term of 12 months or any greater punishment or, if committed outside the Isle of Man, would be so punishable if the conduct constituting the offence had occurred in the Isle of Man;

(19) where, from information available to the Immigration Officer, it seems right to refuse leave to enter on the ground that exclusion from the Isle of Man is conducive to the public good; if, for example in the light of the character, conduct or associations of the person seeking leave to enter it is undesirable to give him leave to enter.

(20) [DELETED]

Refusal of leave to enter in relation to a person in possession of an entry clearance

321. A person seeking entry to the Isle of Man who holds an entry clearance which was duly issued to him and is still current may be refused leave to enter only where the Immigration Officer is satisfied that:

(i) false representations were made or false documents or information were submitted (whether or not material to the application, and whether or not to the holder's knowledge) or material facts were not disclosed, in relation to the application for entry clearance, or

(ii) a change of circumstances since it was issued has removed the basis of the holder's claim to admission, except where the change of circumstances amounts solely to the person becoming over age for entry in one of the categories contained in paragraphs 296-316 of these Rules since the issue of the entry clearance; or

(iii) refusal is justified on grounds of restricted returns ability; on medical grounds; on grounds of criminal record; because the person seeking leave to enter is the subject of a deportation order or because exclusion would be conducive to the public good.

Grounds on which leave to enter or remain which is in force is to be cancelled at port or while the holder is outside the Isle of Man

321A The following grounds for the cancellation of a person's leave to enter or remain which is in force on his arrival in, or whilst he is outside, the Isle of Man apply -

(1) there has been such a change in the circumstances of that person's case since the leave was given, that it should be cancelled,

(2) false representations were made or false documents were submitted (whether or not material to the application, and whether or not to the holder's knowledge) , or material facts were not disclosed, in relation to the application for leave,

(3) save in relation to a person settled in the Isle of Man or where the Immigration Officer or the Lieutenant Governor is satisfied that there are

strong compassionate reasons justifying admission, where it is apparent that, for medical reasons, it is undesirable to admit that person to the Isle of Man,

(4) where the Lieutenant Governor has personally directed that the exclusion of that person from the Isle of Man is conducive to the public good,

(5) where, from information available to the Immigration Officer or the Lieutenant Governor, it seems right to cancel leave on the ground that exclusion from the Isle of Man is conducive to the public good if, for example, in the light of the character, conduct or associations of that person it is undesirable for him to have leave to enter the Isle of Man, or

(6) where that person is outside the Isle of Man, failure by that person to supply any information, documents, copy documents or medical report requested by an Immigration Officer or the Lieutenant Governor.

REFUSAL OF VARIATION OF LEAVE TO ENTER OR REMAIN OR CURTAILMENT OF LEAVE

322. In addition to the grounds for refusal of extension of stay set out in Parts 2 to 8 of these Rules, the following provisions apply in relation to the refusal of an application for variation of leave to enter or remain or where appropriate the curtailment of leave:

Grounds on which an application to vary leave to enter or remain in the Isle of Man is to be refused

(1) the fact that variation of leave to enter or remain is being sought for a purpose not covered by these Rules.

(1A) where false representations have been made or false documents or information have been submitted (whether or not material to the application, and whether or not to the applicants knowledge), or material facts have not been disclosed, in relation to the application.

Grounds on which leave to remain in the Isle of Man should normally be refused"

(2) the making of false representations or the failure to disclose any material fact for the purpose of obtaining leave to enter or a previous variation of leave;

(3) failure to comply with any conditions attached to the grant of leave to enter or remain;

(4) failure by the person concerned to maintain or accommodate himself and any dependants without recourse to public funds;

(5) the undesirability of permitting the person concerned to remain in the Isle of Man in the light of his character, conduct or associations or the fact that he represents a threat to national security;

(6) refusal by a sponsor of the person concerned to give, if requested to do so, an undertaking in writing to be responsible for his maintenance and accommodation in the Isle of Man or failure to honour such an undertaking once given;

(7) failure by the person concerned to honour any declaration or undertaking given orally or in writing as to the intended duration and/or purpose of his stay;

(8) failure, except by a person who qualifies for settlement in the Isle of Man or by the spouse or civil partner of a person settled in the Isle of Man to satisfy the Lieutenant Governor that he will be returnable to another country if allowed to stay for a further period in the Isle of Man;

(9) failure by an applicant to produce within a reasonable time information, documents or other evidence required by the Lieutenant Governor to establish his claim to remain under these rules;

(10) failure, without reasonable explanation, to comply with a request made on behalf of the Lieutenant Governor to attend for interview;

(11) failure, in the case of a child under the age of 18 years seeking a variation of his leave to enter or remain in the Isle of Man otherwise than in conjunction with an application by his parent(s) or legal guardian, to provide the Lieutenant Governor, if required to do, with written consent to the application from his parent(s) or legal guardian.

Grounds on which leave to enter or remain may be curtailed

323. A person's leave to enter or remain may be curtailed on any of the grounds set out in paragraph 322 (2)-(5) above or if he ceases to meet the requirements of the Rules under which his leave to enter or remain was granted.

Crew members

324. A person who has been given leave to enter to join a ship, aircraft, hovercraft or hydrofoil as a member of its crew, or a crew member who has been given leave to enter for hospital treatment, repatriation or transfer to another ship, aircraft, hovercraft or hydrofoil in the Isle of Man, is to be refused leave to remain unless an extension of stay is necessary to fulfil the purpose for which he was given leave to enter or unless he meets the requirements for an extension of stay as a spouse or civil partner as in paragraph 284 .

PART 10: REGISTRATION WITH THE POLICE

325. For the purposes of paragraph 326, a "relevant foreign national" is a person aged 16 or over who is:

(i) a national or citizen of a country or territory listed in Appendix 2 to these Rules, or

(ii) a stateless person; or

(iii) a person holding a non-national travel document.

326 (1) Subject to sub-paragraph (2) below, a condition requiring registration with the police should normally be imposed on any relevant foreign national who is:

(i) given limited leave to enter the Isle of Man for longer than six months; or

(ii) given limited leave to remain which has the effect of allowing him to remain in the Isle of Man for longer than six months, reckoned from the date of his arrival (whether or not such a condition was imposed when he arrived).

(2) Such a condition should not normally be imposed where the leave is given:

(i) [Not used]

(ii) [Not used]

(iii) as a minister of religion, missionary or member of a religious order; or

(iv) on the basis of marriage to or civil partnership with a person settled in the Isle of Man or as the unmarried or same sex partner of a person settled in the Isle of Man; or

(v) as a person exercising access rights to a child resident in the Isle of Man; or

(vi) as the parent of a child at school; or

(vii) following the grant of asylum.

(3) Such a condition should also be imposed on any foreign national given limited leave to enter the Isle of Man where, exceptionally, the Immigration Officer considers it necessary to ensure that he complies with the terms of the leave.

[PART 11 Not Used]

PART 12: RIGHTS OF APPEAL

Notice of Immigration Decision

353. Where an immigration decision has been made in respect of a person, the person concerned should be served a notice informing him of the decision and of the reasons for the decision. This notice will also inform him whether he has a right of appeal under Section 82 of the 2002 Act and, if so, how the right of appeal might be exercised. If he has difficulty in understanding the notice its meaning should be explained to him.

354 to 360 [DELETED]

361 [Not Used]

PART 13: DEPORTATION

A deportation order

362. A deportation order requires the subject to leave the Isle of Man and authorises his detention until he is removed. It also prohibits him from re-entering the Isle of Man for as long as the order is in force and invalidates any leave to enter or remain in the Isle of Man given him before the order was made or while it is in force.

363. The circumstances in which a person is liable to deportation are set out in the Immigration Act 1971 and include:

(i) failure to comply with a condition attached to the person's leave to enter or remain or remaining beyond the time limited by the leave;

(ii) where the Lieutenant Governor deems the person's deportation to be conducive to the public good;

(iii) where the person concerned is the spouse or civil partner or child under 18 of a person ordered to be deported; and

(iv) where a court recommends deportation in the case of a person over the age of 17 who has been convicted of an offence punishable with imprisonment.

363A. Prior to 1 May 2008, a person would have been liable to deportation in certain circumstances in which he is now liable to administrative removal. These circumstances are listed in paragraph 395B below. However, such a person remains liable to deportation, rather than administrative removal where:

(i) a decision to make a deportation order against him was taken before May 2008; or

(ii) [Not Used]

"364. In considering deportation, whilst each case will be considered on its merits, where a person is liable to deportation the presumption shall be that the public interest requires deportation. The Lieutenant Governor will consider all relevant factors in considering whether the presumption is outweighed in any particular case, although it will only be in exceptional circumstances that the public interest in deportation will be outweighed in a case where it would not be contrary to the Human Rights Convention and the Convention and Protocol relating to the Status of Refugees to deport. The aim is an exercise of the power of deportation which is consistent and fair as between one person and another, although one case will rarely be identical with another in all material respects. Deportation will normally be the proper course where a person has failed to comply with or has contravened a condition or has remained without authority. Before a decision to deport is reached the Lieutenant Governor will take into account all relevant factors known to him including:

(i) age;

(ii) length of residence in the Isle of Man;

(iii) strength of connections with the Isle of Man;

(iv) personal history, including character, conduct and employment record;

(v) domestic circumstances;

(vi) previous criminal record and the nature of any offence of which the person has been convicted;

(vii) compassionate circumstances;

(viii) any representations received on the person's behalf.

Deportation of family members

365. Section 5 of the Immigration Act 1971 gives the Lieutenant Governor power in certain circumstances to make a deportation order against the spouse, civil partner or child of a person against whom a deportation order has been made. The Lieutenant Governor will not normally deport the spouse or civil partner of a deportee where:

(i) he has qualified for settlement in his own right; or

(ii) he has been living apart from the deportee.

366. The Lieutenant Governor will not normally decide to deport the child of a deportee where:

(i) he and his mother or father are living apart from the deportee; or

(ii) he has spent some years in the Isle of Man and is nearing the age of 18; or

(iii) he has left home and established himself on an independent basis; or

(iv) he married or formed a civil partnership before deportation came into prospect.

367. In considering whether to require a spouse, civil partner or child to leave with the deportee the Lieutenant Governor will take account of the factors listed in paragraph 364 as well as the following:

(i) the ability of the spouse or civil partner to maintain himself and any children in the Isle of Man from the resources available to him and without charge to public funds, not merely for a short period but for the foreseeable future; and

(ii) in the case of a child of school age, the effect of removal on his education; and

(iii) the practicability of any plans for a child's care and maintenance in this country if one or both of his parents were deported; and

(iv) any representations made by or on behalf of the spouse, civil partner or child.

368. Where the Lieutenant Governor decides that it would be appropriate to deport a member of a family as such the decision and the right of appeal will be notified and it will at the same time be explained that it is open to the member of the family to leave the country voluntarily if he does not wish to appeal or if he appeals and his appeal is dismissed.

[369-372 Not Used]

A deportation order made on the recommendation of a Court

373. There is a right of appeal to a higher court against the recommendation of the court. An order may not be made while it is still open to the person to appeal against the relevant conviction, sentence or recommendation, or while an appeal is pending.

[374-379 Not Used]

Procedure

380. A deportation order will not be made against any person if his removal in pursuance of the order would be contrary to the Isle of Man's obligations under the Convention and Protocol relating to the Status of Refugees or the Human Rights Convention

381. When a decision to make a deportation order has been taken (otherwise than on a recommendation of a court) a notice will be given to the person concerned informing him of the decision and of his right of appeal.

382. Following the issue of such a notice the Lieutenant Governor may make a detention order, or any order restricting a person as to residence, employment or occupation and requiring him to report to the police, pending the making of a deportation order.

[383-384 Not Used]

Arrangements for removal

385. A person against whom a deportation order has been made will normally be removed from the Isle of Man. The power is to be exercised so as to secure the person's return to the country of which he is a national, or which has most recently provided him with a travel document, unless he can show that another country will receive him. In considering any departure from the normal arrangements, regard will be had to the public interest generally, and to any additional expense that may fall on public funds.

[386 Not Used]

Supervised departure

387. A person liable to deportation may, in certain circumstances, leave the Isle of Man by means of a supervised departure instead of having a deportation order made against him.

Returned deportees

388. Where a person returns to the Isle of Man when a deportation order is in force against him, he may be deported under the original order. The Lieutenant Governor will consider every such case in the light of all the relevant circumstances before deciding whether to enforce the order.

Returned family members

389. Persons deported in the circumstances set out in paragraph 365-368 above (deportation of family members) may be able to seek readmission to the Isle of Man under these Rules where:

(i) a child reaches 18 (when he ceases to be subject to the deportation order); or

(ii) in the case of a spouse or civil partner, the marriage or civil partnership comes to an end.

Revocation of deportation order

390. An application for revocation of a deportation order will be considered in the light of all the circumstances including the following:

(i) the grounds on which the order was made;

(ii) any representations made in support of revocation;

(iii) the interests of the community, including the maintenance of an effective immigration control;

(iv) the interests of the applicant, including any compassionate circumstances.

391. In the case of an applicant who has been deported following conviction for a criminal offence continued exclusion,

(i) in the case of a conviction which is capable of being spent under the Rehabilitation of Offenders Act 2001, unless the conviction is spent within the meaning of that Act or, if the conviction is spent in less than 10 years, 10 years have elapsed since the making of the deportation order; or

(ii) in the case of a conviction not capable of being spent under that Act, at any time, unless refusal to revoke the deportation order would be contrary to the Human Rights Convention or the Convention and Protocol Relating to the Status of Refugees.

will normally be the proper course. In other cases revocation of the order will not normally be authorised unless the situation has been materially altered, either by a change of circumstances since the order was made, or by fresh information coming to light which was not before the court which made the recommendation or the Lieutenant Governor. The passage of time since the person was deported may also in itself amount to such a change in circumstances as to warrant revocation of the order.

392. Revocation of a deportation order does not entitle the person concerned to re-enter the Isle of Man; it renders him eligible to apply for admission under these Rules. Application for revocation of the order may be made to the Entry Clearance Officer or direct to the Lieutenant Governor.

Rights of Appeal in relation to a decision not to revoke a deportation order

393. Where an application for revocation is refused there is a right of appeal to an adjudicator.

394. No appeal lies while the person is in the Isle of Man or where the Lieutenant Governor decides that continued exclusion from the Isle of Man is conducive to the public good.

395. There may be a right of appeal against refusal to revoke a deportation order. Where an appeal does lie the right of appeal will be notified at the same time as the decision to refuse to revoke the order.

Administrative Removal

395A. A person is now liable to administrative removal in certain circumstances in which he would, prior to 1st May 2008, have been liable to deportation.

395B. These circumstances are set out in section 10 of the Immigration and Asylum Act 1999. They are -

(i) failure to comply with a condition attached to his leave to enter or remain, or remaining beyond the time limited by the leave,

(ii) where the person has obtained leave to remain by deception, and

(iii) where the person is the spouse civil partner, or child under 18 of someone in respect of whom directions for removal have been given under section 10 of the Immigration and Asylum Act 1999.

395C. Before a decision to remove under section 10 of the Immigration and Asylum Act 1999 is given, regard will be had to all the relevant factors known to the Lieutenant Governor including:

(i) age,

(ii) length of residence in the Isle of Man,

(iii) strength of connections with the Isle of Man,

(iv) personal history, including character, conduct and employment record,

(v) domestic circumstances,

(vi) previous criminal record and the nature of any offence of which the person has been convicted,

(vii) compassionate circumstances, and

(viii) any representations received on the person's behalf.

In the case of family members, the factors listed in paragraphs 365-368 must also be taken into account.

395D. A person shall not be removed under section 10 of the Immigration and Asylum Act 1999 if his removal would be contrary to the United Kingdom's obligations under the Refugee Convention or under the Human Rights Convention.

Procedure

395E. When a decision that a person is to be removed under section 10 of the Immigration and Asylum Act 1999 has been given, a notice will be given to the person concerned informing him of the decision and of any right of appeal.

395F. Following the issue of such a notice an Immigration Officer may authorise detention or make an order restricting a person as to residence, employment or occupation and requiring him to report to the police, pending the removal.

Appendix 1 - Visa requirements for the Isle of Man

1. Subject to paragraph 2 below, the following persons need a visa for the Isle of Man -

(a) Nationals or citizens of the following countries or territorial entities:

Afghanistan
Albania
Algeria
Angola
Armenia
Azerbaijan
Bahrain
Bangladesh
Belarus
Benin
Bhutan
Bolivia
Bosnia Herzegovina
Burkina Faso
Burma
Burundi
Cambodia
Cameroon
Cape Verde
Central African Republic
Chad
People's Republic of China (except those referred to in sub-paragraphs 2(d) and (e) of this Appendix)
Colombia
Comoros
Congo
Cuba
Democratic Republic of the Congo
Djibouti
Dominican Republic
Ecuador
Egypt
Equatorial Guinea
Eritrea
Ethiopia
Fiji
Gabon
Gambia
Georgia
Ghana
Guinea
Guinea Bissau
Guyana
Haiti
India
Indonesia
Iran

Iraq
Ivory Coast
Jamaica
Jordan
Kazakhstan
Kenya
Korea (North)
Kuwait
Kyrgyzstan
Laos
Lebanon
Lesotho
Liberia
Libya
Macedonia
Madagascar
Malawi
Mali
Mauritania
Moldova
Mongolia
Morocco
Mozambique
Nepal
Niger
Nigeria
Oman
Pakistan
Peru
Philippines
Qatar
Russia
Rwanda
Sao Tome e Principe
Saudi Arabia
Senegal
Sierra Leone
Somalia
South Africa
Sri Lanka
Sudan
Surinam
Swaziland
Syria
Taiwan (except those referred to in sub-paragraph 2(h) of this Appendix)
Tajikistan
Tanzania
Thailand
Togo
Tunisia
Turkey
Turkmenistan
Uganda

Ukraine
United Arab Emirates
Uzbekistan
Venezuela (except those referred to in sub-paragraph 2(i) of this Appendix)
Vietnam
Yemen
Zambia
Zimbabwe
The territories formerly comprising the socialist Federal Republic of Yugoslavia

(b) Persons who hold passports or travel documents issued by the former Soviet Union or by the former Socialist Federal Republic of Yugoslavia.

(c) Stateless persons.

(d) Persons who hold non-national documents.

2. The following persons do not need a visa for the Isle of Man:

(a) those who qualify for admission to the Isle of Man as returning residents in accordance with paragraph 18,

(b) those who seek leave to enter the Isle of Man within the period of their earlier leave and for the same purpose as that for which that leave was granted, unless it -

(i) was for a period of 6 months or less, or

(ii) was extended by statutory document or by section 3C of the Immigration Act 1971 (inserted by section 3 of the Immigration and Asylum Act 1999);

(c) DELETED

(d) those nationals or citizens of the People's Republic of China holding passports issued by Hong Kong Special Administrative Region,

(e) those nationals or citizens of the People's Republic of China holding passports issued by Macao Special Administrative Region,

(f) those who arrive in the Isle of Man with leave to enter which is in force but which was given before arrival, so long as those in question arrive within the period of their earlier leave and for the same purpose as that for which leave was granted, unless that leave –

(i) was for a period of 6 months or less, or

(ii) was extended by statutory document or by section 3C of the Immigration Act 1971 (inserted by section 3 of the Immigration and Asylum Act 1999);

(g) [NOT USED]

(h) those nationals or citizens of Taiwan who hold a passport issued by Taiwan which includes the number of the identification card issued by the competent authority in Taiwan.

(i) those nationals or citizens of Venezuela who hold a passport issued by the Republic of Venezuela which contains biometric information held in an electronic chip.

Appendix 2 - Countries or territories whose nationals or citizens are relevant foreign nationals for the purposes of Part 10 of these Rules

Registration with the police

Afghanistan
Algeria
Argentina
Armenia
Azerbaijan
Bahrain
Belarus
Bolivia
Brazil
China
Colombia
Cuba
Egypt
Georgia
Iran
Iraq
Israel
Jordan
Kazakhstan
Kuwait
Kyrgyzstan
Lebanon
Libya
Moldova
Morocco
North Korea
Oman
Palestine
Peru
Qatar
Russia
Saudi Arabia
Sudan
Syria
Tajikistan
Tunisia
Turkey
Turkmenistan
United Arab Emirates
Ukraine
Uzbekistan
Yemen

Appendix 3 [Not Used]

Appendix 4

Points criteria needed to succeed under paragraph 135D(ii) of these Rules

QUALIFICATIONS

Points	Qualifications (can include equivalent level professional qualifications) Applicants may claim points for only one qualification
50	PhD
35	Masters Degree
30	Bachelors Degree

PREVIOUS EARNINGS

Points	Applicants whose previous grant of leave to enter/remain under HSMP was for a period of more than 12 months: Previous Earnings from 12 out of the 15 months preceding the application.
5	16 – 17,999 Pounds Sterling (£)
10	18 – 19,999
15	20 – 22,999
20	23 – 25,999
25	26 – 28,999
30	29 – 31,999
35	32 – 34,999
40	35 – 39,999
45	40+

Points	Applicants whose previous grant of leave to enter/remain under HSMP was for a period of 12 months or less: Previous Earnings from 8 out of the 12 months preceding the application.
5	10,650 – 11,999 Pounds Sterling (£)
10	12,000 – 13,299
15	13,300 – 15,299
20	15,300 – 17,299
25	17,300 – 19,299
30	19,300 – 21,299
35	21,300 – 23,299
40	23,300 – 26,499
45	26,500+

ISLE OF MAN EXPERIENCE

Points: 5	Applicants whose previous grant of leave to enter/remain under HSMP was for a period of more than 12 months: At least £16,000 of the past earnings for which points have been claimed under the previous points scoring section, have been earned in the Isle of Man.
Points: 5	Applicants whose previous grant of leave to enter/remain under HSMP was for a period of 12 months or less: At least £10,650 of the past earnings for which points have been claimed under the previous point scoring section, have been earned in the Isle of Man.

AGE

Points	Age (as at date of posting of application)
20	29 or under
10	30 or 31
5	32 or 33

Appendix 5

Documents referred to in paragraph 135D(ii) and 135D(iii)b:

Part 1

Qualifications – if achieved after initial HSMP grant

Required evidence for those with an academic qualification
Original academic certificate showing: • Title of the award • Date of award • Institution • Name of applicant

Required evidence for those with a professional/vocational qualification
Original award certificate showing: • Title of award • Date of award • Institution • Name of applicant; and Letter from UK professional body confirming qualification's equivalence to UK academic level showing: • Name of award including country and awarding body • Equivalence of award to UK academic levels

Required evidence for those who have just graduated
Letter from institution on headed paper showing: • Name of applicant • Qualification awarded • Date of award • Date certificate will be issued; and Academic transcript showing: • Name of applicant • Institution • Course details • Confirmation of award

Previous Earnings

Required evidence for those who have been in salaried employment
Both the following covering the full period claimed for: • Income tax returns • Wage slips

Required evidence for those who worked in a country with no tax system

Any two of the following three to cover the full period claimed for:

- Bank Statements
- Wage slips
- Letter from employer stating salary

Required evidence for independent contractors

All of the following to cover the full period claimed for;

- Income tax return
- Copies of contracts from employers covering the total amount of earnings claimed
- Invoices covering the full amount claimed; and
- Bank statements showing incoming payments covering the full amount claimed

Required evidence for those who have been self employed

Both the following to cover the full period claimed for:

- Applicant's individual personal income tax return; and
- Applicant's personal bank statements

Plus one of the following combinations of documents covering the full period claimed for:

- Company audited accounts PLUS Company Tax return (one of these documents must confirm the total payment claimed by the applicant); OR
- Unaudited business/management accounts confirming the total payment claimed by the applicant

PLUS either

- Business bank statements AND a business tax return; OR
- Copies of contracts totalling the full amount payable to the individual AND corroborating invoiced

Isle of Man Experience

Required evidence for those claiming points for previous earnings:
Evidence will be assessed for that sent in to qualify for Previous Earnings criteria. No additional documents required.

Age assessment

The original passport or travel document

Part II
English Language

Required evidence for those claiming a degree taught in English to fulfil criteria
Both of the following: Original degree certificate; and Original letter on headed paper from the institution confirming the degree was taught in English showing: • Name • Qualification awarded • Date awarded

Appendix A

Attributes for Tier 1 (General) Migrants

1. An applicant applying for entry clearance or leave to remain as a Tier 1 (General) Migrant must score 75 points for attributes.

2. Available points are shown in tables 1 to 4 below. Only one set of points will be awarded per table. For example, points will only be awarded for one qualification.

3. Notes to accompany the tables appear below each of the tables.

Table 1

Qualification	***Points***
Bachelor's degree	*30*
Master's degree	*35*
PhD	*50*

Qualifications: notes

4. Specified documents must be provided as evidence of the qualification, unless the applicant has, or was last granted, leave as a Highly Skilled Migrant or a Tier 1 (General) Migrant, in the Isle of Man, and previously scored points for the same qualification in respect of which points are being claimed in this application.

5. Points will only be awarded for an academic qualification if the National Recognition Information Centre for the United Kingdom (UK NARIC) considers that an applicant's qualification meets or exceeds the recognised standard of a Bachelor's or Master's degree or a PhD in the United Kingdom.

6. Points will also be awarded for vocational and professional qualifications that the UK NARIC or the appropriate United Kingdom professional body considers to be equivalent to a Bachelor's or Master's degree or a PhD in the United Kingdom.

7. If the applicant has, or was last granted, leave as a Tier 1 (General) Migrant or a Highly Skilled Migrant and the qualification for which points are now claimed was, in the applicant's last successful application for leave or for a Highly Skilled Migrant Programme Approval Letter, assessed to be of a higher level than now indicated by UK NARIC, the higher score of points will be awarded in this application too.

7A. Applicants will only be awarded points for a Bachelor's degree if:

(a) they have, or have last been granted, leave to enter or remain as a Tier 1 (General) Migrant, Highly Skilled Migrant, Writer, Composer or Artist;

(b) that leave was granted before 1 December 2009; and

(c) they are applying to extend that leave.

Table 2

Previous earnings	***Points***
£16,000-£17,999	*5*
£18,000-£19,999	*10*
£20,000-£22,999	*15*
£23,000-£25,999	*20*
£26,000-£28,999	*25*
£29,000-£31,999	*30*
£32,000-£34,999	*35*
£35,000-£39,999	*40*
£40,000 or more	*45*

Previous earnings: notes

8. Specified documents must be provided as evidence of previous earnings.

8A. Applicants will only be awarded points for previous earnings of less than £20,000 if:

(a) they have, or have last been granted, leave to enter or remain as a Tier 1 (General) Migrant, Highly Skilled Migrant, Writer, Composer or Artist;

(b) that leave was granted before 31 March 2009; and

(c) they are applying to extend that leave.

Period for assessment

9. An applicant should indicate in the application form for which 12-month period his or her earnings should be assessed.

10. (a) For all applicants the period for assessment of earnings must—

(i) consist of no more than 12 months which must run consecutively, and

(ii) fall within the 15 months immediately preceding the application.

(b) If the applicant—

(i) has been on maternity or adoption leave at some point within the 12 months preceding the application, and

(ii) has provided the specified documents, or where due to exceptional circumstances the specified documents are not available, has provided alternative documents which show that the requirement in sub-

paragraph (i) is met, the applicant may choose for a period of no more than 12 months spent on maternity or adoption leave to be disregarded when calculating both the 12-month and 15-month period.

12. If the applicant has not indicated a period for assessment of earnings, or has indicated a period which does not meet the conditions in paragraph 10, their earnings will be assessed against the 12-month period immediately preceding their application, assuming the specified documents have been provided. Where the specified documents have not been provided, points will not be awarded for previous earnings.

Earnings

13. Earnings include, but are not limited to—

(a) salaries (includes full-time, part-time and bonuses),

(b) earnings derived through self-employment,

(c) earnings derived through business activities,

(d) statutory and contractual maternity pay, statutory and contractual adoption pay,

(e) allowances (such as accommodation, schooling or car allowances) which form part of an applicant's remuneration package,

(f) dividends from investments, where it is a company in which the applicant is active in the day-to-day management, or where the applicant receives the dividend as part of his or her remuneration package,

(g) property rental income, where this constitutes part of the applicant's business, and

(h) payments in lieu of notice.

14. Where the earnings take the form of a salary or wages, they will be assessed before tax (i.e. gross salary).

15. Where the earnings are the profits of a business derived through self-employment or other business activities, the earnings that will be assessed are the profits of the business before tax. Where the applicant only has a share of the business, the earnings that will be assessed are the profits of the business before tax to which the applicant is entitled.

16. Earnings do not include unearned sources of income, such as—

(a) allowances (such as accommodation, schooling or car allowances) which are paid as reimbursement for monies the applicant has previously paid,
(b) dividends from investments, unless it is a company in which the applicant is active in the day-to-day management, or unless the applicant receives the dividend as part of his or her remuneration package,

(c) property rental income, unless this constitutes part of the applicant's business,

(d) interest on savings,

(e) funds received through inheritance,

(f) monies paid to the applicant as a pension,

(g) expenses where the payment constitutes a reimbursement for monies the applicant has previously outlaid,

(h) statutory redundancy payment,

(i) sponsorship for periods of study,

(j) state benefits or

(k) prize money or competition winnings, other than where they are directly related to the applicant's main profession or occupation.

17. Earnings will not be taken into account if the applicant was in breach of the Isle of Man's immigration laws at the time those earnings were made.

Converting foreign currencies

18. Earnings in a foreign currency will be converted to pounds sterling (£) using the closing spot exchange rate for the last day of the period for which the applicant has claimed earnings in that currency.

19. If the applicant's earnings fall either side of a period of maternity or adoption leave, earnings in a foreign currency will be converted to pounds sterling (£) using the closing spot exchange rate which exists—

(a) for the earnings earned before maternity or adoption leave, on the last day of the period before maternity leave, and

(b) for the earnings earned after maternity or adoption leave, on the last day of the period after maternity leave.

20. The spot exchange rate which will be used is that which appears on the OANDA Corporation website www.oanda.com.

21. Once converted, earnings will be multiplied by the multiplier shown in table 2A below. The relevant country or territory is whichever country or territory the currency was earned in.

22. A multiplier will not be applied to overseas earnings (if any) of an applicant who has, or was last granted, leave as a Highly Skilled Migrant or Tier 1 (General) Migrant or writer, composer or artist and who is applying for leave to remain.

23. Where the previous earnings claimed are in different currencies, any foreign currencies will be converted and multiplied before being added together, and then added to any Isle of Man earnings, to give a total amount.

Table 2A - Multipliers for conversion of foreign currencies

Country or territory in which money was earned	***Multiplier***
Andorra; Aruba; Australia; Austria; Belgium; Bermuda; Canada; Cayman Islands; Channel Islands; Denmark; Finland; France; French Polynesia; Germany; Gibraltar; Guam; Hong Kong (Province of China); Iceland; Ireland; Italy; Japan; Kuwait; Liechtenstein; Luxembourg; Monaco; Netherlands; Norway; Qatar; San Marino; Singapore; Sweden; Switzerland; United Arab Emirates; United Kingdom; United States of America; Vatican.	*1*
American Samoa; Antigua and Barbuda; Argentina; Bahamas; Bahrain; Barbados; Botswana; Brunei Darussalam; Chile; Costa Rica; Croatia; Cyprus; Czech Republic; Estonia; Faroe Islands; Greece; Greenland; Grenada; Hungary; Israel; Korea (South); Latvia; Lebanon; Libya; Macao (Province of China); Malaysia; Malta; Mauritius; Mexico; Netherlands Antilles; New Caledonia; New Zealand; Northern Mariana Islands; Oman; Palau; Panama; Poland; Portugal; Puerto Rico; Saudi Arabia; Seychelles; Slovak Republic; Slovenia; Spain; St Kitts and Nevis; St Lucia; Taiwan (Republic of China); Trinidad and Tobago; Turks and Caicos Islands; Uruguay; Venezuela; Virgin Islands (British and US).	*2.3*
Country or territory in which money was earned	***Multiplier***
Albania; Algeria; Belarus; Belize; Bolivia; Bosnia & Herzegovina; Brazil; Bulgaria; Cape Verde; China (People's Republic of); Colombia; Dominica; Dominican Republic; Ecuador; Egypt; El Salvador; Fiji; Gabon; Guatemala; Honduras; Iran; Jamaica; Jordan; Kazakhstan; Lithuania; Macedonia; Maldives; Marshall Islands; Micronesia; Morocco; Namibia; Nauru; Paraguay; Peru; Philippines; Romania; Russian Federation; Samoa; South Africa; St Vincent & The Grenadines; Suriname; Swaziland; Syrian Arab Republic; Thailand; Tonga; Tunisia; Turkey; Turkmenistan; Vanuatu; West Bank and Gaza.	*3.2*
Angola; Armenia; Azerbaijan; Bangladesh; Benin; Bhutan; Burma; Cameroon; Comoros; Congo (Republic of); Cuba; Djibouti; Equatorial Guinea; Gambia; Georgia; Guinea; Guyana; Haiti; India; Indonesia; Iraq; Ivory Coast (Cote d'Ivoire); Kenya; Kiribati; Lesotho; Mauritania; Moldova; Mongolia; Montenegro; Nicaragua; Pakistan; Papua New Guinea; Senegal; Serbia; Solomon Islands; Sri Lanka; Sudan; aTimor L'Este (East Timor); Ukraine; Uzbekistan; Vietnam; Yemen; Zambia; Zimbabwe.	*5.3*
Afghanistan; Burkina Faso; Burundi; Cambodia; Central African Republic; Congo, (Democratic Republic of); Chad; Eritrea; Ethiopia; Ghana; Guinea-Bissau; Korea (North); Kygyz Republic; Laos; Liberia; Madagascar; Malawi; Mali; Mayotte; Mozambique; Nepal; Niger; Nigeria; Rwanda; Sao Tome and Principe; Sierra Leone; Somalia; Tajikistan; Tanzania; Togo; Uganda.	*11.4*

Table 3 – Isle of Man Experience

Applications for leave to remain where the applicant has, or was last granted, leave as a Highly Skilled Migrant, Tier 1 (General) Migrant, as a writer, composer or artist	***Points***
If £16,000 or more of the previous earnings for which points are claimed were earned in the Isle of Man	*5*

Applications for entry clearance and all other applications for leave to remain	***Points***
If the qualification was obtained in the Isle of Man	*5*
If £16,000 or more of the previous earnings for which points are claimed were earned in the Isle of Man	*5*

Isle of Man Experience: notes

24. If an applicant has, or last had, leave as a Highly Skilled Migrant, Tier 1 (General) Migrant, as a writer, composer or artist, and is applying for leave to remain, points for Isle of Man experience will only be awarded for previous earnings earned in the Isle of Man (and not qualifications obtained in the Isle of Man).

25. If the applicant is applying for entry clearance or leave to remain (except where the applicant has, or was last granted, leave as a Highly Skilled Migrant Tier 1 (General) Migrant, as a writer, composer or artist, points for Isle of Man experience will only be awarded for qualifications obtained in the Isle of Man or previous earnings earned in the Isle of Man (but not both).

26. Specified documents must be provided as evidence of qualifications obtained in the Isle of Man.

27. Points will only be awarded for Isle of Man experience in respect of qualifications obtained in the Isle of Man if—

(a) (i) the qualification is a Bachelor's or Master's degree or a PhD, and UK NARIC considers it meets or exceeds the recognised standard of a Bachelor's or Master's degree or a PhD in the United Kingdom, or

(ii) the qualification is a vocational or professional qualification and the appropriate United Kingdom professional body considers it meets or exceeds the recognised standard of a Bachelor's or Master's degree or a PhD in the United Kingdom,

(b) the qualification was awarded no more than 5 years before the application was made, and

(c) at least 1 academic year, or 3 consecutive terms, of the course that led to the qualification involved full-time study in the United Kingdom or Isle of Man.

28. In paragraph 27(b), the date the qualification is awarded is the date on which the applicant was first notified in writing, by the awarding institution, that the qualification had been awarded.

29. The qualification for which Isle of Man experience points are claimed can be, but does not have to be, the same as the qualification for which points are claimed under table 1.

30. Previous earnings will not be taken into account for the purpose of awarding points for Isle of Man experience if the applicant was in breach of the Isle of Man's immigration laws at the time those earnings were made.

Table 4 - Age (at date of application)

Applications for entry clearance and leave to remain (unless the applicant falls into the boxes below)	***Points***
Under 28 years of age	*20*
28 or 29 years of age	*10*
30 or 31 years of age	*5*

Applications for leave to remain where an applicant has, or last had, leave as a Tier 1 (General) Migrant, writer, composer or artist	***Points***
Under 31 years of age	*20*
31 or 32 years of age	*10*
33 or 34 years of age	*5*

Applications for leave to remain where an applicant has, or last had, leave as a Highly Skilled Migrant	***Points***
Under 30 years of age	*20*
30 or 31 years of age	*10*
32 or 33 years of age	*5*

Age: notes

31. Specified documents must be provided as evidence of age.

Attributes for Tier 1 (Entrepreneur) Migrants

32. An applicant applying for entry clearance or leave to remain as a Tier 1 (Entrepreneur) Migrant must score 75 points for attributes.

33. Subject to paragraph 34, available points for applications for entry clearance or leave to remain are shown in Table 5.

34. Available points for an applicant applying for leave to remain who has, or has last been granted, entry clearance, leave to enter or remain as—

(i) a Tier 1 (Entrepreneur) or

(ii) a business person, or
are shown in Table 6.

35. Notes to accompany the tables appear below the respective tables.

Table 5

Investment	***Points***
The applicant has access to not less than £200,000	*25*
The money is held in one or more regulated financial institutions.	*25*
The money is disposable in the Isle of Man.	*25*

Investment: notes

36. Specified documents must be provided as evidence of any investment.

37. A regulated financial institution is one which is regulated by the appropriate regulatory body for the country in which the financial institution operates. For example, where a financial institution does business in the Isle of Man, the appropriate regulator is the Financial Services Commission.

38. Money is disposable in the Isle of Man if all of the money is held in an Isle of Man based financial institution or if the money is freely transferable to the Isle of Man and convertible to sterling. Funds in a foreign currency will be converted to pounds sterling (£) using the spot exchange rate which appeared on the OANDA Corporation website www.oanda.com on the date on which the application was made.

Table 6

Investment and business activity	***Points***
The applicant has invested, or had invested on his behalf, not less than £200,000 in cash directly into one or more businesses in the Isle of Man.	*20*
The applicant has: *(a) Been granted permission by the Department of Trade and Industry for self-employment, or* *(b) registered a new business in which he or she is a director, or* *(c) registered as a director of an existing business.* *Where the applicant's last grant of entry clearance, leave to enter or leave to remain was as a Tier 1 (Entrepreneur) Migrant, the above condition must have been met within 3 months of the grant.*	*20*
The applicant is engaged in business activity at the time of his or her application for leave to remain.	*15*
The applicant has: *(a) established a new business or businesses that has or have created the equivalent of at least two new full time jobs for persons settled in the Isle of Man, or* *(b) taken over or joined an existing business or businesses and his or her services or investment have resulted in a net increase in the employment provided by the business or businesses for persons settled in the Isle of Man by creating the equivalent of at least two new full time jobs.* *Where the applicant's last grant of entry clearance or leave to enter or remain was as a Tier 1 Entrepreneur) Migrant, the jobs must have existed for at least 12 months of the period for which the previous leave was granted.*	*20*

Investment and business activity: notes

39. Documentary evidence must be provided in all cases. Specified documents must be provided as evidence of any investment and business activity that took place when the applicant had leave as a Tier 1 (Entrepreneur) Migrant.

40. The investment must not include the value of any residential accommodation, property development or property management. The investment must not be in the form of a director's loan, unless it is unsecured and in favour of the business.

41. A full time job is one involving at least 30 hours' work a week. Two or more part time jobs that add up to 30 hours a week will count as one full time job. Where the applicant's last grant of entry clearance or leave was as a Tier 1 (Entrepreneur) Migrant, the jobs must have existed for a total of at least 12 months during the period during which the migrant had leave in that category. This need not consist of 12 consecutive months and the jobs need not exist at the date of application, provided they existed for at least 12 months during the period of leave that the migrant is seeking to extend.

Attributes for Tier 1 (Investor) Migrants

42. An applicant applying for entry clearance or leave to remain as a Tier 1 (Investor) Migrant must score 75 points for attributes.

43. Subject to paragraph 44, available points for applications for entry clearance or leave to remain are shown in Table 7.

44. Available points for an applicant applying for leave to remain who has, or has last been granted, entry clearance, leave to enter or remain as—

(i) a Tier 1 (Investor) Migrant, or

(ii) an investor

are shown in Table 8.

45. Notes to accompany both Table 7 and Table 8 appear below Table 8.

Table 7

Assets	***Points***
The applicant: *(a) has money of his or her own held in a regulated financial institution and disposable in the Isle of Man amounting to not less than £1 million; or* *(b) (i) owns personal assets which, taking into account any liabilities to which they are subject, have a value exceeding £2 million, and* *(ii) has money under his or her control held in a regulated financial institution and disposable in the Isle of Man amounting to not less than £1 million which has been loaned to him or her by a financial institution regulated by the Financial Services Commission.*	*75*

Table 8

Assets and investment	***Points***
The applicant: *(a) has money of his or her own under his or her control in the Isle of Man amounting to not less than £1 million, or* *(b) (i) owns personal assets which, taking into account any liabilities to which they are subject, have a value of not less than £2 million, and* *(ii) has money under his or her control held in a regulated financial institution and disposable in the Isle of Man amounting to not less than £1 million which has been by loaned to him or her a financial institution regulated by the Financial Services Commission.*	*30*
The applicant has invested not less than £750,000 of his or her capital in the Isle of Man by way of share capital or loan capital in active and trading Isle of Man registered companies other than those principally engaged in property investment.	*30*
The investment referred to above was made within 3 months of obtaining entry clearance, leave to enter or leave to remain as a Tier 1 (Investor) Migrant and the investment has been maintained for the whole of the remaining period of that leave; *or* *The migrant has, or was last granted, entry clearance, leave to enter or leave to remain as an investor.*	*15*

Assets and investment: notes

46 Specified documents must be provided as evidence of investment.

47. A regulated financial institution is one which is regulated by the appropriate regulatory body for the country in which the financial institution operates. For example, where a financial institution does business in the Isle of Man, the appropriate regulator is the Financial Services Commission.

48. Money is disposable in the Isle of Man if all of the money is held in an Isle of Man based financial institution or if the money is freely transferable to the Isle of Man and convertible to sterling. Funds in a foreign currency will be converted to pounds sterling (£) using the spot exchange rate which appeared on the OANDA Corporation website www.oanda.com on the date on which the application was made.

49. "Money of his or her own", "personal assets" and "his or her capital" include money or assets belonging to the applicant's spouse, civil partner or unmarried or same-sex partner, provided that specified documents are provided to show that the money or assets are under the applicant's control and that he or she is free to invest them.

50. Investment excludes investment by the applicant by way of deposits with a bank, building society or other enterprise whose normal course of business includes the acceptance of deposits.

Attributes for Tier 5 (Youth Mobility Scheme) Temporary Migrants

101. An applicant applying for entry clearance as a Tier 5 (Youth Mobility Scheme) Temporary Migrant must score 40 points for attributes.

102. Available points are shown in Table 14.

103. Notes to accompany Table 14 appear below Table 14.

Table 14

Criterion	***Points***
Citizen of a country in Appendix G or Is a British Overseas Citizen, British Territories Overseas Citizen or British National (Overseas.)	*30*
Will be 18 or over when his or her entry clearance becomes valid for use and was under the age of 31 on the date his or her application was made.	*10*

Notes
104. Specified documents must be provided as evidence of all of the above.

Appendix B

English language

1. An applicant applying for entry clearance or leave to remain as a Tier 1 Migrant (other than as a Tier 1 (Investor) Migrant), must have 10 points for English language.

2. 10 points will only be awarded if the applicant—

(a) has a knowledge of English equivalent to level C1 of the Council of Europe's Common European Framework for Language Learning or above and:

(i) provides an original English language test certificate from an English language test provider approved by the Lieutenant Governor for these purposes, which clearly shows the applicant's name; the qualification obtained (which must meet or exceed the level shown in the table below); and the date of the award, or

(ii) has obtained an academic qualification (not a professional or vocational qualification) which is considered by UK NARIC to meet or exceed the recognised standard of a Bachelor's or Master's degree or a PhD in the United Kingdom, and which UK NARIC has confirmed was taught or researched in English to the level indicated in the table below, and provides the specified documents, or

(b) is a national of one of the following countries—

Antigua and Barbuda	*Guyana*
Australia	*Jamaica*
The Bahamas	*New Zealand*
Barbados	*St Kitts and Nevis*
Belize	*St Lucia*
Canada	*St Vincent and the Grenadines*
Dominica	*Trinidad and Tobago*
Grenada	*The United States of America*

and provides the specified documents, or

(c) has obtained an academic qualification (not a professional or vocational qualification), which is deemed by UK NARIC to meet or exceed the recognised standard of a Bachelor's or Master's degree or a PhD in the United Kingdom, from an educational establishment in one of the following countries:

Antigua and Barbuda	*Jamaica*
Australia	*New Zealand*
The Bahamas	*St Kitts and Nevis*
Barbados	*St Lucia*
Belize	*St Vincent and The Grenadines*
Dominica	*Trinidad and Tobago*
Grenada	*The United Kingdom*
Guyana	*The United States of America*
Ireland	

and provides the specified documents, or

(d) has, or has last been granted, leave as a Tier 1 (General) Migrant or a Tier 1 (Entrepreneur) Migrant, or business person, or

(e) has, or was last granted, leave as a highly skilled migrant, if that leave was granted under these Rules at a time when they included the changes which came into force on [14 November 2006.]

Appendix C

Maintenance (funds)

Tier 1 Migrants

1. An applicant applying for entry clearance or leave to remain as a Tier 1 Migrant (other than as a Tier 1 (Investor) Migrant) must score 10 points for funds.

2. 10 points will only be awarded if an applicant—

(a) applying for entry clearance, has £2,800 and provides the specified documents, or

(b) applying for leave to remain, has £800 and provides the specified documents.

3. The applicant must have the funds specified in paragraph 2 at the date of the application and must also have had those funds for a period of time set out in the guidance specifying the specified documents for the purposes of paragraph 2.

Tier 5 (Youth Mobility) Temporary Migrants

4. An applicant applying for entry clearance as a Tier 5 (Youth Mobility) Temporary Migrant must score 10 points for funds.

5. 10 points will only be awarded if an applicant has £1,600 and provides the specified documents.

Appendix D - Immigration rules for leave to enter as a Highly Skilled Migrant as at [1 December 2009], and immigration rules for leave to remain as a Highly Skilled Migrant as at 1 December 2009

Requirements for leave to enter the Isle of Man as a highly skilled migrant

135A. The requirements to be met by a person seeking leave to enter as a highly skilled migrant are that the applicant:

(i) must produce a valid document issued by the Department of Trade and Industry confirming that he meets, at the time of the issue of that document, the criteria specified by the Governor for entry to the Isle of Man under the Highly Skilled Migrant Programme; and

(ii) intends to make the Isle of Man his main home; and

(iii) is able to maintain and accommodate himself and any dependants adequately without recourse to public funds; and

(iv) holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter as a highly skilled migrant

135B. A person seeking leave to enter the Isle of Man as a highly skilled migrant may be admitted for a period not exceeding 2 years, [subject to a condition prohibiting Employment as a Doctor in Training, (unless the applicant has submitted with this application a valid Highly Skilled Migrant Programme Approval Letter, where the application for that approval letter was made on or before 6 February 2008),] provided the Immigration Officer is satisfied that each of the requirements of paragraph 135A is met and that the application does not fall for refusal under paragraph 135HA.

Refusal of leave to enter as a highly skilled migrant

135C. Leave to enter as a highly skilled migrant is to be refused if the Immigration Officer is not satisfied that each of the requirements of paragraph 135A is met or if the application falls for refusal under paragraph 135HA.

Requirements for extension of stay as a highly skilled migrant

135D. The requirements for an extension of stay as a highly skilled migrant for a person who has previously been granted entry clearance or leave in this capacity, are that the applicant:

(i) entered the Isle of Man with a valid Isle of Man entry clearance as a highly skilled migrant, or has previously been granted leave in accordance with paragraphs 135DA-135DD of these Rules; and

(ii) has achieved at least 75 points in accordance with the criteria specified in Appendix 4 of these Rules, having provided all the documents which are set out in Appendix 5 (Part I) of these Rules which correspond to the points which he is claiming; and

(iii) (a) has produced an International English Language Testing System certificate issued to him to certify that he has achieved at least band 6 competence in English; or

(b) has demonstrated that he holds a qualification which was taught in English and which is of an equivalent level to a UK Bachelors degree by providing both documents which are set out in Appendix 5 (Part II) of these Rules; and

(iv) meets the requirements of paragraph 135A(ii)-(iii).

135DA The requirements for an extension of stay as a highly skilled migrant for a work permit holder are that the applicant:

(i) entered the Isle of Man or was given leave to remain as a work permit holder in accordance with paragraphs 128 to 132 of these Rules; and

(ii) meets the requirements of paragraph 135A (i)-(iii).

135DB The requirements for an extension of stay as a highly skilled migrant for a student are that the applicant:

(i) entered the Isle of Man or was given leave to remain as a student in accordance with paragraphs 57 to 62 of these Rules; and

(ii) has obtained a degree qualification on a recognised degree course at either a United Kingdom publicly funded further or higher education institution or a bona fide United Kingdom private education institution which maintains satisfactory records of enrolment and attendance; and

(iii) has the written consent of his official sponsor to remain as a highly skilled migrant if he is a member of a government or international scholarship agency sponsorship and that sponsorship is either ongoing or has recently come to an end at the time of the requested extension; and

(iv) meets the requirements of paragraph 135A(i)-(iii).

135DC. The requirements for an extension of stay as a highly skilled migrant for a postgraduate doctor or postgraduate dentist are that the applicant:

(i) entered the Isle of Man or was given leave to remain as a postgraduate doctor or a postgraduate dentist in accordance with paragraphs 70 to 75 of these Rules; and

(ii) has the written consent of his official sponsor to such employment if he is a member of a government or international scholarship agency sponsorship and that sponsorship is either ongoing or has recently come to an end at the time of the requested extension; and

(iii) meets the requirements of paragraph 135A(i)-(iii).

135DD The requirements for an extension of stay as a highly skilled migrant for a working holidaymaker are that the applicant:

(i) entered the Isle of Man as a working holidaymaker in accordance with paragraphs 95 to 96 of these Rules; and

(ii) meets the requirements of paragraph 135A(i)-(iii).

Extension of stay as a highly skilled migrant

135E. An extension of stay as a highly skilled migrant may be granted for a period not exceeding 3 years, provided that the Lieutenant Governor is satisfied that each of the requirements of paragraph 135D, 135DA, 135DB, 135DC, or 135DD is met and that the application does not fall for refusal under paragraph 135HA.

Refusal of extension of stay as a highly skilled migrant

135F. An extension of stay as a highly skilled migrant is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 135D, 135DA, 135DB, 135DC, or 135DD is met or if the application falls for refusal under paragraph 135HA.

Additional grounds for refusal for highly skilled migrants

135HA. An application under paragraphs 135A-135F of these Rules is to be refused, even if the applicant meets all the requirements of those paragraphs, if:

(i) the applicant submits any document which, whether or not it is material to his application, is forged or not genuine, unless the Immigration Officer or Lieutenant Governor is satisfied that the applicant is unaware that the document is forged or not genuine; or

(ii) the Immigration Officer or Lieutenant Governor has cause to doubt the genuineness of any document submitted by the applicant and, having taken reasonable steps to verify the document, has been unable to verify that it is genuine.

Appendix E

Maintenance (funds) for the family of Tier 1 Migrants

A sufficient level of funds must be available to an applicant applying as the partner or child of a Tier 1 Migrant. A sufficient level of funds will only be available if the following requirements are met.

(a) Where the application is connected to a Tier 1 Migrant (other than a Tier 1 (Investor) Migrant) who is outside the Isle of Man, or has been in the Isle of Man for a period of less than 12 months, there must be £1,600 in funds.

(b) Where:

(i) paragraph (a) does not apply, and

(ii) the application is connected to a relevant points based system migrant who is not a Tier 1 (Investor) Migrant, there must be £533 in funds.

(c) Where the applicant is applying as the partner of a relevant points based system migrant, the relevant amount of funds must be available to either the applicant or the relevant points based system migrant.

(d) Where the applicant is applying as the child of a relevant points based system migrant, the relevant amount of funds must be available to the applicant, the relevant points based system migrant, or the applicant's other parent who is lawfully present in the Isle of Man or being granted entry clearance, or leave to enter or remain, at the same time.

(e) Where the relevant points based system migrant is applying for entry clearance or leave to remain at the same time as the applicant, the amount of funds available to the applicant must be in addition to the level of funds required separately of the relevant points based system migrant.

(ea) In all cases, the funds in question must be available to—

(i) the applicant, or

(ii) where he or she is applying as the partner of a relevant points based system migrant, either to him or her or to that relevant points based system migrant, or

(iii) where he or she is applying as the child of a relevant points based system migrant, either to him or her, to the relevant points based system migrant or to the child's other parent who is lawfully present in the Isle of Man or being granted entry clearance, or leave to enter or remain, at the same time at the date of the application and must have been available to that person for a period of time set out in the guidance specifying the specified documents for the purposes of this Appendix.

(f) In all cases the applicant must provide the specified documents.

Appendix F - Immigration rules relating to Businesspersons, Investors and Writers, Composers and Artists as at 1 December 2009

PERSONS INTENDING TO ESTABLISH THEMSELVES IN BUSINESS

Requirements for leave to enter the Isle of Man as a person intending to establish himself in business

200. For the purpose of paragraphs 201-210 a business means an enterprise as:

- *a sole trader; or*
- *a partnership; or*
- *a company registered in the Isle of Man.*

201. The requirements to be met by a person seeking leave to enter the Isle of Man to establish himself in business are:

(i) that he satisfies the requirements of either paragraph 202 or paragraph 203; and

(ii) that he has not less than £200,000 of his own money under his control and disposable in the Isle of Man which is held in his own name and not by a trust or other investment vehicle and which he will be investing in the business in the Isle of Man; and

(iii) that until his business provides him with an income he will have sufficient additional funds to maintain and accommodate himself and any dependants without recourse to employment (other than his work for the business) or to public funds; and

(iv) that he will be actively involved full time in trading or providing services on his own account or in partnership, or in the promotion and management of the company as a director; and

(v) that his level of financial investment will be proportional to his interest in the business; and

(vi) that he will have either a controlling or equal interest in the business and that any partnership or directorship does not amount to disguised employment; and

(vii) that he will be able to bear his share of liabilities; and

(viii) that there is a genuine need for his investment and services in the Isle of Man; and

(ix) that his share of the profits of the business will be sufficient to maintain and accommodate himself and any dependants without recourse to employment (other than his work for the business) or to public funds; and

(x) that he does not intend to supplement his business activities by taking or seeking employment in the Isle of Man other than his work for the business; and

(xi) that he holds a valid Isle of Man entry clearance for entry in this capacity.

202. Where a person intends to take over or join as a partner or director of an existing business in the Isle of Man he will need, in addition to meeting the requirements at paragraph 201 above, to produce:

(i) a written statement of the terms on which he is to take over or join the business; and

(ii) audited accounts for the business for previous years; and

(iii) evidence that his services and investment will result in a net increase in the employment provided by the business to persons settled in the Isle of Man to the extent of creating at least 2 new full time jobs.

203. Where a person intends to establish a new business in the Isle of Man he will need, in addition to meeting the requirements at paragraph 201 above, to produce evidence:

(i) that he will be bringing into the country sufficient funds of his own to establish a business; and

(ii) that the business will create full time paid employment for at least 2 persons already settled in the Isle of Man.

Leave to enter the Isle of Man as a person seeking to establish himself in business

204. A person seeking leave to enter the Isle of Man to establish himself in business may be admitted for a period not exceeding 2 years, with a condition restricting his freedom to take employment provided he is able to produce to the Immigration Officer, on arrival, a valid Isle of Man entry clearance for entry in this capacity.

Refusal of leave to enter the Isle of Man as a person seeking to establish himself in business

205. Leave to enter the Isle of Man as a person seeking to establish himself in business is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival.

Requirements for an extension of stay in order to remain in business

206. The requirements for an extension of stay in order to remain in business in the Isle of Man are that the applicant can show:

(i) that he entered the Isle of Man with a valid Isle of Man entry clearance as a businessman; and

(ii) audited accounts which show the precise financial position of the business and which confirm that he has invested not less than £200,000 of his own money directly into the business in the Isle of Man; and

(iii) that he is actively involved on a full time basis in trading or providing services on his own account or in partnership or in the promotion and management of the company as a director; and

(iv) that his level of financial investment is proportional to his interest in the business; and

(v) that he has either a controlling or equal interest in the business and that any

partnership or directorship does not amount to disguised employment; and

(vi) that he is able to bear his share of any liability the business may incur; and

(vii) that there is a genuine need for his investment and services in the Isle of Man and

(viii) (a) that where he has established a new business, new full time paid employment has been created in the business for at least 2 persons settled in the Isle of Man; or

(b) that where he has taken over or joined an existing business, his services and investment have resulted in a net increase in the employment provided by the business to persons settled in the Isle pf Man to the extent of creating at least 2 new full time jobs; and

(ix) that his share of the profits of the business is sufficient to maintain and accommodate him and any dependants without recourse to employment (other than his work for the business) or to public funds; and

(x) that he does not and will not have to supplement his business activities by taking or seeking employment in the Isle of Man other than his work for the business; and

(xi) that he has the permission of the Department of Trade and Industry under the Control of Employment Act to take up self-employment.

206A. The requirements for an extension of stay as a person intending to establish himself in business in the Isle of Man for a person who has leave to enter or remain for work permit employment are that the applicant:

(i) entered the Isle of Man or was given leave to remain as a work permit holder in accordance with paragraphs 128 to 133 of these Rules; and

(ii) meets each of the requirements of paragraph 201 (i)-(x).

206B. The requirements for an extension of stay as a person intending to establish himself in business in the Isle of Man for a highly skilled migrant are that the applicant:

(i) entered the Isle of Man or was given leave to remain as a highly skilled migrant in accordance with paragraphs 135A to 135F of these Rules; and

(ii) meets each of the requirements of paragraph 201 (i)-(x).

206D. The requirements for an extension of stay as a person intending to establish himself in business in the Isle of Man for an innovator are that the applicant:

(i) entered the Isle of Man or was given leave to remain as an innovator in accordance with the United Kingdom Rules; and

(ii) meets each of the requirements of paragraph 201 (i)-(x).

206E. The requirements for an extension of stay as a person intending to establish himself in business in the Isle of Man for a student are that the applicant:

(i) entered the Isle of Man or was given leave to remain as a student in accordance with paragraphs 57 to 62 of these Rules; and

(ii) has obtained a degree qualification on a recognised degree course at either a Isle of Man publicly funded further or higher education institution or a bona

fide Isle of Man or United Kingdom private education institution which maintains satisfactory records of enrolment and attendance; and

(iii) has the written consent of his official sponsor to such self employment if he is a member of a government or international scholarship agency sponsorship and that sponsorship is either ongoing or has recently come to an end at the time of the requested extension; and

(iv) meets each of the requirements of paragraph 201 (i)-(x).

206F. The requirements for an extension of stay as a person intending to establish himself in business in the Isle of Man for a working holidaymaker are that the applicant:

(i) entered the Isle of Man or was given leave to remain as a working holidaymaker in accordance with paragraphs 95 to 100 of these Rules; and

(ii) has spent more than 12 months in total in the Isle of Man in this capacity; and

(iii) meets each of the requirements of paragraph 201 (i)-(x).

206H. The requirements for an extension of stay as a person intending to establish himself in business in the Isle of Man for a postgraduate doctor or dentist are that the applicant:

(i) entered the Isle of Man or was given leave to remain as a postgraduate doctor or dentist in accordance with paragraphs 70 to 75 of these Rules; and

(ii) has the written consent of his official sponsor to such self employment if he is a member of a government or international scholarship agency sponsorship and that sponsorship is either ongoing or has recently come to an end at the time of the requested extension; and

(iii) meets each of the requirements of paragraph 201(i)-(x).

Extension of stay in order to remain in business

207. An extension of stay in order to remain in business with a condition restricting his freedom to take employment may be granted for a period not exceeding 3 years at a time provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 206, 206A, 206B, 206C, 206D, 206E or 206F is met.

Refusal of extension of stay in order to remain in business

208. An extension of stay in order to remain in business is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 206, 206A, 206B, 206C, 206D, 206E or 206F is met.

INVESTORS

Requirements for leave to enter the Isle of Man as an investor

224. The requirements to be met by a person seeking leave to enter the Isle of Man as an investor are that he:

(i) (a) has money of his own under his control in the Isle of Man amounting to no less than £1 million; or

(b) (A) owns personal assets which, taking into account any

liabilities to which he is subject, have a value exceeding £2 million; and

(B) has money under his control in the Isle of Man amounting to no less than £1 million, which may include money loaned to him provided that it was loaned by a financial institution regulated by the Financial Supervision Commission; and

(ii) intends to invest not less than £750,000 of his capital in the Isle of Man by way of Isle of Man Government or local authority bonds, share capital or loan capital in active and trading Isle of Man registered companies (other than those principally engaged in property investment), or deposits for a fixed term of at least one year with banks, building societies or similar organisations established on the Isle of Man which are licensed by the Financial Supervision Commission to take deposits; and

(iii) intends to make the Isle of Man his main home; and

(iv) is able to maintain and accommodate himself and any dependants without taking employment (other than self employment or business) or recourse to public funds; and

(v) holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter as an investor

225. A person seeking leave to enter the Isle of Man as an investor may be admitted for a period not exceeding 2 years with a restriction on his right to take employment, provided he is able to produce to the Immigration Officer, on arrival, a valid Isle of Man entry clearance for entry in this capacity.

Refusal of leave to enter as an investor

226. Leave to enter as an investor is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival.

Requirements for an extension of stay as an investor

227. The requirements for an extension of stay as an investor are that the applicant:

(i) entered the Isle of Man with a valid Isle of Man entry clearance as an investor; and

(ii) (a) has money of his own under his control in the Isle of Man amounting to no less than £1 million; or

(b) (A) owns personal assets which, taking into account any liabilities to which he is subject, have a value exceeding £2 million; and

(B) has money under his control in the Isle of Man amounting to no less than £1 million, which may include money loaned to him provided that it was loaned by a financial institution regulated by the Financial Supervision Commission; and

(iii) has invested not less than £750,000 of his capital in the Isle of Man on the terms set out in paragraph 224 (ii) above and intends to maintain that investment on the terms set out in paragraph 224 (ii);

and

(iv) has made the United Kingdom his main home; and

(v) is able to maintain and accommodate himself and any dependants without taking employment (other than his self employment or business) or recourse to public funds.

227A. The requirements to be met for an extension of stay as an investor, for a person who has leave to enter or remain in the Isle of Man as a work permit holder are that the applicant:

(i) entered the Isle of Man or was granted leave to remain as a work permit holder in accordance with paragraphs 128 to 133 of these Rules; and

(ii) meets the requirements of paragraph 224 (i)-(iv).

227B. The requirements to be met for an extension of stay as an investor, for a person in the Isle of Man as a highly skilled migrant are that the applicant:

(i) entered the Isle of Man or was granted leave to remain as a highly skilled migrant in accordance with paragraphs 135A to 135F of these Rules; and

(ii) meets the requirements of paragraph 224 (i)-(iv).

227C. The requirements to be met for an extension of stay as an investor, for a person in the Isle of Man to establish themselves or remain in business are that the applicant:

(i) entered the Isle of Man or was granted leave to remain as a person intending to establish themselves or remain in business in accordance with paragraphs 201 to 208 of these Rules; and

(ii) meets the requirements of paragraph 224 (i)-(iv).

[227D. The requirements to be met for an extension of stay as an investor, for a person in the United Kingdom as an innovator are that the applicant:

(i) entered the United Kingdom or was granted leave to remain as an innovator in accordance with paragraphs 210A to 210F of these Rules; and

(ii) meets the requirements of paragraph 224 (i)-(iv).]

228. An extension of stay as an investor, with a restriction on the taking of employment, may be granted for a period not exceeding 3 years, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 227, 227A, 227B, 227C or 227D is met.

Refusal of extension of stay as an investor

229. An extension of stay as an investor is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 227, 227A, 227B, 227C or 227D is met.

WRITERS, COMPOSERS AND ARTISTS

Requirements for leave to enter the Isle of Man as a writer, composer or artist

232. The requirements to be met by a person seeking leave to enter the Isle of Man as a writer, composer or artist are that he:

(i) has established himself outside the Isle of Man as a writer, composer or artist primarily engaged in producing original work which has been published (other than exclusively in newspapers or magazines), performed or exhibited for its literary, musical or artistic merit; and

(ii) does not intend to work except as related to his self employment as a writer, composer or artist; and

(iii) has for the preceding year been able to maintain and accommodate himself and any dependants from his own resources without working except as a writer, composer or artist; and

(iv) will be able to maintain and accommodate himself and any dependants from his own resources without working except as a writer, composer or artist and without recourse to public funds; and

(v) has the permission of the Department of Trade and Industry under the Control of Employment Act to take up self- employment as a writer, composer or artist; and

(vi) holds a valid Isle of Man entry clearance for entry in this capacity.

Leave to enter as a writer, composer or artist

233. A person seeking leave to enter the Isle of Man as a writer, composer or artist may be admitted for a period not exceeding 2 years, subject to a condition restricting his freedom to take employment, provided he is able to produce to the Immigration Officer, on arrival, a valid Isle of Man entry clearance for entry in this capacity.

Refusal of leave to enter as a writer, composer or artist

234. Leave to enter as a writer, composer or artist is to be refused if a valid Isle of Man entry clearance for entry in this capacity is not produced to the Immigration Officer on arrival.

Requirements for an extension of stay as a writer, composer or artist

235. The requirements for an extension of stay as a writer, composer or artist are that the applicant:

(i) entered the Isle of Man with a valid Isle of Man entry clearance as a writer, composer or artist; and

(ii) meets the requirements of paragraph 232 (ii)-(v).

Extension of stay as a writer, composer or artist

236. An extension of stay as a writer, composer or artist, may be granted for a period not exceeding 3 years with a restriction on his freedom to take employment, provided the Lieutenant Governor is satisfied that each of the requirements of paragraph 235 is met.

Refusal of extension of stay as a writer, composer or artist

237. An extension of stay as a writer, composer or artist is to be refused if the Lieutenant Governor is not satisfied that each of the requirements of paragraph 235 is met.

Appendix G

Countries participating in the Tier 5 Youth Mobility Scheme

Australia
Canada
Japan
New Zealand.